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VAJIRAM AND RAVI

POLITICAL SCIENCE

OPTIONAL

WESTERN POLITICAL THOUGHTS

(PART–II)

HANDWRITTEN

CLASS NOTES

2017

BY SUBHRA RANJAN

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POLITICAL IDEOLOGIES

IDEALISM

- **Exponents of Idealism –**
  Socrates, Plato, Aristotle, Rousseau, Hegel, Ikant (Imanuel Kant), T.H. Green.
- For idealists Man is social/moral by Nature.
- For idealists society is prior to Man.
- For idealists state is prior to Man.
- For idealists society & state is Natural/organic.
- Idealists do not give importance to the Rights they give importance to duties.
- In idealism we see the developement of two schools.

(i) **Hegelian school** (German Tradition) –
German idealists gave primacy to state.

(ii) (a) **Kantian school**
Primacy to society not state.

(b) **British School** (Oxford Idealists)

Political Idealism may result into the justification of –
(i) collectivism, (ii) Totalitarianism.

Medieval Times

In medieval Times the Theory of the Divine Rights of the kings was prominent.
The Theory of Divine Rights led to the justification of state absolutism on the basis of religion.

Both Idealism & Divine Rights Theory justified state absolutism but on different grounds. Idealism on the ground of reason/logic & Divine rights on the ground of religion.

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Idealists are also called as Rationalists.
Why?
Because they believe that idea is real & idea can be understood only through the use of reason.

Modern Times

Modern Age in Europe started as a result of movement like Renaissance, Reformation, Enlightenment. These movements established that man is rational. If man is rational Man can be given rights and Liberty.

Liberalism stands for rights of man, it challenged the rights of Kings. Liberalism challenges authority. Liberalism has challenged customs & traditions.

Liberalism is not just a political ideology, it's a way of life in the west. It is a defining culture of west. Western Europe & NorthAmerica together constitute the liberal world. Outside West India is considered as the Island of Liberalism.

Till 1991 world has witnessed the clash of ideologies. i.e. Liberalism Vs communism.

Since Sept. 11, 2001 scholars are talking about the clash of civilisation. Primary clash is between western civilisation & islamic fundamentalism.

In 1991 Liberal scholars claimed that Liberalism has won the Historic Battle of Ideologies.

Francis Fukuyama proclaimed liberalism as end of History. However, It is too early to suggest that Liberalism is end of History.

Since, 2008 Liberalism is in crisis. The major challenge to Liberalism comes from ideologies like communitarianism, multi-culturialism, islamic fundamentalism,

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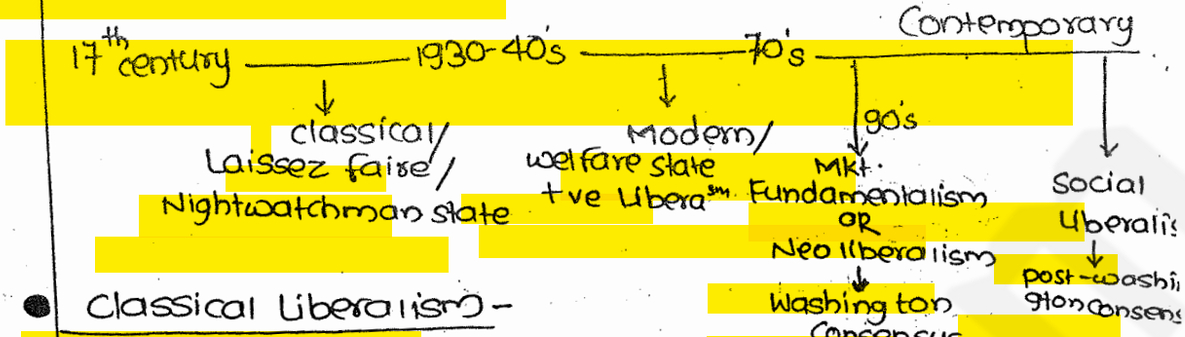
Schools of Liberalism -



Classical Liberalism -

Every ideology has its social base.
classical Liberalism is considered as the ideology of emerging Bourgeoise class. At that time Middle class liberals defended the Rights of Man against the state. They claimed Liberty of Man from the Authority.

central value of Liberalism
central value of Liberalism is Liberty.
Liberal (classical) view of Man.
Man is Individualistic by Nature.
Man is Rational. Rational Man in Liberalism is the Man who knows how to protect his self interest.
They believe man is utilitarian by Nature.
They believe Man is Materialistic by Nature.
Their view on society -
Society is a creation of Man. society is not organic in Nature. Liberal view of society is called contractual view. According to Liberals there is nothing called collective Interest. Society is aggregate of Individuals.
Classical Liberal view of society is also known as Market Model of Society. Society is Market place where man goes for satisfaction of his interests.

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Classical Liberal View At State -

State is necessary evil.
Why Evil?
Because it limit Liberty.
Why Necessary?
Because Man is selfish.
According to this view that the state is best that/which governs the leasts. Since state is necessary Evil, state should perform minimum functions - Minimal state
What are Minimal Functions?
Police functions means security (External & Internal) and Law & order.
According to Adam Smith, state should be referry rather than captain. It means the role of state is that of a regulator.
According to classical Liberals society should be organised on the Principle of Survival of fittest.
According to Graham Sumner, Drunkard in the gutter is where he ought to be.

Concept of Rights

Which rights liberals talk about?
Civil and political Rights.

Classical Liberal View on Liberty

Negative Liberty. Liberty is absence of interference of the state. ~~for them, it~~

Classical Liberal View on Equality

Liberals talks about 2 Equality.

(i) Equality before law. (concept of legal equality)
(ii) Equality of opportunity. - means equality of welfare. Here Equality of welfare means equal opportunity to be happy / equal opportunity to earn property to become rich.

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What Marxists say to this concept of Equality?
It is a Procedural Equality. It is the equality for the name sake (seek)*
Equality According to Marxists, real equality is social and economic.

Classical Liberal Principle of Justice -
Principle of Justice is Merit. Reward should be in accordance to the Merit.
What is the concept of Merit? What is the difference between Merit and Talent?
Merit is a social concept. Different societies gives different importance to different talent.

Relationship Between Liberty and Equality?
Liberty here means socio-eco.
According to them if efforts are made to bring equality in social & Economic terms it will reduce liberty. Thus equality is anti-thetical to Liberty.
According to them, Absolute equality is injustice.

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Modern Liberalism / Positive / Welfare state

Liberalism have two types of reaction:

(i) Those who considered Liberals are bringing too much change. They resisted change & they were called as conservatives / Rightiest.

(ii) Those who consider that Liberalism is not progressive enough. It should move forward. They were known as Leftiest & later on Socialists.

Why Negative Liberalism changed into Positive Lib.?

Classical Liberalism developed into two tradition: (Classical)

(i) Natural Rights Tradition. John Locke, Thomas Paine.

(ii) Utilitarian Tradition represented by Bentham.

Utilitarianism was the reason that Liberalism came under challenge. It was J.S. Mill who tried to modify Utilitarianism. J.S. Mill is a standing on the cross roads of Negative and Positive Liberalism.

Liberalism was forced to change because of socialist challenge. The 1st philosopher who can be considered as tve Liberal is T.H. Green. He was the 1st person to define Liberty in terms of capacity. He is known as father of positive Liberty.

How classical Liberalism was changed into Modern Lib?

Reason – challenge from socialism.

They have reformed Liberalism by bringing concepts from idealism. Idealism actually shares many assumptions or concepts with socialism like importance of collectivity.

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> Basic assumptions of Positive Liberalism.

Core value – Liberty.

However they have redefined the concept of Liberty. Negative Liberty became positive. It was held that when state intervenes it does not reduce Liberty rather inhance Liberty. Through Liberty is capacity.

> Their concept of Man/Human Nature – (↷ tve liberals)

Progressive view of man/ developemental view of Man for them Man is moral & ethical.

> Their concept of society

Society is important, real & cannot be considered just an aggregate of Individuals.

> Their concept of state

State is an Institution of Virtue. State is necessary for good life.

> Their concept of Justice

They believe that Liberty can be balance with equality. To bring the balance there is a need for affirmative action or positive discrimination in favour of weak to establish level playing field in the society.

Positive liberals takes inspiration from Imanuel kant. I. Kant has given the concept of Human Dignity. Positive Liberals also give importance to dignity along with Liberty.

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T. H. GREEN

Lecture 25th
14/01/2017

Green's View on Liberty-

"Liberty is the capacity of doing something worth doing."

"An Individual is free only when he has capacity to fullfill the law of his being."

T.H. Green is the 1st person to define liberty in terms of capacity. In ~~the~~ classical Liberalism Liberty is been defined as absence of interference by the state. However, this concept of Liberty led to the exploitation of the masses. Classical liberalism came under criticism for its in human nature. It was Mill who tried to re-difine Utility. But Mill could not give the idea of true liberty. It was oxford idealists. TH Green who gave concept of true Liberty. true Liberals are inspired by Imanuel Kant who talks about human dignity.
According to T.H. Green Liberty is something worth doing which is appriate for humans. Liberty cannot be against human dignity. He also suggests that when state intervenes for capacity building of poors, it should not be treated as limiting the Liberty. There is a difference in Rights and priviledges. Rights have to be universally available ~~only~~ If only few can enjoy rights i.e. priviledge.

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"Human consciousness postulates liberty.
Liberty involves rights.
Rights demand state." — T.H. Green.

In above statements T.H.Green have sumed up entire philosophy of positive liberalism.
In the 1st statement T. H.Green like all liberals show the importance of liberty. It is natural for human beings to demand liberty. without liberty human existence will be mere animal existence. Liberty is imp. for the developement of a personality of a person.
In the 2nd statement he shows the importance of society. Man can enjoy liberty only when society acknowledges his liberty as his right. For T.H Green rights have moral origin.
In the 3rd statement we see Positive liberals view of state state is not originator of a right. state is a guarantor of a right. like all liberals state remains an instrument for the welfare of man. He is not compromising individual for the sake of the state.

If classical liberals sacrifies equality & dignity for the sake of liberty & utility, if socialists sacrifies liberty for the sake of equality & if idealists sacrifice man for the sake of the state positive liberals try to achieve equilibrium among competing values & contested claims of individual, state & society.

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"Will not force is the basis of the State"
— T.H. Green.

Above statement is from T.H. Green's book 'principles of political obligation'.

What is Political obligation?

Principles of Pol. obligation tell the basis of the authority of the state or reasons why people should obey the state.

Since the time of plato & Aristotle political scholars are giving the principles of Political obligation.

E.g. people should be obliged towards a state.

According to plato & Aristotle because, state is a source of virtue & we cannot lead a good life without a state.

According to Locke, Hobbes man should obey the state because state provides security of life.

According to Locke Man should obey State because state removes the inconviniences existing in the state of nature. However, Locke limits the scope of authority of state

Rousseau man should obey state because laws of state represents the General will.

Hegel State is march of God on Earth.

It was Karl Marx who challenged the legitimacy of the state. Marx calls for revolution against the state & not obligation towards state. According to Marx state is instrument of Oppression. It is a source of exploitation.

T.H. Green contradicts the view that a state represent force. Like Rousseau he believe that state represents the will of people. There is will of the people for the state. Because state performs many useful functions. Eg. State Hinder the Hindrances (T.H. Green) The fact that state is continuing & there has been no revolution against the state show that it is will & not force that is the basis of the state.

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The debate between liberals & Marxists do not end, as Gramsci suggests that there is no spontaneous call for the state, will is manufactured.

Neo-Marxist scholar Habermas has given the concept of legitimation crisis which welfare state is bound to face.

Short Note on legitimation crisis-
It is a concept given by Neo-marxist scholar Habermas in context of welfare state.

What is Marx position on the State-
According to Marx state is instrument of a capitalist class & use force on workers in the interest of capitalist class. In the words of K. Marx, State is the executive committee of the Bourgeoise class. Workers cannot expect justice from the state.

In response to socialist attack & crisis in capitalism the nature of state changed in the western country. Western countries adopted welfare state. Welfare state takes many initiatives to provide social security to the underprivileged class. In this way western countries could avoid working class revolution

According to Habermas welfare state only postpone the crisis it cannot end the crisis. Even welfare state is bound to face the crisis of legitimacy.

Why crisis of Legitimacy?
Indications of crisis of the legitimacy
Increasing public protest, Decreasing ability of a state to govern e.g. Peoples protest in Greece after the govt. of Greece introduced austerity measures (withdrawal to come out of sovereign debt crisis.

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According to Habermas legitimation crisis happens because welfare state is based on 2 contradictory principles:

(i) socialism in politics
(ii) Capitalism in Economics.

To avoid revolution states in west extended right to vote to poors. In order to get votes from the poors political parties have to make promises to address poverty. To full fill promises they take money out of economy. The graph of expectations keep on rising. There is a limit to which economy can finance social security programs. Beyond a limit industry cannot finance. Hence, the only option left is rolling back of the state. When a state rolls back social security it is bound to suffer from the crisis of legitimacy. Even welfare state is not the solution for the contradictions in capitalism.

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LASKI

no chance of coming in exam

Introduction -

Laski was source of Inspiration for Pandit Nehru.
Laski was positive Liberal with socialist leanings.
We attribute fabian socialism to the ideas of Laski.
Nehru's socialistic pattern of Indian Society is Influenced by Laski.
Laski has given the elaborate set of social and economic rights to be provided by the state
Part IV of Indian Constitution which mentions many social & economics rights are influenced by laski.

"Every state is known by the Rights it Maintain."

"Rights are those conditions of life without which no man can seek in general to be at its best."

"The social order which is not based on claims of person is based on the sand."

"Rights are claims but not empty of duties."

"Either state should control the capital or capitalists will control the state."

Approach of Laski

We see transition is laski's ideas. Initially laski was advocate of liberty. His famous book is grammer of liberty. Later on he got inspired by the achievements of USSR. However, he became disappointed because soviet system denied Liberty. He came back to Liberalism but remained liberal with socialistic leanings. Laski wanted state to take up the capacity building tasks, intervene in industry on behalf of workers for regulation of working hours, wages, providing benefits like maternity reliefs, participation of workers in management.

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Laski wanted that state should maintain the system of rights. He also suggested that right & duties are correlated. Hence theory of rights is called as Functional theory of rights. If capitalists have right to make profit, he also have duty to take care of the wellbeing of the workers.

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Neo liberalism (1970's to 1990's) -

> What is Neo liberalism?

In simplest term Neo liberalism is market fundamentalism.

Neo liberalism in one way the revival of laissez faire state. But it is more inhuman & oriented towards market than classical Liberals.

Classical Liberals suggested ~~for~~ Market as a principle in economics. But Neo-Liberals have expanded the Market Principles to all aspects of life. They projected Market as God.

Neo-liberalism is least ~~de~~liberal and most fundamentalism as fards market is concerned.

> Why Neo-liberalism came?

In 1970, Neo-liberalism first came in Britain. It came to be associated with the policies of Margarette Thatcher. It is also called as Thatcherism.

In 1980s it was adopted in USA under Ronald Reagan Hence, it is also called as Reagonomics.

Thatcher belong to conservative party & Reagan belongs to Republican party.

Hence Neo liberalism cannot be distinguished from Neo-rightism.

Neo-liberalism came because welfare state became unsustainable. Welfare state in the western countries has grown too big. It came to be known as 'Nanny State'. state was expected to take care of the person from cradle to Grave.

State started suffering from fiscal Deficit. Hence it was adviced that state has no option but to 'Roll Back'.

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In 1970s it was introduced in Britain then in USA & by 1990s Neo-liberalism expanded throughout the Globe. It was introduced as shock Therapy in Russia and other former communist countries. It was introduced as structural adjustment programs in India and other Third World Countries. The conclusion of Uruguay – rounds of talks led to the establishment of WTO in 1995.

Principles of Neo liberalism can be understood from the ten points washington consensus proposed by John Williamson.

(i) Reduction in Fiscal Deficit.
(ii) Pro-Industry tax reforms.
(iii) No indiscriminate subsidies only targeted pro-growth subsidies.
(iv) Market determined interest rates.
(v) Competitive Exchange rates to promote exports.
(vi) Trade liberalisation. by reducing tariff and non-tariff barriers.
(vii) Promotion of FDI
(viii) Disinvestment of PSUs
(ix) Deregulation
(x) Protection to Right to Property.

- Prominent philosophers of Neo-liberalism.

(1) Hayek
(2) Robert Nasick
(3) Milton Friedman
(4) Isaih Berlin
(5) Murray Rothbard

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HAYEK

- His book - Constitution of Liberty.
- He is considered as Father of Neoliberalism and a source of influence on Thatcher.

(i) He was critic of centralised planning. He called planning as irrelation exercise ie. bound to fail. According to him, Market based allocation is best. Even the most intelligent planner cannot think like Market. Market is like a huge central nervous system which can intercept millions of messages at a time. Hence the best allocation of resources and use of resources is only through markets.

Hayek on Social Justice

"Social Justice is Mirage" - Hayek

- It is unachievable. Justice is a virtue of a person & not of a state. In the name of Justice state increases its power. State takes money from the productive sector, money does not reach to targeted section. It give rise to parallel economy as it is pocketed by politicians & civil servants.
- According to Hayek progressive taxation is a bonded labour.
- Instedd of state providing justice, state should promote charity.
- If a person is poor, the fall does not like with the rich. Poverty is a bad luck. Hence, for removal of poverty coersion of rich is not justifiable.
- Hayek does not accept concept of +ve freedom/higher freedom. According to him freedom in simple term is Absence of Coerson.

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ROBERT NOSICK -Nobel laureatte

- Anarchy, State and Utopia - Nosick's Book
- Nosick is a critic of John Rolls.
- Nosick does not support welfare functions.

According to Nosick,
"Minimal state is inspiring & right."

- He revives the ideal of Night watchman state. The only role of the state is to see that property is right-fully acquired / transferred. State have no role in distributive justice. He also considers progressive taxation as bonded labour.

Minimum state is inspiring because it motivates person to work hard. It is unethical if state force man to work against his wishes. Nosick is also regarded as semi-Anarchist. He believes that even security services can be provided by private sector.

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MILTON FRIEDMAN — Noble

- Book - capitalism & freedom.
- He held that freedom is not needed by market, rather market is needed for freedom
In countries where capitalism does not exist there no scope that people can enjoy freedom. It is for this reason neo-liberalism is called as Market fundamentalism. It is many time more market oriented than classical liberalism of Adam Smith.

ISAIH BERLIN

I. Berlin rejects the concept of tve liberty. and makes a difference between liberty & capacity.

MURRAY ROTHBARD

He compared state (Politicians & Bureaucrats) as gang of thiefs and central bankas legislative fraud.

- Neo liberals strategy for poverty alivitation is Trickle doan effect.

What is the status of Neoliberalism today?

Neo liberalism is in crisis. The crisis started within few years of existence of WTO. Neo-liberal economic policies increased inter-state & Intra-state disparities Many states like Russia, Mexico, Argentina, countries in South East Asia suffered from Financial Crisis. There has been growth of Anti-globalisation movements. Since, 2008 Neo-liberal policies have started impacting even western countries.

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Social Liberalism / Liberal Egalitarianism -

It is a revival of Positive liberalism but the approach of social liberals differ from modern Liberals. Modern Liberals suggested state intervention in economy. State establishing PSUs providing employment. Social Liberalism is based on the concept of partnership among pvt. sector, state & civil society. Pvt. sector should play the responsibility of promoting growth. State should act as facilitator & empowered civil society ensure trasperency & accountability. Social liberals suggests state to Invt. in capacity building. Some of the prominant social Liberals includes:

(i) John Rawls

J. Rawls brings balance between Merit & Need. Rawls has given critic of Utilitarian Theory of Justice, established moral individualism. Based on Ideas of Imanel Kant.

(ii) Amartya Sen

Amartya Sen, proposes the idea of Capacity Building. Instead of World Bank 'approach to Good Governance' based on privatisation. A. Sen proposes Humane Governance based on Human Developement.

(iii) Joseph Stiglitz

Joseph Stiglitz, In his book globalisation & its discontent have shown the Fundamentals flaws of Neo Liberal Model of Globalisation.
In his another Book - 'Making Globalisation Worth' Work/worth
He suggests necessity of reforms in Institutions of Gobal govt. like IMP, WTO so that they become transperent representative & accountable.

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J. Stiglitz has given the concept of 'Post washington consensus' which emphasis on inclusive growth & Distributive Justice.

Q. Do you think liberalism has won the battle of ideologies?

→ Liberalism has been one of the longest surviving ideology in the west. Liberalism has got challenges from different ideologies at different times. Earliest challenge came from conservatives/Rightie. Since, october Revolution in Russia in 1917, till 1991 disintegration of USSR. Hegemony of liberalism has been challenged by socialism-communism. During inter war period liberalism faced another challenge in the form of fascism. Fascism is considered as extreme conservatism. In WW II liberalism defeated Fascism but could not defeat communism. In 1991 scholars like Francis Fukuyama Proclaimed 'liberalism as the End of History'. He held that we are not just witnessing the end of history, we are witnessing the highest point of man's ideological evolution. History has proved that there is not better idea than that of liberalism. However, liberalism has never been free from the challenges. In terms of philosophy, liberalism is been challenged by Multi-culturialism, communitarianism, post modernism. In terms of politics liberalism is challenged by Islamic-fundamentalism, Putinism, confucianism. It is too early to say, that liberalism has won historic battle of ideology. As there is world wide revival of Right & Left. Neo liberal world order is facing crisis, Brexit is one such indication.

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Q. Write a short note on Liberal Concept of Tolerism or Toleration.

→ Along with Liberty, Toleration is the value of Liberalism. The term Toleration comes from the latin word 'Tolerare' which means to bear or endure. The idea of Toleration is necessary for realisation of the liberal idea of Liberty. Liberty can be enjoyed only in Tolerent society. Toleration is considered as the 'substantive Heart of Liberalism'. Toleration is a deliberate exercise of self restrain towards the things or behaviours which we strongly disapprove & had not been tolerent could have used force. Tolera" is not about things with respect to which we are indifferent, it is not just acceptance of diversity. Tole-ration is accepting the things which we otherwise hate. Toleration is considered as personal virtue, social virtue as well as political virtue.

→ Context of Toleration debate.

It emerged in the context of the issue of the managing diversity. One of the earliest writing on toleration in Liberalism is associated with J. Locke. In his letter concerning Toleration, J. Locke suggest that state should give freedom of conscience & state should not dictate matters of religion.

- J.S. Mill also gives the idea of Toleration when he proposes harm principle. The only basis for inter-vention in the freedom of Man is when his actions result into the concrete harm.
- John Rawls suggests that Toleration is a feature of liberal societies because people in Liberal societies can continue to possess different comprehensive doctrines (Christianity, Judaism, Liberalism, Islamism)

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But still people can aggree or develope 'overlapping consensus' on political conception of Justice.

→ Evolution of the policies of Toleration in western world:

① The Principle of Neutrality & Universal citizenship-

Context

There were religious wars in Europe and hence the solution was to confine religion to the private sphere, state adopt the policy of religious neutrality. To ensure that people belonging to diff religious backgrounds live in peace & harmony the idea of secular nationalism was promoted. Nationalism as a unifying force - Idea of Nationalism was based on universal citizenship i.e. everyone is equal for State & while State is making policies state is not taken into consideration religion of citizen. Universal citizenship leads to the uniform civil code. The European idea of Nationalism was based on the unity in uniformity. The two models:

1. French model is based on a strict seperation.
2. US Model is based on the concept of melting pot or assimilation.

Present Context

In present times various factors has led to the growth of identity consciousness around the world. Even in western countries where religion was confined through pvt. sphere is becoming more & more prominent in public sphere. There is a greater use of religion in politics in all societies including western society.

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→ Will Kymlicka has given following reasons for the rise of identity consciousness:

① Demographic changes: and Higher scale of Immigration
② Growing consciousness about human rights.
③ The neglect of minorities & minorities becoming assertive.
④ Securitisation of Ethnic relations.

As situations are changing the existing models of tolerations as practiced in France & USA are coming under challenge. Western countries like Canada in 1970's, Australia in 80's have publically declared the adoption of Multi-culturalism as policy. EU also adheres to multi-cultural approach. One of the earliest constitutions adopting Multi-culturism values is Indian constitution.

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Framework of Multiculturialism -

Defining Multi-culturialism -
Necessity of Multi-culturialism -
Basic assumptions.
Debate between universalists & Multi-culturialists.
Debate within Multi-culturialism.
Criticisms of Multi-culturialism.

→ What is Multi-culturialism?
Multi-culturialism is an approach or ideology representing the interest of the non-dominant sections of the society. It may include minorities, immigrants refugees, or any non-dominant group

→ Why Multi-Culturialism?
The traditional Liberal idea of managing diversity is proving inadequate.

→ Why this debate is prominent debate?
World is becoming smaller & people are becoming more conscious about their rights. Our idea of justice & fairness is becoming more enriched.

→ What is the basic difference between traditional Liberals & Multi-Culturialists?
Traditional Liberals take the view of man which can be called as atomistic man (independent man). The concept of Atomistic Man is being criticised as 'Abstract Individualism.' Abstract Individualism does not give the picture of the real man.

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→ What is real man according to Multi-Culturialist
We cannot isolate or abstract man out of his culture or identity.
According to Bhikhu Parekh,

(i) Man is culturally embedded we cannot seperate man from his culture. It is impractical to accept that man will forget his culture when he comes in public sphere. Not only it is not realistic it is unfair. It is not possible to respect a person but not respecting his culture. If we extend a rights to a person but do not extend recognition to the culture, our approach is impracticable.

(ii) Liberals do not give necessary recognition to the culture. Culture provides meanings to our understanding. Culture acts like a glass through which we understand the reality.

(iii) Every culture is Hybrid & plural consciously or unconsciously cultures interact with each other. There is no culture which can be considered as entirely pure. Liberals try to impose culture of majority on the minority in the name of universalism & rationalism.

(iv) Just like Biodiversity is good for ecology or EVS Similarly cultural diversity is also good. Each culture is rational. We can learn & enrich our culture by recognising different cultures.

→ Basic assumptions of Multi-culturists
Multi-culturialists share assumptions with communitarians and cultural relativists.
Like communitarians multi-culturialists reject universalism & talk about particularism.
Like communitarians Multi-culturialists support politics of identity & politics of community.

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Prominent Multi-Culturialists and their views -

(I) Liberal Multi Culturialists -

(1) Will Kymlicka

(II) Post colonial Multi-culturialists -

(1) Bhikhu Parekh.

(III) Cosmo Politan Multi-culturialism

(i) Jeremy Waldron

(ii) Seyla Benhabib.

(1) Will Kymlicka

Book - Multi-Cultural Citizenship - A Liberal Theory of Minority Rights (1995)

Will Kymlicka suggests that Multi-Culture is the natural & inevitable evolution of Liberalism. He believes that only liberals can adopt Multi-Culturialism. Will kymlicka suggest that govts. should give special rights to the minorities. He gives 3 category of rights:

(i) Special Representation Rights.

(ii) Self Governance Rights - If the ethnic community is concentrated in a particular geographical area.

(iii) Poly Ethnic Rights - It means Minorities should be given special cultural rights. He suggests govts. to grant exemptions e.g Muslim girls should be allowed to wear scarfs in a school, Muslims can be given Holidays on Friday, Sikhs can be allowed to wear Turben.

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W. Kymlicka However suggest that these special rights should be limited to National minorities only. There is no need to extend these rights to immigrants & refugees.

Why not to Immigrants?

Unlike National minorities who do not choose to be in a minority group & so they should not suffer from disadvantage. But immigration is a matter of choice. Hence, Immigrants should adopt the mainstream culture of the land to which they are immigrating.

Why not to refugees?

We are still living in a world where major these administrative unit is Nation state. Countries cannot be forced to take the burden of other states. International community shall put pressure on another country to treat the minorities properly.

Bhikhu Parekh

Book - Rethinking Multi-culturialism.

Though he shares some basic assumptions with W. Kymlicka about the importance of culture & the need to give special rights he opposes W. Kymlicka on two grounds:

(i) There cannot be any justification to make a difference between National Minorities, Immigrants and refugees. We cannot say that for immigrants & refugees their culture does not matter.

(ii) He does not agree with the view that the multi-culturialism is a feature of liberal societies only. He believes that liberals have inherent sense of superiority. Bhikhu Parekh suggests, 'Dialogue between civilisation' so that we can arrive at some basic minimum values which will be acceptable to all.

Immigrants-
refugee- taking shelter in case of war etc

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Bhikhu Parekh is optimistic and he believes that some common values can emerge through dialogue which can be applicable at cosmopolitan level. He believes that Human Dignity is one such principle where we can develope common values.

Bhikhu Parekh peroposes the application of Harm principle. If there is no concrete harm to anyone with respect to any cultural specific practice such practices need not to be restricted. Harm principle can achieve the balance between Autonomy & Culture.

- **Short Note on Value Pluralism-**

Value pluralism as a concept is given by Isaih Berlin

Context of value pluralism-

It is in context of the debate between values. Eg. The debate between Liberty & Equality.

Value Pluralism VS Value Monism-

According to Isaih Berlin, value Monism means one value determining all choices. Eg. Utilitarians take Utility as the ultimate determinant for all actions.

According to I. Berlin, peoples have different values. If Someone believes that Liberty has a priority over equality no no. of arguements will convince the person that equality has a priority. Hence, one should not prioritise values. Eg. In liberal countries primacy is given to liberty According to I. Berlin, there can be many such values which are equally correct and yet in conflict with each other Eg. Liberty & Equality. Problem increased further because values are "incommensurable" (cannot be measured) and prioritised.

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Hence, he suggests liberal state not to prioritise values. I. Berlin is also a optimistic as he believed that there are some shared values among civilisations. With more & more developement more no. of such values will emerge where broader agreement exist.

Short Note on End of History & compare End of History with clash of Civilisation.

End of History as well as clash of Civilisation Both present the post cold war world order.

End of History-

End of History Thesis is associated with the ideas of Fransis Fukuyama. 1st published in 1989 as an essay and later on in 1992 as a book with the title 'End of History & the last Man.'

What does End of History Thesis suggests?

End of History does not mean end of the events in History. End of History means, the end points of Man's ideological evolution.'

What is the implication?

Liberalism or Liberal democracy is the ultimate form of govt which can be concieved by Human being. End of History on one hand establish the supremacy of liberalism & on the other hand establish the supremacy of the west. It is a claim that liberalism has won the historic battle of ideologies.

Fukuyama's concept of End of History is the application of Hegel's & Marx's explination of End of History. However, neither German state was End of History nor Soviet Union. End of History concept is more influenced by the ideas of Alexandre Kojeve He predicted that history will lead towards the establishment of universal & Homogenous state.

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Supremacy of liberal ideas & liberal way of life have been pronounced earlier also in the works of S.M. Lipset.

Daniel Bell who talked about End of Ideology.

End of History Thesis has been criticised by various scholars e.g. Samuel P. Huntington, Farid Zakaria, Derrida.

Francis Fukuyama has revised his ideas & blamed the policies of Geoge Bush in Afghanistan & Iraq responsible for the decline of US Hegemony. & the rise of identity consciousness.

- **Samuel P. Huntington and His concept of clash of Civilisations**

According to S.P. Huntington, the end of History thesis does not represent the reality of post cold war world order. He has predicted the clash of civilisation. Throughout cold war world was devided between 2 different ideological camps i.e. communism and capitalism. Ideological differences can get resolved but cultural & religious differences are difficult to resolve. In his book 'clash of Civilisation' he mentions 8 civilisations-

1. Chinese
2. Japanese
3. Hindu Civilisation
4. Orthodox Civilisation i.e. Russian
5. Islamic Civilisation
6. Western Civilisation
7. African
8. Latin American

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He talks about the possibility of conflict between
① Islamic Civilisation & Western Civilisation.
② Chinese Civilisation & Western Civilisation.

He calls Russian & Indian/Hindu Civilisation as swing civilisation.

Main conflict predicted by S.P. Huntington - It is between west & chinese civilisation. It will be conflict between core state.

The fight between western civilisation & Islamic civilisation is termed as fault line conflict.

Why fault line conflict?
There is no core state in the islamic world. Hence it will be a fault line conflict. However, there is a possibility that Islamic world combines with sinic civilisation against common enemy ie. west.

Why conflict between Islamic & Western civilisation?
Both are missionary religions. Both are teleological religions. Both are against Non-believers. Both are universalists. Both believe in All or Nothing.

According to Huntington, There have always been wars & conflicts between cultures only for the short period of History we have seen conflict of ideologies.

The clash bet" civilisations has long history since the movement of civilisation. As information & communication technology will become advance people will become more & more conscious of their identity.

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- Reasons for rise of Islamic Fundametalism
  - (i) US policies in middle east.
  - (ii) lack of Democracy.
  - (iii) The growth of Muslim Population.
  - (iv) Frustration among muslim youth.
  - (v) Successful resistance by Islamic fighters against USSR
  - (vi) Re sorgence of Islam is a self respect & self confidence for Muslim.
  - (vii) Deep resentment towards western attempts to universalised western values.
  - (viii) End of common enemy ie. communism brings them in direct confrontation with each other.

- Criticism of Clash of Civilisation-

  According to the critics there is no truth in clash of civilisations thesis. It rather provides basis for justication for US intervention in middle east & other regions. It aims to strengthen US Hegemony only. There are many leaders in world who emphasis on the necessity of dialogue between civilisations.

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SOCIALISM

No chances to come in exam

How to define Socialism?

It is difficult to define socialism because socialism is like a Hat that has lost its shape because everyone wears it.

Why everyone wears it?

It is politically useful specially in those countries where large section of society is poor & where poors have right to vote.

Why it is said that it has lost its shape?

Reason - Endless Varieties of Socialism.

There are country specific models, person specific models, there are methods which supports peaceful route to socialism, some supports violent route to socialism.

Though it is like a Hat which has lost its shape but still we can recognise the Hat.

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Lecture 28
28/01/2017

Basic assumptions in socialism -

Core value of socialism is social & Economic Equality.
Because the origin of socialism is in context of criticism of capitalism.
Laissez faire capitalism has resulted into increase in inequality & exploitation.
Socialists propose that Industrial society can be based on better principles than that of capitalism.
They suggest to base society on principles of socialism.

Conception of Human Nature (By socialists) :-

According to them, man is social by Nature.
According to socialists ~~Man~~ No man is an Island each man is a part of continent.

Socialist concept of society

Socialists reject agregative view of society & Believe that society is Natural, Organic entity.

Socialist concept of Rights -

Socialists believe in social & Economic Rights.

Socialist concept of Liberty

For socialists, Liberty is a Bourgeoise concept. Instead of Liberty they use the term Freedom. Real freedom is freedom from necessities.

Socialists concept of Equality

1. Social & Economic Equality
2. Equality of outcomes
3. Absolute Equality

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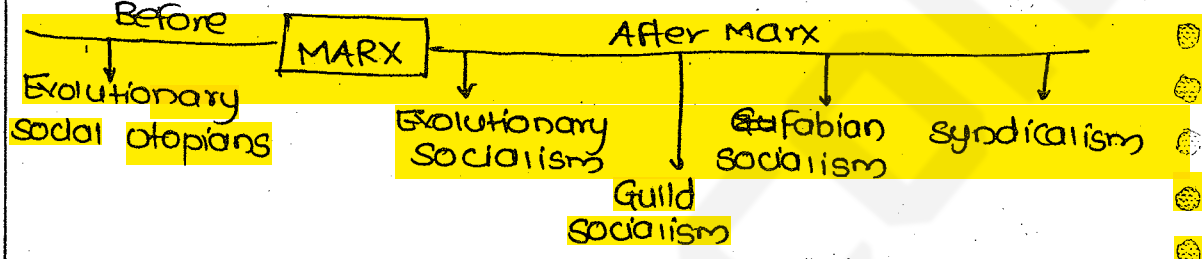
Socialist View of the State -

It is in context of a state that socialists differ. Some socialists are against the state & some are in favour of a state.

Socialists Methods of Bringing Socialism

Socialists also differ with respect to the method. Some prefer peaceful whereas some prefer violent method.



Socialisms After Marx

① Revisionism / Evolutionary Socialism

Scholars - Eduard Bernstein, Karl Kaulsky
- Erfurt Programme
- Bernstein suggested that Revolution is neither possible nor necessary. Working classes should adopt Parliamentary Road to Socialism. Since they are in majority, they can get their interest fulfilled even through institutional methods.
Evolutionary socialism was popular in Germany.

② Fabianism

Peaceful

British Variety of Socialism. based on the ideas of Roman General Fabius. The policy of Fabius was to strike when iron is hot. In context with socialism it was proposed that socialism will not come overnight. we have to prepare society for socialism.

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Socialism can be successful only when it becomes commonsense. The unique aspect of Fabianism is socialism through middle classes. The Educated section from the middle class will take up the responsibility for developing awareness. Fabians have established Fabian societies. Fabians believe in basic concepts of Marxism except the * necessity of class struggle & Revolution. Prominent Fabian socialists include scholars like George Bernard Shaw, Sydney and Beatrice Webb, G.D.H. Cole, Annie Besant. Fabianism looks a state as a main agency for bringing socialism in partnership with civil society. Nehruvian socialism is based on Fabianism.

③ Guild Socialism –

Peaceful Prominent scholar – G.D.H. Cole

It is also a British variety of socialism. According to G.D.H. Cole the real interest is economic interest. Hence, there is a need for adequate representa' of various eco. interests in policy making. Guild socialists also share some basic principles with Marxism including class struggle But do not consider revolution as a necessity. C G.D.H. Cole has proposed –

① Functional Parliament along with Political Parliament.
② Functional representation along with territorial represen'
③ Industrial Democracy or Democracy in Industry. i.e. Participation of workers in Management.

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④ Syndicalism

It is a French variety of socialism.
Syndicalism supports violent. It is nearest to the ideas of Karl Marx. Besides Karl Marx they are also influenced by George Sorel the author of Reflections on violence.
Techniques proposed- They propose strike, lockouts, slow work.
According to them there is no need of political state only economic state is enough.

Difference in Guild & Syndicate

- Guilds represent different economic groups like farmers traders, consumers, workers.
- Syndicates are just working class organisations.
Syndicate society will be confederation of syndicates.
Entire power will be in the hands of workers.

Q. Do you think Socialism can re-emerge in 21st century as Anti- capitalism.

(i) Explain Socialism.

(ii) Popularity of Socialism.
Since the victory of communism in Russia till the end of cold war socialism was the major ideological challenge to liberalism. World was devided into two blocks:
(a) First World - The capitalist world
(b) Second World- Socialist- communist world.
Besides 1st & 2nd world there was group of nations with colonial past & aiming to pursue the policy of Non-alignment which came to be known as 3rd world.
There was bigger influence of socialism than capitalism.

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Socialism had bigger presence in 3rd world countries of Asia, Africa, Latin America. There was popularity of socialism because of mass poverty, colonial past, similarities in the value system. Non-western values come much nearer to socialism than capitalism. In Non western societies there is greater importance to collectivity.

There was lot of attraction towards socialism even in middle east where many political parties like Bathiest party in Iraq & Syria.

However, with the disintegration of USSR socialism has lost its attraction.

In 1990s we see the establishment of Hegemony of Neo-liberalism. Marx was proclaimed as a God that has failed.

It is true that socialism cannot claim the same level of acceptance as it was before 1990s. Not any country will go entirely for socialist politics or socialist economy. However, it is believed that socialism should not be considered as Dustbin of History.

It is believed that Socialism will reemerge as Anti-capitalism in 21st century. Many anti-globalisation movements are considered as Anti-capitalists movements. Socialists & Marxists scholars do not accept that socialism on Marxism has lost its relevance.

According to Ralph Miliband, the author of Socialism for Skeptical Age, published in 1995. Mentions that the notion that capitalism has been thoroughly transformed & represent the best which human kind ever hope to achieve is Dreadful slur - Slur of human race.

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Another Marxist scholar Immanuel Wallerstein. According to him, mankind has only two options. Either socialism or Barbarianism.

Terry Eagleton - It is passionable to say that socialism is irrelevant and Marx is outdated. The more world has changed the more it has remained same. Inequalities which were present in 18th & 19th century are re-emerging. because of capitalists globalisation.

Thomas Piketty in his book - Capital in 21st century also show how inequalities are rising around the globe.

Above views suggests that socialism remains important because inequalities are rising. If not as an alternative to capitalism, Socialism will remain relevant as a critic of capitalism. Socialism will remain important to ensure that capitalism remain humane. Since, global Financial crisis there is a growth of not only right but also left in many countries of europe.

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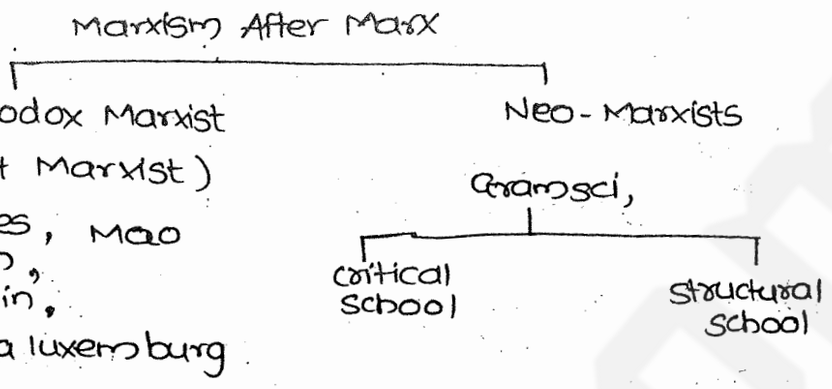
MARXISM

Schools of Marxism



Orthodox Marxism

They believe that real Marxism is the ideas of Mature Marx. They give importance to the books like communist Manifesto. Persons like Agels, Lenin Projected Karl Marx as a God. and his predictions are bound to be a real.

Orthodox Marxist consider Marxism as a science. They consider it as a scientific explaination of History. The most important principle of Marxism is a Historical Materialism.

Contributions of Lenin / Leninism -

Lenin is the 1st person who could successfully implement Marxist ideas. However, lenin has also made lot of changes in the ideas of Karl Marx.

Major contributions of Lenin in the theory of marxism.

(1) Concept of communist party -

This was given by Lenin in his ~~pamphlet~~ pamphlet ~~who~~ titled what is to be done? Since working class were not able to develope consciousness on its own lenin thought of bringing communist party as 'Van guard of revolution.'

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Features of communist party -

(1) communist party is different from trade unions. communist party to be a secret society it has to work secretely.

Why?

Its programme is to bring revolution so no state will allow.
Trade unions are part of capitalist system.
Trade unions can develope only, trade union consciousness and not revolutionary consciousness.

(2) Communist party will differ from Bourgeoise parties in their organisation. Bourgeoise Parties are Hierarchical. There power is concentrated in the hands of leadership.

(3) Communist Party will be based on the principles of Democratic centralism. communist party is a pyramidical organisation broad at the base & narrow at the top. The smallest unit is called as cell. It represents the people at the grass root level. People at grass root level will decide the main programme of the party. It will be
(4) communicated to the top leadership. At the top will be the central committee. central committee will decide peoples demand. in practicle programme of action. once decided programme has to be implemented at all levels. In this sense there will be centralisation.

(5) Lenin brought peasantry within the revolutionary class. whereas Karl Marx was against treating peasantry as revolutionary because they may posses some amount of land. Only proliteriat can be revolutionary.

(6) Lenin tried to bring communist revolution in semi fuedal society.

(7) Lenin's biggest contribution is his theory of imperialism.

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Lenin's book- "Imperialism the highest stage of capitalism"

Karl Marx has confined his analysis of capitalism in domestic context. He has not discussed the external aspects of capitalism. It was Lenin who analysed external aspects & Lenin's theory became the basis for Marxist theory of International politics (Dependancy school). ↓ Colonialism.

Lenin has exploded the myth that imperialism is white men's burden. It is nothing but the highest stage of capitalism. He has given 3 stages of capitalism:

1. Merchantile capitalism
2. Industrial capitalism.
3. Finance capitalism

He has analysed 1st world war & held that it was nothing but the capitalists war. Lenin even thought of supporting the nationalists parties fighting against imperialism. Lenin was not against nationalism in the way Karl Marx was. Lenin even thought that communist revolution can start against capitalism in colonies.

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MAO

Lecture 29
19/01/2017

- Mao was the first person to apply communist principles in purely Asiatic situations & in purely Fuedal society.
- Maoism is a Pragmatic & Flexible form of communism. Maoism is not against capitalism. Maoism is also not against Nationalism. Maoism is against —

① Fuedalism
② Imperialism

- Mao made some fundamental changes in the theory of communism. Mao accepted all principles of Marxism like Historical Materialism, Dialectics, Class Struggle, Revolution But tried to modify Marxism to suit chinese situation. China was international colony, colonial powers have established their influence in different zones. China was also Fuedal society with long history of peasants revolts. Mao himself came from Peasant family. Marx does not consider peasantry as the revolutionary class, Lenin brought peasantry in the revolutionary class, but in subordinate position to Working classes. Mao has given central position to the ~~working~~ Peasantry classes in Revolution.

Mao was influenced not only by karl Marx, he was also influenced by Machiavelli. Mao has made following Modifications:

- **Dialectics**

Antagonastic ~~dialectics~~ dialectics means Reconciliation is not possible. According to Mao, people have Antagonistic contradictions with fuedal class and Foreign Bourgeoise, Imperialists.

Non Antagonistic means contradiction which can be resolved Eg. in case of china Mao held no contradiction with indegenous Bourgeoise class.

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Mao's concept of Revolution -

In Marx there is only one revolution & that to again mode of production. Whereas in Maoism there is a concept of Permanent Revolution & Revolutions at both ideological & material level.

Mao has given the concept of Guerilla Warfare. Guerilla Warfare should be the strategy of poors. Mao was also a strategist. In his Red Book he discuss the strategy of revolution. According to him, people should 1st try to capture the periphery like Rat Nibbles. He held that people/ Masses should attack when enemy is resting, they should withdraw when enemy attacks.

According to Mao, Power flows through the barrel of Gun. It means the only way people can come to power is through violence.

Compare Mao with Gandhi -

Both Mao & Gandhi were contemporaries. Both have been successful mass leaders. Influence of both go beyond their own countries. Both fought against common enemy / evil ie. Imperialism.

However, the two differ in terms of strategy, If Gandhi considered violence as an Article of faith & suggested non-violent method as a Method of struggle for masses. Mao believed in violence. Mao held that power comes through the barrel of gun. If Gandhi suggested the technique of Satyagraha, Mao suggested the technique of Guerilla warfare for masses.

Though both are successful but Gandhism is morally superior to Maoism. Violence does not result into any solution. Violence give rise to violence. According to Gandhi, Violence belongs to the Animal & Eye for Eye will make the world blind.

According to Gandhi, there is a continuity between ends and means. If we choose violent means we cannot arrive at right ends. We can give the examples of all such revolutions which have been violent e.g. Russian & Chinese revo^{n}

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These Revolutions did not end in enpowerment of Masses.

NEO MARXISM

In neo-marxism there are two schools both are influenced by Gramsci.

① Critical school / Frankford School

Frankford school was founded in Germany in 1920s. But later on shifted to the University of Columbia. Because of Hitlers policies.

- **Prominent Scholars -**
  - (i) Eric Fromm
  - (ii) Max Horkheimer
  - (iii) Theodore Adorno
  - (iv) Herbert Marcuse

- **Source of Influence**
  - (i) Karl Marx
  - (ii) Hegel
  - (iii) Sigmond Friud

- **Why it is known as critical school?**
  - (i) Critical school is in dialectics with-capitalism.
  - (ii) Rationalism. (Enlightenment)
  - (iii) Orthodox Marxism.

They were critical of soviet Marxism. They were also critical of Fascism.

What is their concern?

Their concern is emancipation. They believe that the real objective of K. Marx was Emancipation of man giving him freedom in real sense. They object the view that the real concern of Marx was class struggle & revolution as projected by soviet Marxists.

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They have given importance to Marx Concept of Alienation. According to them Alienation has not ended rather got more strengthened.

Critical Marxists have analysed the new ways of exploitation adopted by capitalism. They had analysed the nature of exploitation in Post capitalist societies. In soviet Union Totalitarian society has came into existence where there is no hope for freedom. Similarly in capitalist societies people have become more slaves than earlier. Max Horkheimer has written about negative dialectics. According to Negative Dialectics we are not moving towards freedom rather we are moving towards slavery. The project of enlightenment is showing reverse order. Critical school scholar are critical of science science promotes' instrumental rationality', science has undermined the importance of values from our life. According to Herber Marcuse science has taken away critical reasoning. Human beings behave like a herd of sheeps & goats. In his book 'one Dimensional Man' he suggests that we are living in consumerist society whose culture is consumerist. Personality of man has become one dimensional. The only dimension is dimension of consumer. Capitalism survives by creating false needs. Scholars like Horkheimer and Theodore Adorno have analysed the role of culture industry, Adv. industry in reducing man into mass & the role of Mass media in creation of mass society. Adorno has analysed the impact of capitalism on music. only such music is promoted which kills sensitivity. Music has been reduced to Seismographic Traumatic shocks.

According to these scholars Marxism should not be considered as a closed thinking. Marxism should be considered as an open school of thought. As society is changing methods of exploitation are also changing. Hence, Marxis mode of analysis need to incorporate new ideas to understand new way of exploitation. Today the most effective way of exploitation is through culture. Culture is now a eco. commodity. Culture is now sold & purchased. Culture has become the part of basic structure. Culture & its impact needs to be analysed.

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(2) Structural School / Structurialism -

Marx was structurialist. According to Marx, Economic structure is the basic structure. Marx is criticised as Economic determinist. Because according to Marx, Economic Factor is the only factor behind all events. Gramsci has further modified structurialism and has also given importance to superstructure.

Althusser have further developed structurialism. Suggest that Economic factor is over determined in Marx. He gives the concept of Multiple Structures. History can start from any structure. He gives the example of Russian Revolution which had not started from economic structure rather political structure.

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FASCISM

Q. Critically analyse the nature of Fascism as a political Ideology.

Q. Analyse the factors which gives rise to Fascism.

Q. Do you think Fascism has ended with the end of 2nd World War? Should we always be concerned about possibility of rise of Fascism.

Fascism is not regarded as political ideology. It is regarded as Propaganda. It is true that none of the ideology tells truth. However, there is no truth at all in Fascism. Fascism is considered as Hodge-Podge of ideas. Fascism as an ideology came after Fascist states got established. These states appointed scholars to write philosophy of Fascism. Eg. Moussilini appointed Gentile Geovanni to write the philosophy of Fascism. Moussolini himself wrote the philosophy of Fascism. Fascism is not a systematic school of thought. Fascist scholars have taken ideas from different philosophers to justify their actions.

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Basic assumptions of Fascism –

Basic assumptions of Fascism can be drawn by observation about the type of social political system that was established in Italy & Germany during inter-war period. Though Nascism & Fascism were not the only two examples. There were other examples also like Japan under Prince Fumimaro, Portugal under Salazar, Peronism in Argentina. All these can be considered as variants of Totalitarianism. The basic difference in Fascism & Nascism was that fascism gave primacy to the state & Nascism talked about race.

Fascism core value was unity & solidarity. Fascism can be considered as ultra-nationalism. Hitler made race as the basis of nationalism. Race became the basis for the justification of Hitlers Imperialist policies known as Lenbensraum.

Human Nature

Fascism is reaction against rationalism. Fascism suggest that human nature is guided by passions & not by reason. Fascists prefer politics of passions. Insighlment of passions rather than appeal to reason. When passions are insighted they become uncontrollable & hence politics of passions necessarily culminates into violence.

Fascist leaders believe in the concept of inequality. They make difference between elites & masses. Masses to be controlled by elites. Leader has the central position. Fascism demands absolute obidience towards the leader. Leader is super man.

Society

Fascism give importance to society. Fascism called itself as 'Creative Destruction'. They were not satisfied with the values of enlightenment. Enlightenment promoted rationalism, individualism, questioning of customs & traditions. Fascism wants to destroy society & culture which was the result of enlightenment. They do not support the concept of atomistic man seperated from his culture & society. They want to recreate the society. where people are not isolated rather discover themself in culture, tradition.

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They talk about new man. New man who is organically linked to his community or nation. Fascism is known as ~~Pals~~ Palingenetic altra-nationalism. Palingenetic means re-birth of a nation.

- Concept of Nation -

They believe in cultural nationalism. Culture is a basis of Nationalism. cultural Nationalism treats nation as real & organic entity. It believes that nation has aspirit cultural nationalism is exclusivist.
Fascists were also altra-nationalists.

- Fascist ~~Fascist~~ concept of Rights & Liberty -

No concept of Rights only duties. Real liberty is not against the state but under the state.

- Fascist concept of War -

Fasism justify war. In the worlds of Moussolini, 'War is to ~~reseal~~ men, is what maternity to women'

- Fascist Economic Policy -

Autarky - means self sufficiency having minimum possible contact with international economy. Fascists pursuit the policy of corporatism. They claim that fascist state is a corporate state. Corporate state means state acting as equilibrium maker & taking care of the interest of both industry as well as workers.

- Fascism on Democracy -

Though Fascists came to power by democratic mean but later on became Anti-democratic. According to Mousso-lini Democracy is the luxury of rich nations and parliaments are nothing but talking shops.

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Sources of Influence -

1. **Plato** - Plato's theory of philosopher king. ultimate obidience towards the state.
2. **Machiavelli** seperation of ethics & politics & pursuit of pure power politics in the name of Nation.
3. **Roussou** - Romanticism in Roussou who gave the concept of General will & suggested that man can be forced to free.
4. **Hegel** - Hegel Held that state is March of God on earth. Moussolini used to say that there is nothing outside the state, above state. one should sacrifice himself at the alter of the state.
5. **Sorel** - Author of Reflections on Violence
Sorel has justified the use of violence. sorel has also justified the importance of Myths in politics.
6. **Nietzsche** - Nietzsche gave the concept of soper man. Nietzsche also suggested that will is more important than reason. There is a will for power in man.
7. **Bergson** - Bergson gave the concept of vitality. vitality is a Life force. Life is about passion not about cold blooded reason.
8. **Charles Maurass** - He gave the concept of Integral Nationalism (It can not be devided)
9. **Herber** - Theory of Cultural Nationalism.

Debate on the nature of Fascism

It is difficult to understand the nature of Fascism. Because Fascism is Hodge-Podge of ideas. It is also difficult to go for neutral analysis of Fascism. Because fascism is declared to be a bad word. Fascism is used in politics for opponents.

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socialists project fascism as extreme form of capitalism & real face of capitalism when it is in crisis. Fascists are projected as enemies of socialism on the other hand liberal scholars like Karl Popper & Western scholars like H. Arendt considered Fascism & Communism as varieties of Totalitarianism.
scholars like Laski held that Fascism is the last attempt by capitalism is to save itself. Laski calls fascism as 'counter-revolution'.
What is counter Revolution?
It is revolution against revolution. It was attempt by the elites to protect capitalism when they realised the growing powers of working classes. Fascist have actually put behind all major socialist, communist leaders behind the bar, though fascism came to power with mass support. It can be considered as the conspiracy by the rich.
Ortega Gasset in his book 'Revolt of Masses' considered fascism as the direct consequence of democracy getting converted into mobocracy.
Fascism is also considered as the reaction of 'centre Right'
What is centre Right?
Centre Right represent lower middle classes. At that time masses poors were being organised by socialist parties, rich were already holding power & privileges, middle classes were feeling neglected. Middle classes were facing heartships because of 1st World war. Fascist leaders made their base among the lower middle class

● Discuss the conditions that give rise to Fascism.

There are two schools of thought.
(I) Fascism is a product of circumstances. Eg. H. Arendt held that the growth of fascism can be associated with the -ve consequences of modernity as well as the situations which disturbed social & economic stability.

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∴ → Nolte has given following reasons for the rise of Fascism.

(i) If democracy is introduced in the society - where democracy is not a part of culture. where society is traditional & political values are not democratic.

(ii) Countries which failed to develop democratic culture were where democratic govt., coalitions failed to work.

(iii) Economic crisis which give rise to unemployment & hardships when pascism prevails, situation can be exploited by Demogaugic leaders (appear to be democratic)

(iv) Wars generate militaristic nationalism & respect for militaristic value.
1st World War not only generated militaristic value but also resulted into better inheritance of frustated nationalism & desire for revenge.

(II) Eric Fromm has given the concept of 'Fear of Freedom'
In reality there is a fear of freedom in man. Freedom gets associated with insecurity. There is a feeling of isolation in man. Hence, human beings look towards the strong leader who can provide them with the sence of security. There is a attraction for charismatic personality in human nature. Hence, the routes of fascism lie in human nature. Historical conditions only aggregate them. Hence, there will always be a fear of fascism.
It is to be noted that masses have never rejected fascism. Fascist powers were defeated in war.

- Present Situation -
Since 2008 there has been the growth of Rightiest forces as well as Neo-Fascists & the crisis of Liberal project.

Note - Fascism can be defined more by understanding those things which fascism oppose. Hence, Fascism is called as anti-ideology. Fascism is against Liberty, Democracy, Humanity, International peace.

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Fascism is also considered as worst form of majoritarianism.

missed in multi-culturalism

Critics of Multi-Culturialism -

1. **Feminist** – Susan Moller Oken
According to S.M. Oken, Multiculturialism is bad for women because almost all cultures are patriarchal & give subordinate status to Women.

2. **Liberals** - Brian Barry
Multi-culturialism promotes politics of identity & devides people & undermines the politics of developement.

3. **Amartya Sen**
Multi-culturialism results into Ghettoisation. Its not good for national unity.

4. **Chandran Kykuthas** -
There is always a subjugated internal minority in every culture. Eg. Homosexuals.

5. **Cosmo-politan Multi-culturialists** -
Jeremy Waldron & Seyla Ben Habib
Multi-culturialism under estimate people's capacity to adopt different cultures thus creates obtacles in the emergence of cosmo-politan culture.
There are scholars who suggest that Multi-culturialism can be practiced only by Liberals. (Isaih Berlin)
There are writers who believe that Toleration towards intolerents is not only appeasement but also threat to freedom & security.
Bruce Bawer in his book 'surrender: Appease Islam sacrifice freedom' suggest not to be tolerent towards intolerents.
Andrew Murphy also supports the similar view.

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FEMINISM

Feminism is a Meta-Ideology or Umbrella ideology. There are many schools of Feminism like Liberals, Socialists, Radical Feminism, Post-colonial and Post Feminism. The common threat connecting all feminist is the concern towards the exploitation of women & an attempt to end exploitation. Feminism is both a philosophy & A movement. As a movement Feminism developed in the form of 3 waves.

(1) 1st wave - 1st wave started at the time of French Revolution.

Mary Wollstonecraft is called as Mother of Feminism. In 1787 she wrote an essay - 'Thoughts on education of daughters'. In 1792 she wrote 'Vindication of the Rights of Women.' in this book she has questioned the exclusion of women from citizenship rights & duties. She has also presented the charter of Rights of women include with the declaration of Rights of Men.

Earliest form of Feminism is known as Liberal Feminism. The earliest demand for women movement was equal rights for women & par with men. The most important right for which feminists were active was for right to vote & that is why feminist movements were called as Suffragate Movement.

The Seneca Falls Convention in USA in 1848 was the 1st convention to formally demand Right to vote for women in USA. Suffragates were successful in getting Right to vote for women in Liberal Countries.

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In the same phase socialist feminism also, developed. In socialism the source of inspiration comes, from the works of Engels & not Marx. Engels in his book origin of family Private Property & a state, held that capitalism is exploitative of women, women should support communist revolution because it is the only way for their liberation. Lenin was also the supporter of equality for women. Lenin was the 1st person to give the ~~state of~~ status of Minister of cabinet rank to women. However, stalin was not progressive man. He had very traditional view with respect to women.

② 2nd wave – 1960's till 1990's It is known as R wave of radical Feminism. Radical Feminism is known as True Feminism or Real Feminist Theory.

Why Real Feminism Theory

It was radical feminist who have built new concept defining feminism. Liberal & socialist feminist lacked originality. It was just the application of liberal & Marxist principle in context of women. Liberalism & Marxism are known as Re Masculinist discources.

● Mothers of Radical Feminism –

① Simone de Beauvoir – Book – 'second sex'
"One is not born women, one becomes women."

② Betty Friedan – Book – 'Feminine Mystiques'

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Existentialism & Satre -

Existentialism has its roots in France.
The concept of Freedom goes beyond the concept of Freedom given by the Liberals. In his famous book 'Being and Nothingness' satre mentions that Existence is Prior to Essense. Existence means Person in its original sense whereas the Essense is the identity which others give. According to satre, Existence has a priority over essense. person should have freedom to determine his own identity. According to satre, the tradition of Essentialism has its roots in religions. All religions are Teleological. Religions suggest that Man is created by God. God wants man to fullfill certain Goals & if these goals are not fullfilled God punishes man. It appears as if Man is Robot, remotely controlled by God. It treats Man as an object rather than subject with consciousness on its own. Satre held that belief in God is a bad faith & belief in oneself is Good faith.

"One is not born woman, one becomes a woman"
— Simon de Beavoir

Above statement is based on satre ideas that Existence is Prior to essense. According to Simon de Beavoir we live in a gendered society.
What is Gendered society?
The society which gives privilege to a particular gender & which is a matter of disadvantage to the other Gender.
What is Gender?
Radical feminist make a difference between sex and Gender. Sex is a biological & natural term whereas Gender is social term.

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Simon de Beauvoir in her book 'The second sex' suggest that we live in a Patriarchal or Male dominated society. Women is not just the other sex women is the second sex. which also means given the secondary status. According to her, one is not born women because women as a Gender is a identity given by society. Society does not give opportunity to the person to determine his or her gender. society treats person as a object rather that subject. The process of becoming women starts since the time of birth society starts distinguishing between Girl child & Male child. The process continued from childhood to adolescence, Adulthood in all such stages women is forced suppos to leave claims of her subjectivity.

According to Simon de Beauvoir Patriarchy is bad not only for women but also for men. S.de Beauvoir have highlighted many myths associated with women One myth associated with women is that women enjoys motherhood but most of the women she found hated motherhood. she has criticised streams of knowledge like Medical Science & Psychology for perpetuating myths. In Medical science women is defined with reference to men. Psychology also perpetuate myths. she has criticised Sigmond Freud for perpetuating myths. Sigmond Freud suggested that the most important Goal of women is to appear attractive to Men.

Sigmond & Simon de Beauvoir

to end Patriarchy. She suggest women to come out of the comforts of patriarchy, take their own responsibilities & to have good faith.

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Betty Friedman

Book - Feminine Mystique

She has also exploded various myths associated with women. She has interviewed white women belonging to well of family in USA. She wanted to know whether they were satisfied with their life. Most of the women responded that they were not satisfied with their life & they feel that something is missing. However they were not able to determine the root cause of problem. Betty Friedan suggest the problem as problem of no name. She define that the problem is Patriarchy. According to her, it is not enough that women have right to vote it is also not enough that they enjoy social & economic rights. So long patriarchy continues it is not possible that women will be able to gain true satisfaction from their lifes. Betty Friedan also blames society, media, for developing myths relating to women. She has criticised women magazines potray career women leading unsatisfied life & housewife leading a happy life. She also suggested that the myth is propagative that a women should marry at a particular age after age they loose their attraction.
This forces women to leave their careers & higher studies which re-enforce the subordinate status of women.

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Other Radical Feminists like Shulasmith Firestone
Book - Dialectics of sex

→ Kate Millet
Book - Sexual Politics

According to Kate Millet & Shulasmith Firestone today we need to talk about not just the politics between classes we need to recognise politics between sexes. According to Radical Feminists Economic structure is not the basic structure of society rather Patriarchy. Patriarchy is the basic structure of society. Hence Engels was wrong when he suggest that once capitalism will end women will automatically liberated. women will not be liberated till social structure remain patriarchal.

There is a variation among radical Feminists. If simon de Beauvoir think that men & women can work together, Radical Feminist like Susane Brown Miller suggests that man cannot understand woman. They have not gone through the same experience like that of women. According to her men cannot be Feminists & Men actually hate women. Hence, Radical Feminists are against Heterosexual Families & calls for Sisterhood

Susane Brown Miller has analysed the events of Rapes Rape has nothing to *do with the satisfaction of sexual desire. Rape is an institution of Patriarchy to keep women under the permanent status of fear from men.

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(3) 3rd Wave :-

The 3rd wave of Feminism has started from 1990s. 1990s saw the emergence of post Feminism. The prominent scholar of post Feminism is Susane Faludi. She writes the back lash against Feminism. Post feminists do not support the radical Feminists arguement that women are subordinate sex. They suggest that women should celebrate womenhood. They do not support the Feminine Myths concept. They rather emphasise that the qualities of women are superior than men & they need to be celebrated.

Today Feminism has been internally differentiated. There are many schools of Feminism. Eg. Black Feminism.

(i) Black Feminism

Scholar - Bell Hooks -

According to her the problems of Black women differ from white women.

(ii) Post Colonial Feminism

Scholar - Chandra Talpade Mohanty

According to Post Colonial Feminists the problems of women in post colonial societies differ from the western world. They are under dual burden. 1st of Patriarch & 2nd of colonialism & neo-colonialism.

(iii) Eco Feminism

Scholar - Vandana Shiva

According to Eco Feminists men have exploited both women as well as nature.

The nature of women is closer to nature.

Women are the worst sufferers of environmental degradation.

Since the life of women is very close to nature, there cannot be any sustainable development without giving centrality to women.

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Basic Concepts of Feminism -

(1) Gender -

If class is the basic concept of Marxism, Gender is a basic concept of Radical Feminists. According to Radical Feminists we live in Gendered society. Women suffer from certain disadvantages because of Gendered society. Women not only suffer disadvantage they suffer violence because of their sex & because of Gendered society.

Human Developement Report of 2014, suggests that women Rights are violated not only during war times but even during normal times. Women continue to suffer even in the absence of conflicts. Report mentions the case of Malala Yusufzai & Physiotherapist in Delhi (Nirbhaya) who suffered because of their sex. Report also suggests that not more than 1% women around the world are land owners. Majority of poors are women (feminisation of poverty) It also suggest that in last 100 years not more than 25 women have been heads of states or Government. Report mentions about growing incidences of Honour Killings.

(2) Patriarchy

"Personal is Political."
- Carole Hanish.

Traditionally there has been a seperation between personal & political. The seperation was first made by Aristotle Aristotle confined women within the 4 ~~fat~~ walls of family. Aristotle even deprives women from citizenship. The tradition continued even in modern times. Even Philosophers like John Locke or Karl Marx have neglected the cause of women. With the exception of Plato & J.S.M none of the classical political philosophers has discussed the issue of women. According to Feminist scholars not only the field of politics even the theory of politics has been Masculinist. The reason for neglect is seperation bet" Personal & political.

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Cynthia Enloe - raises the question - 'Where are the women?'
What are the consequences of seperation -
(i) Limited participation of women in public sphere. Neglect of Women concerns in Policy making. Restricting state to public sphere & not permitting intervention of state in the family.
(ii) continuation of Exploitation & subordination.

Feminists scholars emphasise that Personal is Political which means that we cannot take family for granted. There is a dialectics of sex at the level of family. Family does not represent ~~Altruism~~ Altruism as suggested by scholars like Hegel family can also be exploitative. There is a need for intervention by state in the family for protection of women.

Altruism

The domestic violence Act, brought by Govt of India is an acknowledgement that the violence against women is not just limited outside of family but it is present within the family also.

→ Susane Moller Oken in her book - 'Gender, Justice & Family' has given 4 interpretations of the Personal is Political -

(a) There is a violence against women within the Family & State should take care of the rights of women within the Family.
(b) It means that there is no real seperation between personal & political. State does intervene in family. State make laws even related to personal sphere which impact women. In a patriarchal society state itself is a institution of Patriarchy & Hence no. of times the laws made by state related to Personal sphere are against women.
(c) Family itself is an institution of Patriarchy. Patriarchal values emerge in Patriarchal family. child who is brought up in ~~Hetero~~ Hetero sexual families saw the subordination of women inside the family & when find same subordination outside family, child starts considering it as normal. Hence without destroying Heterosexual family it is not possible to end patriarchal values.

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(d) patriarchal society creates many disadvantages for women in labour market. Women are under dual burden. Many organisations do not prefer women. In general women have lower skill sets. Hence, it results into subordination of women at work places which again re-enforce patriarchy.

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(3) **Concept of Citizenship and Equality –**

Feminists are against the concept of universal citizenship. Universal citizenship means equal treatment for all. Feminists like Iris Marion Young support the idea of differentiated citizenship. They want differential treatment or positive discrimination by the state in favour of women.

(4) **Concept of Equality –**

Feminists support differentiated Equality rather than simple equality. Simple equality implies colour blindness. State need to differentiated between men & women make special provisions in favour of women. Hence according to Feminists, "By differentiating Equality we equalise the differences."

Comparison between Liberal Feminism & Radical Feminism

Feminism is a Meta ideology & there are many schools of Feminism. Feminism developed in the form of waves. 1st Wave starting from French Revolution till 1960s was dominated by Liberal Feminists. Since 1960s we see the second wave known as Radical Feminism.

Radical Feminists do not regard Liberal Feminism as a true feminist discourse because it is just an application of liberal concepts in context of women. Radical Feminism emerge from the specific experience faced by women because they live in gendered society. Prominent Radical feminist like Simon de Beauvoir and Betty Friedan and others have tried to analyse patriarchy. If Liberal Feminism demanded civil & political rights Radical Feminism aimed at ending the patriarchy

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If Liberal feminism is for upliftment of women & to give equality of status to women & Radical Feminism stands for liberation of women & emancipation of women.

Liberal Feminists continue with the conventional approach of maintaining the seperation between personal & political whereas Radical Feminists suggest that personal is political.

Liberal Feminists emphasis on individuality whereas Radical Feminists talk about sisterhood.

Liberal Feminists managed political struggle & talk about legal constitutional route, Radical Feminists prefer consciousness raising. They also suggest radical suggestions like ending hetero sexual families.

- Short Note– Feminisation of Poverty

The term Feminisation of poverty was coined by Diana Pierce in 1978. Feminisa° of poverty suggest that women form the majority of the poor population in the world. The phenomena of feminisation of poverty has increased since neo-liberal globalisation has expanded. Datas suggest that even in countries like USA the largest no. of homeless population constitute of women. Similarly, china has poor record with respect to Feminisation of Poverty. feminisation of poverty is more acute in developing countries The root cause of it is patriarchal structure of the society. Women suffer from multiple deprivations because of their sex. Since they suffer from deprivation in terms of educational empowerment., Nutritional empowerment, violence against women that they suffer more. Phenomena of feminisa° of poverty has increased because of rolling back of the state. The most adverse impact of withdrawal of subsidies has been on women.

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Short Note → Concept of Missing Women-

The concept of Missing women was 1st given by Amartya sen in 1990. A. sen originally estimated that more that 100 million women are missing. Missing women points towards the adverse sex ratio. Problem is more prominent in Asian countries & Northern Africa. Even the Problem of Missing women is associated with Patriarchy. He gives the example of India where female infanticide, sex sective abortions, maternal morality, poor health care & nutritional standards results into such situations.

Impact of Globalisation on Women.

The present model of liberalisation is Neo-Liberal. Neo-liberalism is based on the survival of the fittest. Various studies show adverse impact on women aroun the world but more adverse impact in developing countrie & further adverse impact on rural women. As depriva-tions increase adversity increases. MNCs of developed countries have established their units in those countrie where cheap labour is available, where poor norms exists so that Profit can be maximised. There has been the growth of unorganised sector where no norms exist. studies show that liberalisation has exposed women to more exploitative working conditions. Liberali-sation have adversely impacted Agriculture in developing countries. It has forced unplanned migration. Women are forced to live in insecure environment, women are forced to work in exploitive & oppressive situations. Withdrawa of state from health sector has impacted women health. It is true that Globalisa" has created many opportunities also but women lack capabilities to explore the opportu-nities.

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Short Note → Feminist Foreign Policy –

Sweden became the 1st country to formally adopt feminist foreign policy. Former US secretary of state Hillary Clinton has also emphasised on the necessity of the feminist foreign policy. She has suggested that human rights are women rights. If USA gives primacy to protection of human rights it has to take up the case of exploitation of women in countries like Saudi Arabia. The Foreign Minister of Sweden has set up following obj. of Sweden's Foreign Policy:

(i) Strengthening Human Rights of women.
(ii) Fight against gender based sexual violence specially in war & post war situation
(iii) Increasing participation of women in peace processes.
(iv) Economic Empowerment of women,
(v) Strengthening re-productive rights of women & Strengthening influence of women in all areas of society ie. Political, Social.

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THEORIES OF STATE

Importance of the State

The most imp. concept of Political Theory is state. It is said that Political science begins & ends with the state. There was a time in Political science when the focus was shifted from study of state as an institution to the study of politics as a process scholars like Theda skocpol called for bringing the state back in. She suggested to maintain the centrality of state in political analysis.

What is the idea of the state?

State is an abstract concept & Govt is the concrete manifestation of the state. State represent authority Authority is needed so that people can lead collective life.

Evolution of State

In the western world we see the following forms of the state:

(i) Earliest form was of City state,
(ii) Roman Empire.
(iii) Nation state.

In Europe we have also seen the growth of supra-national institutions i.e. European union. Still the dominant form of state around the world is Nation state. Nation state is an European institution which emerged in Modern times but became the universal Institution as a result of colonialism & Imperialism.

What are the Elements of the Nation state?

Nation state comprise of four essential elements-

(i) Territory
(ii) Population
(iii) Government
(iv) Sovereignty

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Modern Nation State is a territorial entity. It is based on the idea of centralised govt. One of the earliest philosophers theorising Nation state include Thomas Hobbes. Hobbes has clearly established that in a particular territory, on the population living in the territory the ultimate power will be of the state. Max Weber described state as an institution which has monopoly over the use of coersive power in a particular territory.

- **Concept of Sovereignty -**

Refer previous chapters.

- **Theories of Sovereignty -**

① **Monistic Theory of Sovereignty -**

Supporters - Hobbes, John Austin

Monistic Theory suggest that in a particular territory there is only one sovereign & sovereignty is concentrated at one place i.e. state

① According to Monistic Theory, sovereignty is - Permanent characteristic of state it is inalienable and indivisible

→ **Criticism of Monistic Theory -**

Monistic theory has been criticised for following reasons -

① It is a legalistic view rather than political view. The approach of law is textual, whereas political analysis is contextual. There can be a big gap between theory and practice. In reality sovereignty is always a compromised concept. No state can exercise sovereignty in ideal sence. Externally the choice of state is limited by the powers of other actors & its own powers. Internally sovereignty will be limited by other associations, peoples customs and traditions, no state can impose its will on the people without consent of the people. Hence monistic sovereignty is a legal fiction

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(ii) According to Laski, the idea of Monistic Theory of Sovereignty becomes outdated since the time of emergence of federal form of govt. In federal form of govt there is more than one centre of power & sovereignty gets devided.

(iii) Monistic Theory of sovereignty is not in the interest of the growth of International Peace. Monistic Theory suggests that state is supreme. There is no higher authority beyond state. Hence, all commitments of a person are just towards the state.

→ Views of Laski on Monistic Theory –

"It would be of lasting benefit to the discipline of political science. If the entire concept of sovereignty of state is expunged out of the discipline."

Sovereignty is considered as the most important concept in Modern Political theory. Modern Nation state is the defining form of political organisation in Modern times. Sovereignty is the most imp. element of Modern Nation state. Hobbes is recognised as the 1st Modern thinker because he gave the 1st complete theory of sovereignty of a state. He clearly established that on a particular territory there can be only one sovereign. Man has only two options either to live under the state or anarchy. Hobbes theory is known as Monistic Theory which is further developed by John Austin who listed the characteristic of sovereignty that it is indivisible, inalienable permanent characteristic of the state.

Laski is a critic of Monistic Theory. Laski is an internationalist who believed that Monistic Theory of sovereignty is threat to a international peace which has become a necessity. He believes that international organisations & law have to be strengthened to avoid world wars.

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He also believed that concept of sovereignty have become outdated with the emergence of Federal form of Govt. He also suggest that Monistic Theory is nothing but a legal fiction. Hence it would be of lasting benefit..... In the words of Laski. 'Since society is federal, authority should also be federal.'

IMP

(2) Pluralist Theory of sovereignty -

scholars - Laski, MacIver

→ What is pluralist theory of sovereignty -

According to pluralists there are multiple centres of authority rather than the single centre of authority. According to Monists all powers in a particular territory is concentrated in the state. whereas according to pluralists power is distributed among various associations. According to Pluralists, state is also an association.

→ Why pluralist Theory?

(i) Monistic Theory is not conducive for peace or internationalism. It has become

(ii) It has become outdated because of federalism.

(iii) It is a fiction.

→ Source of Influence

(i) The distribution of authority in Medieval Europe. In medieval europe there were multiple centres of power. Authority was devided among Roman Emperor, church, Prince & Hierarchy of Fuedal lords.

(ii) Monistic theory is a characteristic of capitalist society. whereas pluralistic theory is a characteristic of post capitalist society.

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What is philosophical justification of pluralism ?

According to the supporters of pluralism. Universe is multi-dimensional. Man is also the part of universe. Man is also multi-dimensional. There are multiple needs of Man. One association can not fullfill all the needs of Man. Hence, one association cannot claim the monopoly over the obligation of Man. In order to fullfill his needs man has created many associations. State is only one such association. Since other associations also fullfil the needs of Man they should also have authority & man should be obliged towards them also.

→ What is Pluralist view of sovereignty?

Sovereignty should be devided among different organisations. We can give the example of European union where sovereignty is not monopolised by any state. In many area sovereignty has been shifted out of the state into the supra national bodies. Like member countries of Euro zone do not have sovereignty on their currency and Monetory policy. Decision making has been shifted to European central Bank.

→ Criticism of Pluralistic view of sovereignty

Pluralistic Theory of sovereignty is a source of confusion. Why?
Pluralists are not anarchists. Pluralists do not want to give authority to the state But at the same time do not end the state. The type of functions state performs results into the superiority of state over other institutions. Regarding Pluralists it is said that they want to take keep the cake and eat it too.

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Pluralistic

Lecture 33
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"If society is federal authority should also be federal." – Laski

- Above statement of laski deals with the justification for pluralistic theory of sovereignty.
- Pluralistic Justification
- Sovereignty - Mod. Pol. Theory
- Sovereignty - Historical
- Exponents of Monistic → pluralistic
- Criticism and why.

What are the arguements for justification of Federal Authority

- Laski's arguement is since society is federal so authority should also be federal.

How society is federal

Man has multiple needs. One organisation cannot fullfill all his needs Hence man has created various associations. All such associations like family, kinship group, professional org., lot groups, together constitute the society. State alone cannot perform all the functions. These organisations should also have some amount of freedom & authority, only state should not have authority of obliga° of man. other org. also deserve the obligation.

Since society has changed, Hence monistic concept appears anachronistic. Hence, Pluralistic theory is a better theory of sovereignty. It is also more realistic view of the sovereignty of the state.

"State is a keystone of social Architecture." – Laski

Laski is a pluralist. Laski does not support the monistic theory of sovereignty of the state. According to Laski, since society is federal authority should also be federal. pluralism is not anarchism. There is an inconsistency in the approach of pluralists towards the state. They donot favour abolishing state but at the same time they don't want to give excessive power to state. Regarding pluralist it is said that they want to keep the cake & have too. Inconsistency comes because of the unique role state has. It is true that state is one of the association like other associations. But state plays the role of equilibrium maker among the competing interest.

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state emerge as a key stone of social Architecture about which social Architure cannot remain intact. It is true that pluralist theory of state sovereignty is inconsistent but it does not undermine the relevance of Pluralistic Theory of state. Not only it is more realistic it is more desirable also. Its importance increases in the present age of Globalisation where multi-level governance is emerging.

Q. Analysise the impact of Globalisation on sovereignty of the state.

→ Define Globalisation

Globalisation is understood as borderless world. Globalisation means world becoming Global village.

Globalisation started in a more prominent way since the disintegration of USSA or since the end of cold war

→ What is sovereignty?

Sovereignty is the essential element of the modern natic state. Modern Nation state is a territorial entity. Modern natio state emerged out of the Roman Empire. In case of Modern Nation state Nation became the basis of statehood. Treaty of westphalia of 1648 gives 1st former recognition to the idea of Nation state. As described in the Theories of schola like Hobbes on a set of people living in a particular territory, authority of the state shall be supreme. Sovereignty of stat has two dimensions i.e. Internal & External.

Since 1990s we are witnessing the Proliferation of Global conventions, regional, international supra-national institutions. There are Global challenges. It is beyond the capacity of any single nation state to deal with these challenges on its own. Hence Nations are expected to act in concert with each other. Globalisation expects the state to go for more responsible exercise of sovereignty. Sovereignty is always a diluted concept. Globalisation has diluted it further. However, the impact is not been same for all countries. The sovereignty o powerfull countries is less compromised that the weaker countries. Regarding the impact of Globalisation on state & Sovereign there is a difference of opinions among scholars

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1st School of Thought -
They believe that Globalisation is real & the sovereignty of a state has been actually compromised.
Scholars - Susan Strange, Kenichi Ohame (Borderless World) Marshall Mcluhan (Global Village)

2nd school of Thought -
State centric view. There is no real Globalisation. Globalisa" is controlled by the states.
Scholars - Robert Gilpin ; Ethan Kapstein

3rd school of Thought -
According to them, Globalisation is not a zerosome gain, We are witnessing both. In some context Globalisation is winning & in some context states are holding the power.
Scholars - David Held, Bob Jessup

Conclusion
To what extent Globalisation is impacted sovereignty of state remains a matter of debate.

Short Note - Responsibility to Protect
Sovereignty is now being redefined. It is now defined not as power of the state but the responsibility of the state. No
Need for Re-defining Sov.
Sovereignty has been the most sacred principle of International law since the treaty of westphalia. In post cold war world order there has been intra state conflicts rather than inter state conflicts. United Nations Charter Art. 2(7) does not permit @ intervention of UN in the domestic affairs of the state. Such provision created dilemma for the international community with respect to the civil war in Ravanda. Hence, Govt of Canada, proposed a commission to consider the issue of intervention and state sovereignty. commission has given the concept of responsibility to protect in 2001. Adopted UN World summit 2005, formally acknowledged responsibility to protect. According to the convention —

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(i) sovereignty is responsible to protect people.
(ii) Primary responsibility to proted is of the state.
(iii) In case state fails to protect or itself becomes threat to the security of people, it becomes the responsibility of the international community to protect
(iv) UN Security Council can even authorise Military intervention
(v) The use of Military should not be the 1st option rather last option.
(vi) The amount of force to be used has to be proportionate.
(vii) The ecay responsibility to protect was implemented in case o Libya ~~Syria~~ in 2011 has resulted into the criticisms of the doctrine Nato-led Military action had violated all the norms.
(viii) Govt of Brazil has proposed RWP (Responsibility While Protection). It suggested to ensure the accountability of those who are implementing responsibility to protect.

Q. Discovery of sovereign in a federal state is a impossible misadventure.

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(a) Liberal Theory of State

1. Origin of State
2. Functions of the State
3. Nature of the State

(1) Origin of the State –

There are two theories of the origin of state :

(a) Social Contract Theory

(b) Evolutionary Theory

(a) Social Contract Theory –

Significance – Social contract Theory implies that a state is not created by God rather the product of the free will of Man. For liberals state is an institution of utility.

(b) Evolutionary Theory

It is given by ~~MacIver~~ MacIver

MacIver does not support the social contract Theory. He suggest that state is not the product of contract rather the result of evolution. State has emerged from various associations like family, kinship groups, church and other associations.

MacIver is a sociologist. MacIver is also a pluralist & there is a reason to suggest that a state comes from different spurces to justify that other associations should also enjoy some authority. According to MacIver there are many organisations which are prior to state & which do not depend on the state.

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② Functions of the state -

① Classical Liberals & Neo-Liberals, the ideas are Night watchman state / police state.

② Positive Liberals, Social Liberals they support welfare state & capacity building.

③ Nature of the state -

According to Liberals state is Neutral. State is a equilibrium maker in the society.

According to Hegel state represents universal Altruism.

● Marxist Theory of the state -

There are two perspectives / approaches on the state.

① Instrumentalists Perspective

② Structurialists Perspective (Relative Autonomy Theory)

Instrumentalists Theory - Karl Marx in his book - 'Communist Manifesto.'

Structurialisty Theory - Karl Marx - in his book - 18th Brumaire of Louis Bonaparte'

→ Origin of the Marxist theory of the state -

State is not the product of the free will of the man. It is the product of force. origin of the state is in subjugation of weak by the strong. Hence, state represent power.

Marxist do not support the Liberal Arguement that a state is a neutral arbitor. State is an instrument of the capitalist class. According to Karl Marx, Economic structure is the basic structure, State is a part of superstructure. The class which controls the basic structure also controls the institutions of super structure. Neutrality of state is false consciousness.

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Instrumentalist Perspective -

- "State is an Executive Committee of the Bourgeoise class."
  —Karl Marx

→ ① Introduction
Nature of State From Marxist Perspective

② Context
Marx does not subscribe to the Liberal view that state is a neutral.
On the contrary state is the executive committee of Bourgeoise class.

③ Meaning of Executive Committee
Executive committee has no autonomy to make decisions.
It is simply to implement the agenda of Bourgeoise class.

④ The basis of the arguement
Marx theory of historical materialism.

⑤ Conclusion
Though state is the core concept of Political science yet all concepts in politics are contested concepts. The nature of state remains a matter of debate. For idealists, state is a source of virtue, for classical liberals, state is a necessary evil, for anarchist state is a unnecessary evil, for feminists state is a institution of Patriarchy.
There is an internal debate between Marxism itself.
For instrumentalists state is a instrument but for other school of thought state does enjoy relative autonomy.

- "State represent irreconciability of class Antagonisms."
  —Lenin

→ ① Introduction
(i) This is marxist view of the state.
(ii) Lenin is orthodox marxist & according to Lenin Historical materialism class struggle revolution are fundamental Principle of Marxism.

② What lenin says
like Karl Marx, Lenin also believes that state is not neutral rather state is class institution for the instrument of the dominant class.

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According to Lenin, Historical Materialism suggest that economic structure is the basic structure.
State is a part of superstructure.
In all stages of History there have been two classes i.e. owners & Non-owners. owners are the exploiter & non-owners are exploited.

There can never be a reconciliation between the interest of exploiter & exploited.
The presence of state itself shows that class antagonism cannot be resolved.
State is an instrument created by Bourgeoise class. State uses force on the poors in the interest of the Bourgeoise class. Poors cannot expect justice from the state. Hence, the only option is revolution. So long classes exists, class struggle exist & so long class struggle exists state exists.

In communism classes end so class struggle ends. Hence state withers away.

③ Conclusion

Above disription of state is from Marxist perspective. Whether state represent irreconcilability or not remains a matter of debate.

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Relative Autonomy Vs Instrumentalist

Lecture 34
27/01/2017

Instrumentalist theory gives no autonomy to the state, state has no freedom of action. whereas the 2nd theory suggest that in some situations state gains some amount of autonomy that state appears neutral. unlike liberals Marxists do not believe that state is completely neutral. It is only relatively neutral.

what does relatively neutral mean?

State may appear neutral b/w conflicting interest (Propertied class and poors but ultimately state comes for the protection of rich. In crisis situation state will support the rich. E.g. If we apply relative autonomy theory with respect to state in USA despite the fact that big Banks were responsible for subprime crisis which has created hardships for large section of the people, state came to the rescue of the bankers bail out the banks. On the other hand state has used police force on the people in occupied wall street movement.

Why state becomes relatively Autonomous?

It all depends on the historical conditions prevailing. In his books 18th Brumaire of Louis Bonaparte he has explained the situation of 'Bonapartism'.

What is Bonapartism?

Those states are Bonapartist states where executive is very strong. It may happen that different social groups are equally strong so that a particular group is unable to dominate the basic structure. In such situations state becomes relatively autonomous. both groups may compete for the support of the state.

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Example

We can give the example of Germany under Hitler. In Germany both capitalists as well as workers were organised. This allowed state to gain autonomy. State gained primacy or leadership. It is also true that ~~it~~ ultimately fasist state protected the interest of propertied class.

It may also happen that more than one propertied class exist e.g. Feudal class as well as capitalist class as in 19th century France. Since none of the class is able to dominate the economic structure state gains relative autonomy.

Even Gramsci has also given similar concept. Gramsci has given the concept of 'Integral state' the components of integral states are civil society or political society or state. Because of the civil society state appears autonomous However when civil society fails state comes for the rescue of the capitalist class. Structural Marxists like Althusser, Nicole Poulantzas also support relative autonomy theory. According to Althusser, state in capitalist society possess to type of operaters:

(i) Ideological state operaters (Institutions of Civil society)
(ii) Coersive state operaters (Police & Military)

Relative Autonomy theory is also known as structurialist theory. In structural Marxism importance is given even to the elements of super structures. Marx has adopted structurialist approach in 18th Brumaire. Structurialism was developed by Gramsci & that is why he is known as Theoritical on a super structure. Gramsci has held that superstructure is not just reflection of base rather structure in itself. According to him, there are two layers in superstructures.

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Althusser has further modified structuralism & suggested that there can be multiple structure and not just two structures.

Debate between Ralph Miliband & Nicole Poulanzas on the Nature of State

→ Ralph Miliband - is Instrumentalist

→ Nicole Poulanzas — is structurialist.

They have analysed the nature of post capitalist states.

what is post capitalist state?

Capitalism means original capitalism as existed at the time of Karl Marx at that time capitalism was inhuman

Post capitalism After Karl Marx the nature of capitalism has changed it has became more humane. laisses faire state gave way to welfare state.

Their debate is on welfare states in western countries.

Claims of Liberals -

Nature of state has changed with the introduction of Right to vote for worker state takes up many welfare functions in favour of poor hence we cannot say that the state is the instrument of the rich. The nature of capitalism has changed.

Concept of Managerial Revolution

Managerial Revolution as a concept has been advanced to show the changed nature of capitalism. Managerial revolution suggests the disconnection between the owners of capital & decision makers. Capitalists are no more decision makers. Decision making has shifted from capitalist class to managerial class.

Managerial class is a open class. Anyone can join the managerial class. Even the persons coming from the working class families can be the managers. In industry decisions are taken by managers now. The nexus between Money & Descion Making has been broken. The norms in the industry has changed.

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capitalists no more control the state.

American

Ralph Miliband Analysis of Post capitalist state.

Book- The state in capitalist society Published in 1969.

Ralph Miliband has shown that the Nature of state has not changed despite the fact that workers have Right to Vote According to him, managerial revolution is a myth. In western countries economic power is still concentrated in the hands of the capitalist class. Though managerial class is an open class but the chances of sons & daughters of working classes joining the managerial class is extremely rare. Until & unless they are extremely talended it is not possible for them to join. Management education is unaffordable.

Ralph Miliband has also analysed the Bureacracy & Judiciary in these countries. Even Bureacracy & Judiciary remains elitist & it is hardly representative thus according to him there is no real change Economic power remains concentrated. The class which holds economic power also holds the political power. Hence, state continues to be the instrument of rich/ capitalist class.

Nicole Poulanzas

More Realistic.

Nicole Poulanzas does not agree with the instrumentalists view rather support the structuralist/ relative autonomy theory. According to him state in western liberal societies can be considered as an instrument of a particular class.

Introduction of universal Adult franchise has changed the nature of the state. In these countries competitive party system & electoral system exists. In order to come to power political parties have to get support from the large section of the society. Hence there programs cannot be exclusive to a particular class. This makes state neutral. In order to remain in power party has to take care of the interests of the different classes.

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However, Poulanzas is also agree that state is only relatively autonomous it is not completely autonomous & in the case of crisis the state will come to the rescue of rich.

Feminists Theory Of The State

According to Catherine Mackinnon there is no feminist theory of the state.

Why?

Feminist theory is about power, gender & patriarchy.

Feminists are against patriarchal society.

Feminists position with respect to state is ambivalent. (they are not clear about state) on one hand they consider state as an institution of patriarchy on the other hand they believe that the state can play the role in improving the status of women.

According to Catherine Mackinnon; "when i look at the state state appears Male to me"

What is the implication

state is a institution of patriarchy. States perspective is masculanist. Hence, it is very difficult that women can get justice through the state or through the Bureaucracy Judiciary & other institutions of the state. Catherine Mackinnon is lawyer by profession. She has analysed the laws related to women. Though these laws are for women yet these laws are full of loopholes. It appears as if they are made not for women but for men. She have analysed rape laws the cumbersome judicial process in such situations that it becomes extremely difficult for women to get justice.

There is no deep analysis of the nature of the state in Feminism & it is believed that feminists theories too general & feminists need to generate more sophisticated understanding of the nature of state.

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In feminist theory of state we can also bring forward the views of Iris Marion young who has suggested the concept of differentiated citizenship. We can also put forward the views of carole Pateman who in her book 'sexual contract' has criticised the social contract scholars who have taken the consent of women for granted. They have not specifically mentioned about the partifipation of women in the contract or whether women were active participant in choosing the system under which they have been forced to live. She also believes that if contract had been based on the nature of women we would have been living in a much better world.

Post Colonial Theory of the State –

Theories on Post Colonial State

What are post colonial states?

The states which had colonial past but where colonial legacy is still continuing. Former colonialism is over but neo colonialism continues. States like USA, Australia, New Zealand cannot be considered as post colonial Because they have overcome the colonial legacy.

The term Neo-colonialism was coined by former President of Ghana Kwame N Krumah.

What is colonialism & what is colony?

Colonialism & Colony is a term of Marxist discourse. Marxists also use the term dependency. Difference in inter-dependence & dependence. Interdepence is a situation of mutual give & take. whereas dependency is where one party gets benifited at the cost of the other.

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Lenin has provided the theory of Imperialism & Colonialism.
Colonialism results into -
(i) Unequal Exchange
(ii) Uneven Development

Marxist scholars use the term core & periphery, metropolis & satellite to explain the situation of dependency.

→ **Theories of Post colonial States**

Post colonial states have been studied by Liberal perspective as well as Marxist perspective.

Liberal Perspective

Approach of Liberal scholars -

(i) They have applied political development & political modernisation approach.

Contribution of F.W. Riggs (father of deve. Admin")

In case of Third World countries Riggs has preferred the term 'Prismatic Societies'

Prismatic Society -

Prismatic Society means societies in transition societies moving from the underdeveloped stage to developed stage, we can call it as developing societies.

According to him, Prismatic Society reflects following feacutures -

(i) **Formalism** - It means big gap in theory & practice.
(ii) **Polynormatimism** - co existence of national & irrational norms of policy making.
(iii) **Polycommunalism** - Entire country is not one community rather there are different communities. Communities co-exists but are suspicious about each other.
(iv) **Economic System** - Bazar-Canteen Model
(v) **Administrative System** - SALA model. In administration we see the combination of national rules as well as family & kinship norms
(vi) **Functional overlapping** - There is no functional specialisation, functions overlap e.g in many countries army is involved in civilian Administration.

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(vii) Attainment Norms- For some it is achievement & for some it is ascription (status)

(viii) Heterogenity - co-existence of modernity & tradition.

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Contribution of Gunnar Myrdal -

Book - Asian Drama.

He has studied India & Indonesia & has coined the term soft state for India.

What is soft state?

Soft state has limited capacity to enforce laws and policies.

Soft state symbolise poor implementation.

what is the consequence of the soft state?

(i) Poor law & order situation

(ii) Failure to achieve developemental objectives.

Reasons for India a soft state -

(i) Corruption

(ii) Legacy of Gandhi

Gandhi has build the culture of disobidience towards the authority. Indians have won freedom by such methods hence there is a legitimacy towards such methods.

(iii) Indian Culture - w

where there is more respect for one who breaks the law than who respects the law.

Former US Ambassador to India & Prominent Political Scientist Galbraith called India a Functional Anarchy.

According to Gunnar Myrdal, ever charismatic leaders like Nehru failed to achieve & implement programs like land reforms.

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Marxist Analysis

There are 2 schools of thought in Marxist Analysis:

1. **Instrumentalists / Dependency school** -

Scholars - A·G·Frank, Celso Furtado, Raul Prebish, Samir Amin, Imanuel Wallerstein.

Dependency school is developed by the scholars of Third World countries. Dependency school is influenced by Lenin. Dependency school Theorists have analysed the phenomena of Neo-colonialism. Dependency school has analysed the Nature of state in Africa & Latin America. Some of the basic concepts of Dependency school are:

(i) Colonialism has ended only in formal sense.
(ii) Neo-colonialism & Neo-imperialism is continuing.
(iii) Colonialism is a phenomena associated with capitalism. capitalism has become world system. ~~State~~
(iv) States can be devided into core states & peripheries.
(v) Since the origin of capitalism core & peripheries have got interlinked.
(vi) Prosperity at the core has its roots in the poverty & the peripheri.
(vii) There is an unequal exchange, which results into uneven developement. The developement of core & the developement of underdevelopement at peripheries.
Those countries which are more closely associated with the core countries. ~~where~~ situation is worse.

According to these scholars the states in these countries are puppet states or clientlist regime (Like Saudi Arabia, Bahrain) The states in these countries are the instruments of Metro politan Bourgeoise.

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IMP ②

Structural School / Theory of over Developed state -

The Theory of over developed state is given by Pakistani scholar Hamza Alavi

Though theory is about Nature of state in Pakistan But it is also applicable in case of other S. Asian States Eg. India, Bangladesh

According to Hamza Alavi, The Nature of the state in Pakistan needs more deeper analysis than the instrumentalists approach. It will be inappropriate if we suggest that the state in Pakistan is just an Instrument of the capitalists class of core countries.

Hamza Alavi, has applied the structurialists / relative autonomy theory in case of Pakistan. even relative autonomy theory needs modification.

Salient points of his theory of overdeveloped state -

It is wrong to apply the same concepts for analysis of the nature of the state in case of post colonial societies, which is applied in case of western countries.

why?

There is difference in Historical conditions.

(i) State in western countries is an instrument of the capitalist class.

(ii) State in post colonial countries is not an instrument of the indegenous capitalist class. State actually mediates among the 3 competing classes.

(a) Metro-politan Bourgeoise

(b) Indegenous Bourgeoise

(c) Indegenous Feudal class.

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The specific situations which are prevailing makes state the most powerful class.

The state in Pakistan comes near to the ideal of Bonapartiest state. In the words of Hamza Alaoi, Pakistan is 'Military- Bureaucratic oligarchy'. The entire power in Pakistan is concentrated in the hands of the executive class.

The study of Hamza Alaoi belonged to 70s. From his perspective the nature of the state in India does not differ much except that the role of Military in India is not like that of Pakistan.

→ How situations in Post colonial countries differ from that of western countries?

(i) State in western countries (capitalist state) is a natural growth. with the rise of Bourgeoise class they have created the system of state. Rules, laws & Authorities according to their convinience.

(ii) State in post colonial societies is an imported institution. It has not been created by the indegenous Bourgeoise class. rather it has been created by the colonial masters. Hence, states in these countries have been created for serving the interest of the metro-politan Bourgeoise.

• What is the meaning of overdeveloped?

In western countries there is a perfect congruence between economic & political system. once economic system became modern (capitalist) elements of superstructure also changed accordingly i.e. Modern Nation State came into existence.

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In case of post colonial societies there has been a mismatch. society remained traditional, colonial master have introduced modern political system- Hence there is a mismatch b/w stage of Economic developement or development of society & the stage of developement of political system. In comparison to ~~economic~~ political system state is over developed.

After independence, the direct control of Metro-politan Bourgeoise has ended but indirectly they continue to influence. The state in Pakistan becomes an equilibrium maker among 3 classes.

- **Nature of overdeveloped state -**

(i) over developed state comes near to Bonapartist state.
Why?

(a) **Colonial Legacy**

Colonial Masters have created extremely powerful state for protection of their colonial interest. officials enjoyed lot of immunity.
Tradition continued even after independence. Eg. In India Official Secrets Act continued, Preventive detention have been made a provision in the constitution.

(b) **Legacy of National Movement.**

The political Parties which played prominent role in the National Movement came to acquire political power after independence. They enjoy lot of legitimacy in the eyes of people. People hardly raise question mark on the intention of the leaders.

(c) Model of developement which was adopted in these states has put lot of resources in the hands of the state. This has further strengthened the position of the state. Thus state emerged the most powerful class in itself.

Bonapartism- where state is very powerful

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CONCEPT OF POWER, HEGEMONY, IDEOLOGY, LEGITIMACY

Concept of Power

Power is the central concept of political science. However, like all concepts power remains contested concept. Different scholars have looked at power in a different way.

- **Conventional View of Power-**

In conventional sense power is considered as domination. According to Robert Dahal, Power is a relational concept. Power is the ability to get things done by the others even against their wish. Power is considered as coersive by nature. N

- **Non-conventional View of Power-**

Hannah Arendt has given non-conventional view of political power. According to H. Arendt, political power does not mean coersion it rather means empower-ment.

→ Steven Lukes give 3 dimensional view of power:

(i) Power in Formal sense- (Office) (Max weebers view-weberian)
(ii) Power as agenda setting (Marxist view)
(iii) Power as thought control process. (Gramscian view)

- **Theories of Power**

(1) Elitist Theory
(2) Pluralist Theory
(3) Marxist Theory
(4) Gramscian Theory
(5) Weberian Theory
(6) Arendtian Theory
*(7) Post Modern Theory *** Imp. (Michel Focault) Foucault

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Purpose of the Theories of the Power-

Theories of power suggests location of power.

(1) Elitist Theory of Power

- Oldest theory.

According to elitist theory, power lies with the elites.

Who are elites?

Human population can be devided into -

ⓐ Elites

ⓑ Masses.

Elite is a special class. ie. Not a ordinary.

There are special qualities which make a person elite

According to Plato & Aristotle, Reason & Courage are the qualities of the ruling class or Masters.

According to Machiavelli, Prince has to be Fox & Lion.

→ Elitist Theory of Power has been given by Italian scholar Pareto.

Salient Points of Pareto's theory

Book- "Mind & Society."

According to Pareto, the History of Mankind is nothing but graveyard of Aristocracy.

In every society there have been two types of elites ie. Foxes & Lions. According to Pareto, History is cyclical in nature & power flocos in a closed loop. There is no trickle down effect of power. This theory is known as theory of circulation of elites. Elitist theory of power is the basis for elitist theory of democracy.

According to Elitist Theory of Democracy, Power with Masses is a Myth. Masses do not have capacity to hold power or exercise power. The only role masses can play is the election of elites. It is sufficient for democracy.

Aristocracy = elite class

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Elitist theorists of democracy compares, elites with leadership. Democracy is not incompatible with leaders.

→ Mosca

Book- 'The Ruling Class'

Mosca, made the difference between the governing class & the governed class. According to Mosca, only elites enjoy power. There is a difference in Pareto & Mosta. According to Pareto, Being elite is a Natural quality whereas according to Mosca in democratic societies ability to organise masses make person elite. Thus, the status of elite depends upon organisational skills.

→ Robert Michels

Book - 'Political Parties'

Robert Michels have given 'Iron law of oligarchy'. Whether a country is democratic or communist power will always get concentrated in the hands of small section of elites. Hence, oligarchy is the Iron Law.

Robert Michels analyse the nature of socialist political parties. He found that there is no difference in the working of socialist parties & Bourgeoise / Liberal parties. In both parties power gets concentrated.

→ Raymond Aron -

According to him, power always lies with the elite whether it is socialist country or Liberal country. Yet liberal countries are more democratic than socialist countries. Because in socialist countries monolithic elite exists. (One party system) Hence people do not have choice whereas in Liberal countries elite structure is fractured. (It means existence of Multiple Parties). Hence people can make choice among elites.

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→ Anthony Downs, Schum Peter –

They have given Market Model of Democracy or Economic Theory of Democracy.
Democracy is like a Market: Politicians are Political entrepreneurs, voters are consumers. The only role voters can play is the selection of elites. Hence, power lies with the elites.

→ C Wright Mills

He has given the concept of power elite. In context of USA. According to him, power in USA lies with the small section of elites whom he call as power elites. In USA Federal Politicians, corporate (Big) Houses, Top Officials of Military form power elites. All decisions in USA are taken by power elites in their own interest. According to C Wright Mills, the decision to drop Automic bomb was taken by the power elites.
US was not always lead by power elites in the beginning USA was more democratic. However, because of internal crisis like civil war & increasing role of USA in international politics the importance of these classes have increased.
Who are power elites?
In every society there may be some key institutions or organisations. Persons holding top positions in these institutions or organisations are power elites.

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② Pluralist Theory of Power -

Scholar - Robert Dahal

In his study titled 'who governs', he has challenged the observation of C. Wright Mills with respect to Democracy in USA. It is wrong to say that USA is an oligarchy. On the other hand, USA is polyarchy.

What is Polyarchy?

Robert Dahal has conducted field surveys to find out whether ordinary people in USA enjoy power. He found that ordinary people do enjoy power but not as an individual but as the member of the particular association or interest group. There is very active interest group politics in USA these int. groups lobby for protection of the interest of their members. Hence, it is wrong to say that the distribution of power in USA is too narrow in USA. According to him, ~~as~~ ordinary persons in USA do enjoy power in day to day affairs of their life. Decisions to use automic bomb is not regular day to day decision. Thus USA is a polyarchy rather than Oligarchy. Power is not in the hands of few nor in the hands of all but in the hands of many.

Deformed Polyarchy

Robert Dahal has modified his views earlier he believed that all ~~pow~~ groups in USA enjoy almost equal powers but later on he admitted that all pressure groups do not have equal powers. Corporate groups have more power than other. Thus polyarchy is deformed or tilted towards the corporate group.

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His view comes near to the Marxist as well as elitist theories of power.

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Difference b/w Neo-pluralists & Marxists

According to Marxists, those who are economically dominant, they control all elements of superstructure.
According to Neo-pluralists, corporate houses have influence in the decision making in economic sphere but they do not dictate all sphere.

③ Marxist Theory of Power

④ Gramsci's Theory of Power
- soft power.

⑤ Arendtian Theory of Power-
She makes difference b/w power, violence, force & strength. She has analysed political power. Pol. power belongs to civil society acting in concert with each other.
According to her, power is not an instrument of coersion. The real power is the power of empowerment.

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***⑥ Post Modern / Michel Foucault Theory of Power -

"knowledge is Power".

"Power is everywhere."

"Power flows throughout the society in the form of network of capillaries."

- Introduction

Foucault is considered as one of the greatest intellectual of our times. Foucault was not only an intellectual, he was also an activist Foucault was initially associated with the left movement. He was professor of Psychology & philosophy. Foucault has studies Linguistics, Economics & other disciplines also. Foucault was influenced by Nietzsche. Nietzsche was critic of enlightenment. enlightenment has not resulted into freedom of man. Earlier man was controlled by religion. Now man is controlled by science. Nietzsche held that God is dead. According to Nietzsche, nobody can claim to tell the truth, theories are just perceptions. We require to understand the things from multiple point of views.

He has given the concept of the will to power (Nietzsche). Will to power leads to will to knowledge as knowledge is power.

Foucault was influenced by Nietzsche's book titled, 'Genealogy of Morals'. Nietzsche has analysed the origin of Morality.

- Methodology of Foucault -

Foucault called his methodology as, archaeology and Genealogy.

→ What is Archaeology -

According to Foucault, it is a specific method to study history in terms of the evolution of knowledge system.

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→ What is Genealogy?
According to Foucault, Genealogy is the study of present History. Genealogy is understanding knowledge power connection.

• Foucault's Work

(i) Madness & Civilisation
(ii) Birth of a Clinic
(iii) Discipline & Punish.
(iv) History of Sexuality

Foucault's theory of power is given in his book - 'Discipline & Punish.' In order to understand his theory of power we have to understand following concepts of Foucault.

(a) Discourse

Discourse is the way of telling the reality rather than telling reality. Every age has its own discourse. E.g. In Medieval time it was the discourse of the christianity which shaped our understanding of reality. In Modern times it is the discourse of science which shapes our perception of reality. Science has become highest discourse. According to Foucault, fight is never for the absolute truth. It is impossible to know the ultimate truth. Instead of ultimate truth he mentions 'regimes of truth'. In his books like Madness & Civilisation, Birth of a Clinic, Discipline & Punish, History of Sexuality he has applied Archaeology & Geanealogy. Discourses shapes the norms & morality. When we differentiate b/w a Mad & Normal person it is not that we know what is madness & what is normal. Rather it is the way Madness is explained to us.

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Discourses determine the limit of our understanding, They ~~et~~ limit our understanding also.

Foucault has developed his views on power in his book 'discipline and punish' published in 1979. In this book he has shown knowledge power connection.

Foucault has given the concepts like disciplinary power, governmentality and Biopower. He has given the example of the system of punishment which was prevailant in earlier times. The system of punishment was torturous & inhuman. According to him, the purpose of punishment is not just punish the wrong doer. ~~If~~ or to reform the wrong doer. DO = Doer
The purpose of punishment is to give message to others so that they do not commit such acts which are considered as harmful for society.

Foucault talks about the changing technologies of power. In Modern times, the system of punishment changed. States started adopting more humane approach towards the criminals. ~~Re~~ Prisons were reformed. Prisons became the places where criminals get transformed. In this way people developed more respect & sympathy for the state. It has strengthen the legitimacy of the State. The purpose of prison reform had no connection with the reform of criminal. The purpose is:

(i) To improve the image of the state.
(ii) To make that criminals body reusable for the society.

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In his book Madness & Civilisation. He has explained how the system of segregation started between Normal & Mad person. The persons who have not been useful for capitalism were considered as Mad.

Foucault has given special focus on the disciplinary power He has analysed the disciplinary institutions, their origin and purpose. The institutions he has studied include Army Asylum, schools & prison. Discipline is enforced to the system of examination, rewards & punishment.

Foucault has suggested the concept of 'Economy of Power' In modern times Mass society has come into existence. In order to control such a large section of society. state adopts the Method of discipline which Foucault calls as Governmentality. Governmentality is achieved by Homogenisation & through disciplinary institutions. It is for the purpose of the convinience of the state, population is classified into males & females, national and foreigners. Through discipline people learn how to control their body mind & soul. He gives the concept of Biopower. i.e, power controlling human bodies.

Foucault has applied the concept of Panoptican, semi-circular design of prison suggested by Bentham. The idea of Panopticon is to ensure self regulation. Instead of keeping policeman for every criminal. modern prisons have central surveillance tower. Prisoners automatically discipline themselve thinking that somebody is watching their actions Similarly society is also like a panopticon. we discipline ourselves we keep our body & mind in control because we feel that infinite eyes of society are keeping watch on us.

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Salient points of Foucault's analysis of power. –

(i) Foucault's analysis of power is considered as post structural view of power though he never accepted that he is structurialist or Post structurialist. Instead of macro view of power Foucault give micro view of power. He is not limiting the understanding power to particular institutions or agents. He disagrees with Hobbes who gives the sovereign view of power i.e, power lies with the state. He also disagrees with the Marxist view of power, according to which those who control the eco. structure holds the power in the society. According to these theories power is unidirectional.

According to Foucault power is multi-directional. It goes in all directions & comes from anywhere. Power is flowing throughout the society. in the form of capillaries or network like organisations.

(ii) There is a connection b/w knowledge & power. knowledge represent the discourse. The dominant discourse shapes the universe of power. According to him, there is no knowledge without power. Similarly power cannot be exercised without knowledge (Discourse).

→ what does it mean to say that there is no knowledge without power?

knowledge is a discourse. The discourse which gets the support of majority becomes the dominant discourse or the regime of truth. Every discourse represent the power of someone. Eg. the discourse of sexuality, criminality, Madness is determined by the dominant view. To determine what is normal-abnormal it is the power of doctor, psychiatrist that works. Similarly he also suggest that power cannot be exercised without knowledge

psychiatrist

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power is a function of knowledge. patient accept the power of doctor because doctor represent the knowledge of medicine. Foucault not only says the knowledge is power, at times he considers knowledge & power as same things. In most of the situations he writes knowledge / power. His theory of knowledge & power is influenced by Nietzsche. Nietzsche is known as father of post Modernism i.e. why Foucault's concept of discourse is considered as one of the component of post modernism.

(iii) People do not exercise power they embody power. People are vehicles of powers. ~~It is wrong to think~~

(iv) It is wrong to think that power is coersive. Power is actually productive. Power give us our identity.

(v) Power is strategy. Power is applied. wherever there is a power there is a possibility of resistance. Just like society devides reason & unreason mad & normal similarly where there is a concept of power there is a concept of resistance. According to him resistance becomes the basis for freedom.

(vi) According to Foucault discipline is not bad because it helps in maintainance of the system.

Q. "knowledge is Power"

(1) Theory of power- Book- Discipline & Punish.
Influenced by Nietzsche's Genealogy of Morals.
concept of discources
According to him knowledge is a discourse.
How discourse come into existence? some idea comes which gets support. which get accepted by majority & becomes discourse. Every age has its own discourse. If christianity was discourse of medieval time then science is a discourse of modern time. Discourse determine the limits of our understanding. Discourse represent power. The acceptable discourse of sexuality -represent the majoritarian view or power of heterosexuality. Similarly the discourse of Medical science ~~as~~ represent the power of doctor.
- Discourse of ~~psychology~~ represent the discourse of psychiatry
power cannot be exercised without discourse.
- knowledge / power.

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Note:

→ Foucault has mentioned 3 mechanisms of social control-

(i) Hierarchical observation

It means observing people.

(ii) Normalising Judgement

It means punishment of non-conformity

(iii) Examination

It means testing persons quality & ability w.r.t. the societies social norms & values.

Gaze

Person keeps watch on himself

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More Socialist

(7) Max Weber's / Weberian Concept of Power -

Max Weber is a Modernist. Max Weber is a critic of Karl Marx. When Karl Marx suggests that state represent force. Max Weber suggest that state represent authority Like Hobbes Max Weber also suggest that in a particular territory only state has monopoly over the use of instruments of coersion. which meang only state has authority to use force.

What is Authority?

Authority is legitimate power. or power plus legitimacy is Authority. In different societies the nature of authority may vary. Max Weber has given 3 Ideal types of Authorities.

What is Ideal type?

Ideal type means models.

(i) Traditional Authority -

In some societies traditions & customs becomes the basis of authority e.g. the authority of queen in Britain is based on customs & traditions.

(ii) Charismatic Authority -

In some societies charisma or personality can be the basis of Authority. Eg. Authority of Gandhi.

Normally charismatic authority is a feature of traditional societies or societies in crisis.

(iii) Legal Rational Authority -

The Authority which is the product of legal rational principles or rules e.g. In Modern societies the authority of public servants can be considered as Legal Rational.

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In all societies all the 3 basis of Authority exist. But they exist in different proportions.

Legitimacy

Q Describe the meaning of Legitimacy, what are the methods employed by the state to gain legitimacy. What is a Legitimation crisis.

→ **What is legitimacy?**

Legitimacy reflect the consent of the governed. That exercise of power which is considered right by the people will be considered as Legitimate.

Difference in legitimacy & Legality

Legality means as per law. Law can be the basis of authority but untill & unless there is a consent of the people law cannot be inforced.

Importance of Legitimacy -

According to Roussou even the strongest man is never strong enough untill he converts his strength into right & his power into authority.

Hence, Legitimacy is a Pre-condition for Governibility.

Debate on legitimacy

There is a debate on the legitimacy of the state between Marxist and Liberals. Liberals assert that State represent the use of Legitimate force. On the other hand Marxist challenge the legitimacy of the state Marxist call state as a class instrument. Marxist call for revolution against the state. According to Liberals the fact that the state is continuing is an indicator that state represent the will of the people.

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If for Karl Marx, coersion is the basis for the state for T.H. Green Will not force is the basis of the state. There is a will of the people for the state Because state performs many useful functions. However for Gramsci, will is manufactured. Marxist continue to believe that Bourgeoise state is bound to suffer from crisis of Legitimacy.

Legitimation Crisis

- Habermas
- Refer previous class notes.

Q. Examine the relationship b/w power, Authority and legitimacy.

Power is the central concept of politics. Behaviouralists have explained the politics as study of shaping & sharing of power. Though power is a central concept yet it remains a contested concept. Power, authority & legitimacy explain different dimensions of power.

Power - There are two broad ways in which power is understood ie. in conventional sense power is considered as Domination ie. Ability to get things done by others. Hannah Arendt has given non-conventional view of power when she respites power not in terms coersion but empowerment acting in concert.

In political science the Analysis of power is traditionally associated with the Political power exercised by the state though H. Arendt talks about the power excised by the civil society & Michel Foucault talks about power in terms of discourses. The main debate is b/w the liberals and Marxists where liberals claim that the use of power by the state is legitimate whereas Marxist claim that the use of power by the state is illegitimate it is a coersion by the state in the interest of the dominant class.

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Max Weber made the distinction b/w Naked power and Authority. The use of power by the state is considered legitimate by the people. Hence, he suggests that state represent Authority. He has given 3 ideal types of Authority. The dominant type of Authority will vary from society to society.

The concept of legitimacy is closely associated with the concept of authority. Because Authority is legitimate power. States continue because states enjoy legitimacy in the eyes of the people. According to Max Weber the relationship can be explained through the equation:

Authority = Power + Legitimacy.

- **Indicators of legitimacy:**

(i) Law obidience among the citizens.
(ii) Respecting national symbols, Anthem, Flag etc.
(iii) Payment of Taxes
(iv) Social Discipline.
(v) Lesser no. of Crimes, protests
Citizens observing National Festivals

- **Methods of Building legitimacy**

(i) Maintainance of Law & order.
(ii) Maintainance of Rule of Law
(iii) Freedom of Press
(iv) Independence of Judiciary
(v) Social wel-fare schemes
(vi) Regular elections
(vii) Propaganda.

For concept of Hegemony refer Gramsci in Previous classes.

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Concept of Ideology

Q① Discuss the debate on the Nature of Ideology.

Q② What are Meta-Narrative. How post Modernists look at Meta-Narratives.

Q③ Short Note on End of Ideology Theisis.

Q④ Short Note on End of History Theisis.

→ Ideology can be understood in two ways:

(i) A tool to understand or comprehend the reality.

(ii) A programme of action. Ideology is a set of ideas on the basis of which person can have an access to power It is a basis to organise people

- **History of the term Ideology**

The term ideology was coined by French scholar Count d Tracy.

- **What was its purpose?**

He was contemporary of Nepolian Bonapart. This was the time of enlightenment & scientific revolution.

Tracy wanted to establish a school for the scientific study of Ideas. The purpose was understanding all ideas on scientific basis Hence, he coined the term Ideology. Ideology denoted systematic/scientific study of Ideas. However, Ideology got politicised. Science of Ideas could not come into existence. Tracy & his supporters came to be known as Republicans.

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Next developement in the concept of Ideas is attributed to karl Marx. karl Marx made distinction b/w Ideology & science. He claimed Marxism as science & other schools of thoughts as Ideologies. He held that ideas & ideologies result into false consciousness.

It was lenin who held that working classes also need their Ideology. He held that communism as an Ideology of the working class.

Another Marxist scholar who has analysed the natdre of Ideologies is Gramsci. Gramsci gave the concept of Hegemony. Gramsci held that Liberalism is a Hegemony & communism is a counter Hegemony.

Liberal scholars like karl Popper started calling Marx as an enemy of open society. He called Marxism as an Ideology & Liberalism as a open school of thought.

Hannah Arendt held that Ideology & terror are the two instruments of the Totalitarian states. She has put Fascism and stalinism as an examples of Totalitarianism.

Above discussion show that quite contrary to the opinion of Tracy the term ideology has got politicised. Scholars made distinction between Ideology & science. They called their own thinking as Scientific & the thinking of opponents as Ideological. Later on post modernist scholar like Foucault gave the term discourse for knowledge system. Foucault even suggests that science is also a discourse.

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scholars like Oakeshott suggest that in the field of politics we move in a bottomless and borderless sea.

→ Karl Mannheim in his book Ideology & Utopia gives the concept of 'Sociology of knowledge'. It means every knowledge has its sociology or social context. No ideology is without the roots in the class.
Every ideology represent the interest of particular class He has also made distinction b/w ideology & utopia. Ideology is the set of ideas representing the interest of the dominant class E.g. Liberalism. Utopia is an Ideology representing the Interest of the exploited class Eg. communism. Even Utopia is desirable. Utopia is required by the exploited class.

- **End of Ideology -**

End of Ideology is a concept given by some western scholars in 1960s and 1970s. The period coincides with the period of the 'Detente'
Detente symbolised relaxation of tensions between the two super powers. Some western scholars claimed that the age of Ideology is over. Ideological battles carry no importance. one of the prominent exponent of End of Ideology thesis was Daniel Bell. He has written a book titled 'End of Ideology' where he has claimed that we are living in an age where politics is at the backsit & economics is in the front. The prime question of our times is developement. In both worlds East & West (East-USSR) similar type of Bureaucratic State & technocratic societies have come into existence. Hence, ideological struggles do not have much relevance. In case of western countries welfare state has resolved the conflict b/w labour & capital.

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other scholars also gave similar views. E.g. W.W. Rostow Rostow has given the concept of stages of economic growth. According to him, all societies pass through similar stages of economic growth. Hence, ideology does not matter.

S.M. Lipset has also asserted that around the world there is an acknowledgement that there is no better way of life except liberal democracy.

- **Criticism of End of Ideology**

End of Ideology thesis could not get wide acceptance socialist scholars never accepted the end of ideology thesis. They considered the end of ideology is nothing but the concealed defence of the western way of life. Among the critics of end of Ideology include –

(i) **C. Wright Mills**

According to him it is wrong to think that western societies have established the equilibrium between the rich and the poor.

(ii) **C.B. Macpherson**

He held that western societies are hardly Egalitarian. Hence the importance of politics has not lost.

(iii) **Alasdair MacIntyre**

He held that end of Ideology is itself an ideology.

- **End of History**
  - Refer Liberalism
  - F. Fukuyama.

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Difference in End of Ideology & End of History :-

End of History is the revival of End of Ideology Theisis. Both of these concepts aim to justify the Liberal way of life. However End of History is more assertive in claiming the superiority of Liberalism rather than in comparison to end of Ideology.

- According to End of Ideology thesis Ideological struggle carry no meaning. But according to End of History Liberalism is end point of Man's ideological evolution.

Post Modernist Critic of Ideology

What is Post Modernism?

Post Modernism can be understood as-

(i) Movement.

(ii) A school of Thought

→ As a Movement post modernism is against the negative consequences of Modernity.

→ As a school of thought post modernism challenge some basic assumptions of Modernity.

Post Modernism first emerged in the field of Art, literature & later on in other disciplines. Nietzsche is known as Father of post Modernism.

Why?

(i) Nietzsche has challenged enlightenment & claimed that enlightenment has made man free.

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(ii) Nietzsche held that God is dead, which means morality is dead. There is nothing moral or immoral. Hence, he ~~believe~~ does not believe that there is a particular way of life which is perfect way.

(iii) Nietzsche held that universe is in the state of motion. Hence, there are no fixed meanings. Meanings keep on changing.

(iv) Nietzsche held that truth is a perception. Hence to understand any phenomena we should look from different point of views. Still it is not necessary that we will understand the truth.

(v) Nietzsche held that it is not possible to be objective.

(vi) Nietzsche held that there is will for power in Man. The will for power in man is stronger than any other will including will to life. Hence, there is always connection between power & knowledge. He supports will to power because in this way we achieve freedom & independence.

- Einstein

Einstein has given the theory of Relativity. Einsteins view challenge the traditional view of scientists. According to traditional view, there is an objective reality which can be understood objectively irrespective of time and space. Einstein held that time & space matter observation will depend on who is observing & from where.

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Thomas Kuhn

Book - The structure of scientific Revolution
Given the concept of paradigms (Framework)

According to Thomas Kuhn even scientific theories are Paradigms. Paradigm is a conceptual framework. Scientist also work with a paradigm. Paradigms also change. For some time existing paradigm may be able to answer most of the question. However, there are many questions which existing paradigm may not be able to answer. When no. of such questions increase existing paradigm comes into crisis. When existing paradigm unable to answer majority ques" old para. is rejected & new paradigm comes into existence. Thus the concep of paradigm suggests that there is no finality in the knowledge.

→ Post Modernism challenges the basic premises of Modernity
(i) Foundationalism
(ii) Universalism.

(i) Foundationalism is based on the philosophy of science that there are certain fundamental principles which can be understood also. Eg. there are some fundamentals of human nature.

(ii) Universalism suggest that there are few things which are universally applicable or which should be universally applicable. Eg. from the perspective of western countries there are some universal rights which should be available to all human being. Universalism is inspired by Newton's universal law of Gravity.

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According to Modernity, universe is in order, there is a structure in universe. According to Post Modernists, Universe is in chaos. there is no structure & universe is expanding. Hence, we cannot give fixed meanings.

- Difference in Modernism & Post Modernism -

(i) According to Modernists there is an objective reality which can be known objectively.
According to Post Modernists knowledge is subjective. The basis of knowledge is not observation. But experience.

(ii) Modernity has constructed Meta-narratives.
Whereas post-modernism supports local narratives or Multiple Narratives.
What is Meta Narrative?
The term Meta Narrative was coined by Lyotard.
According to Lyotard, Meta-narrative is a theory that tries to give a totalising comprehensive explanation through various events & various spheres of life.

(iii) Modernity believes in the authority of science.
Post Modernism does not believe in the authority of any mode of knowledge.

(iv) Modernity stands for universalism.
whereas Post Modernism believes in diversity & feudality.

(v) Modernity prescribes hierarchy, order & centralism.
Post Modernism prescribes anarchy, dispersal of power, localisation & Radical democracy.

(vi) Modernity thinks that objectivity is required, subjectivity is bad.
Post modernism thinks subjectivity has to be respected & objectivity is not possible.

Meta Narrative - religion, marxism
(Grand theories)

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(vii) Modernity stands for control.
Post Modernism stands for freedom.

(viii) Modernity believe that there is some transcendental truth. and everyone should try to know the truth.
post modernism believe that everyone has its own truth & everyone should live according to his own truth

- **Prominent Thinkers of Post Modernism-**

① **Foucault**

Foucault's concept of Discourse

② **Lyotard**

He is first person to explicitely mention the term post Modernity in his book 'The Post Modern condition'.
He described post Modernism as incredulity towards Meta-narratives. Lyotard supports local narratives.
According to him, we are living in an age where meta-narratives have lost their power to convince. He suggest to focus on diversity, local contexts & multiple points of views.

③ **Derrida**

Derrida has given the concept of De-construction.
De-construction can be considered as an Approach to understand meanings. According to Derrida, a particular text may have multiple meanings. Human language is not so developed that all what a person wants to communicate, he can communicate. It is also not possible that the other person recieves exactly what is being communicated. Hence there can be multiple interpretations of the text. He suggests double reading.

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Post Modernists Criticism of Ideology -

For post modernists ideology is also a discourse or Meta-Narrative. Though totalising ideologies like Marxism claims to tell the ultimate reality & Marx claimed historical materialism as science. But from the post moodernists point of view science is also a discourse. knowledge is not free from its function of power. If Marxism aims to establish the power of working classes feminists discourse e is to establish the power of women. For Post Modernists objectivity is neither possible nor desirable.

short Note on Post-colonialism.

Post colonialism is influenced by post Modernism. Post colonialism questions the Hegemony of the west which is not just limited to in the economic & political sphere rather which is also prevailant in cultural sphere including academics. Post colonialism challenge 'Euro Centrism' in Academics. Post colonialists want that the perspective of the people living in post colonial societies should also be heard. Post colonialism is influenced by Foucault's Theory of knowledge & Power. According to Post colonialists the way the western world described the east is not free from the phenomena of power.
Edward Said is known as Father of Post colonialism. Edward Said has given the concept of orientalism.
What is orientalism?
orientalism explains how west has described the east (or orient). when west describes east the objective is to establish the hegemony of west on East.
Edward said has given the example of how western world has given the interpretation of Islam. It is not telling the truth about Islam rather constructing the truth.

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Another post colonial scholar Homi Bhabha, question the modernities way of looking things in terms of Binaries. He gives the concept of Hybridity in his book 'location of cultures'. There is a purpose in suggesting the differences between East & West. East is always described as Feminine, childish, and Barbarian. They describe west as Masculine, Mature & Civilised. In the name of Anthropological research they have tried to justify the domination of East by West. Edward said also suggest that knowing the orient was never free from relation of power. knowledge is most formidable allie of capitalism. The way colonial historians have projected the east is far from the reality, the basic purpose was to justify civilising mission.

- Gayatri Spivak

In her book 'can subaltern speak?' She suggest that field of academics is Euro centric Hence the perspective of the people living in peripheries is missing. She also raises the question whether subaltern can speak? do they have capacity to speak?

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DEMOCRACY

- Syllabus

① Classical & contemporary Theories.

② Different Models of Democracy
- ⓐ Representative
- ⓑ Participatory
- ⓒ Deliberative.

- What is Democracy?

Democracy can be understood in two ways:

① Narrow sense/Term -

Democracy is considered as form of Government.

ii Broader sense/ Term -

In Broader sense Democracy is way of life.

Democracy is a issue of culture.

- What are the components of Democratic culture?

① Respect for Human Dignity
② Respecting Individuality
③ Culture of Rights, Toleration, Rationalism.

According to Farid Zakaria, constitutionalism should precede Democracy. Constitutionalism ~~came~~ should come first & then democracy should be introduced.

What is constitutionalism?

Constitutionalism is rule of Law. Britain first adopted constitutionalism. It became part of their culture & then Universal Adult franchise was introduced. According to Farid Zakaria, chances of success of democracy increase where constitutionalism comes first. The reason for failure of Democracy in the Third word countries is absence of constitutionalism.

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We are living in the Age of Democracy. Samuel P. Huntington, has explained the expansion of Democracy around the globe in the form of 3 waves of Democracy.

- **1st Wave**

1st Wave started in 19th century. In the 1st Wave most of the countries of western world became democratic

→ **1st Reverse Wave**

In the 1st half of 20th century there has been a reverse wave of democracy when many European countries like Germany, Italy, Portugal, Spain came under Dictatorship.

- **2nd Wave**

2nd Wave started after 2nd World War & most of the countries of the colonial world became Democratic.

→ **2nd Reverse Wave**

2nd Reverse Wave started very soon & by 70s with the exception of few countries like India, Sri Lanka etc. Democracy collapsed.

- **3rd Wave**

3rd Wave started with the collapse of communism in Eastern Europe. Democracy became Global phenomenon with the exception of Arab world. American political scholars gave the theory of 'Arab Exceptionalism.' which means that democracy is not compatible with Islam. Arab Exceptionalism was a discourse to justify the western support to the Gulf Monarchies & Dictatorships in Egypt & Tunisia. Arab spring challenges the western discourse of Arab Exceptionalism. Arab spring could have became the 4th wave. However Arab spring turned into Arab Summer because of the Geopolitical objectives of western power.

1st WW - 28 July 1914 – 11 Nov. 1918

2nd WW - 1st Sept. 1939 – 2nd Sept. 1945

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Globalisation and Democracy

Lecture 39
02/02/2017

Globalisation has increased the no. of democracies. However, it does not mean that Globalisation is Democratic. No. of Democracies have increased but World order has not become Democratic.

Joseph Stiglitz has pointed towards the 'Democratic Deficits' of the institutions of Global governance. According to him, to make Globalisation work we have to address the democratic deficit.

David Held has given COSMOPOLITAN (વિશ્વવ્યાપારિક) model of Democracy.

→ Context of the Theory -

Globalisation has undermined (નબળું પાડવું) the authority of nation state. So far the govt. in the nation state is the highest level of Democratically elected govt. With the exception of EU which has established democratically elected European Parliament, no other region has such institution. Hence, the policies are taken by the Bureacracy & people do not have say in the formulation of policies.

→ David Held has proposed ~~the~~ cosmopolitan model. We have to have democracy at the Global level. He has proposed long term and short term measures.

→ In the long term we have to think about Global govt. and Global Parliament.

→ In short term we need to go for following reforms -

(i) Reform of UN security council to make it more Democratic.

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(ii) Democratically elected regional parliament like that of European Parliament.

(iii) Greater Freedom of Press.

(iv) Greater independence of Judiciary.

(v) Strengthening grass root Democracy.

• Democracy and Developement

Q. Explain with reference to the developement in India and china. The Relationship between Democracy and Developement. Do you think democracy is a pre-condition for developement or obstacle for developement.

The relationship between the Democracy & Developement has been a matter of debate. There is a major debate b/w Lee Kuan Yeo and Amartya Sen.

→ 'Lee Theisis'–

According to Lee Kuan Yeo India remains, 'A Nation of Unfullfilled Greatness.' The reason is India has choosen the wrong path. According to him, Democracy is not conducive for developement. Democracy results into Indiscipline. Slow decision making process. Democracy is western obsession. Democracy does not suit to Asean societies. Asean societies require, 'Asean values'. Asean values like discipline/duty, respect to Authority & social solidarity is more conducive. According to Lee Kuan yeo India took the wrong way ie. socialists way. China also took the socialist way but china could change its approach.

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Indian Bureaucrats do not have the right mindset for facilitating economic developement. He considers Nehru as a Demogaugic leader. Indian leaders donot take right policies, they rather go for populist policies.

Larry Diamond, though not against democracy but mentions about the paradoxes of Democracy. these paradoxes of Democracy create problems for stability and developement.

(i) Democracy is about competition, disagreements, However competition & Disagreements results into the conflicts, confrontation, conflicts impacts stability.

(ii) In Democracy swift action gets paralised.

(iii) Democracy is rule by consent but consent itself does not result into performance. leaders are fearful to bring such reforms which are necessary as they fear that they will loose the consent. Hence, it requires lot of efforts to achieve developement in a democratic framework. Democracy is extremely complex & democracy requires extra efforts rather than just putting some procedures in place. In comparison to Democracy, Autocracies may perform better.

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:→ Amartya Sen

According to Amartya Sen, Democracy is a pre-condition for developement. Economic growth alone cannot meet the parameter for developement. It is not the in nature of govt. in China i.e. the main factor behind better record of china in Poverty eradication, Heal & Education. It has been the conscious choice of elites to invest in Health & Education. so that china can take up the opportunities generated by Globalisation. It can be a coincidence that democracies do not have good record of developement. As such democracy is always conducive for developement. He gives the example of kerala. The Govt. of kerala has invested in Health & Education. Investment in Health & Education has created capabilities. Kerala has done better in poverty reduction & achieving genderequality. However, he admits that enough investment has not been made in higher education. Enough opportunities have not been created in context of Income & wealth. He has also analysed Gujrat Model. GJ Model has weaknesse on social front. while GJ has created physical infra structure but GJ does not have good educational opportunities, GJ have lower life expectancy, Gende inequalities & poor health care system.

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- According to Amartya sen not only democracy is required for developement but development also needs to be democratised. It is necessary that economic growth remains inclusive.

According to Amartyer sen there is no need to make people fit for democracy rather they should be made fit through Democracy.

→ Above discussion show that Democracy and development have complicated relationship. Democracy d itself does not lead to developement. Democracy may create its challenges. The most important factor is political will. Considering diversity in India there is no better option than Democracy. However, it is also true that India has too much of democracy. But too little of right kind of democracy. Democracy requires the strengthening of grass root.

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Theories of Democracy

No possible question

MacPherson has given an exhaustive analysis on various models of Democracies.

Types of Democracies.

(i) Classical Model

Classical Model describes not democracy as a practic but democracy as a philosophy. There are two models in classical theory.

(a) Protective Model

Scholars- John Locke, Bentham

Democracy is required for the protection of rights.

(b) Developemental Model-

Scholar- J.S. Mill

Democracy is necessary for developement of a perso

→ Classical Models do not give the ~~empirical~~ idea of Democracy. We come to know the values of Democracy.

(ii) Modern Theories

There are two theories

(a) Elitists Theory.

According to Elitist scholars, oligarchy is the iron law. Masses never hold power. power always lies with a elites. Elitist theory is also known as Market Model. Market Model of Democracy is proposed by Schumpeter. Market Model comes near to the Economic theory of democracy given by Anthony Down.

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According to Elitist scholars the maximum role which masses can play in democracy is the election of Elites. This theory is also known as Procedural Theory of democracy. It understands democracy as a procedure for election of representatives. Elitist theory overlooks the normative aspects of Democracy. According to Normative aspect the end of Democracy is empowerment of masses.

According to Elitist scholars, western countries are more democratic than socialist countries. Why?

In socialist countries, 'Monolithic' Elite exists. ie. one party. In western countries elite structure is fractured. ie. Multiple Parties. In western countries there is a circulation of elites.

(iii) Pluralist Theory

Scholar- Robert Dahl

Type of Theory -

@ Empirical Theory

— Procedural Theory

Types of Theories

- Normative
  - ↓
  - What you value
  - What you like
  - ↓
  - Philosophers
  - (Idea)
- Empirical
  - ↓
  - What you observe
  - ↓
  - Scientists
  - (Reality)

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Types of Theories.

- Procedural → Election
- Substantive → Empowerment

According to Robert Dahl, Democracy points towards Interest groups politics. If for elitist scholars Democracy is oligarchy for pluralist scholars, Democracy is polyarchy.

Short Note - Polyarchy

Polyarchy is a concept given by a Robert Dahl. Polyarchy is a more realistic view of Liberal Democracies. Liberal Democracies are not oligarchies nor they are ideal democracies. Polyarchy is 'Approximate Democracy'.

According to Robert Dahl, Poliarchies have following features:

(i) Rule of law
(ii) Fundamental Rights
(iii) Free and Fair election
(iv) Freedom of Press
(v) Freedom to form association
(vi) Right to this decent
(vii) Independent judiciary

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USA, Japan, India, Canada are examples of poly-archies.

Mac Pherson's Theory of Democracy-

Mac Pherson has studied all philosophical & empirical models. If empirical models overlook the normative aspect of Democracy, classical model overlooks the empirical dimensions. Mac Pherson has combined Empirical & Normative Dimensions.

→ Salient features of Mac Pherson's Theory

(i) Liberalism cannot claim monopoly over democracy.
(ii) There can be other models of Democracy
(iii) There can be socialist model of democracy subject to the condition, single party has intra-party democracy.
(iv) He even includes one party dominant model as found in many Third World countries. Subject to the condition that party enjoys majority support.
(v) According to Mac Pherson there are many weaknesses in the model of western democracies. Western democracies in their present form are not ideal. They are not egalitarian.
(vi) According to MacPherson, Democracy should result into the empowerment. There are two dimensions of power.

(a) Extractive Power - It is coersive in nature. Forcing someone to do which if he could not otherwise do.

(b) Developemental Power - It means developement of capacities.

Egalitarian- believing in the principle that all people are equal & deserve equal rights & opportunities.

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In western countries capitalists have maximum developemental power as well as maximum extractive power.

Workers have neither developemental power nor extractive power. Hence, their democracies are not egalitarian.

(vii) Western democracies should move to a situation where nobody has extractive power & everyone has equal developemental power.

Like Amartya Sen, Mac Pherson defines developement as creative freedom.

	Extractive	Dev. Power
capitalists	99-100%	99-100%
Workers	0-1%	0-1%

⇒

Extractive	Dev. Power
0%	100%
0%	100%

Nature of Theory - 'Empirical as well as Normative'

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Models OF Democracy

① Representative Democracy -

Original form of Democracy is Direct Democracy. With the growth of population & the rise of modern complex societies representative democracy becomes inevitable.

J.S. Mill has considered representative democracy as the 2nd best form of govt. However, he was concerned about representative democracy becoming tyranny of majority. Hence he proposed various reforms. One of the challenge of representative democracy is how to ensure the representativeness. Hence, scholars have suggested models of representation & improvements in electoral systems. There are two major models of representation.

ⓐ Deligate Model -

Scholar - Bentham, John Locke.

According to them, representative should not have freedom to take independent actions. They should stick to the mandate given by voters.

ⓑ Enlightened Model -

→ Scholar - J.S. Mill

Representatives should have autonomy because they have more experience of politics than ordinary persons

→ Edmond Burke

Representatives do not represent narrow constituency. Parliament is not a place for advancement of local interest. It is an assembly on nation & National perspective should shape the choices.

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Types of Electoral System

Purpose of Electoral System

To make elections representative

There are two major types of electoral system:

Types

- Majoritarian
  - Plurality System (Simple Majoritarian) System
  - Second Ballot
  - Alternative Vote System
- Proportional
  - Single transferable vote system (STV)
  - List System ✓

⇓

Single Member Constituency

(I) Majoritarian Representation

(a) Plurality system -

Example - Elections for Lok Sabha & Legislative Assembly in India.

Plurality system is least representative it results into wastage of votes.

(b) Second Ballot

Example - Presidential election in France.

Winning candidate requires absolute majority.

Absolute Majority means 50% plus 1 of total votes.

Why called as second Ballot -

(i) In se case no candidate secures absolute majority in the 1st round of elections only top two candidates are retained.

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(ii) Elections are conducted for the 2nd time between top 2 candidates this will automitacally results into one candidate getting absolute majority.

(iii) It is an improvement over plurality system but it results into electoral fatigue., unnecessary expenditure & unnecessary burdon on election machinery.

(c) Alternative Vote System-

Example - Australia

To avoid holding elections for the second time.
Winning candidate needs absolute majority.
In 1st round of elections if no candidate gets absolute majority then the candidates getting least no. of votes will be eliminated.
In alternative Vote System voters write these preferences. Votes are redistributed according to the order of preference.

(II) Proportional Representation

Purpose - How to make electoral systems more & more representative.

(a) Single Transferable Vote

What is the unique feature-
For getting elected candidate needs to get quota of votes.

(b) List System

In list system entire country will be treated as a single constituency. Each party will bring the list of candidates.
It is a most representative system.

The Hindu - Article - by Neera Chandoke
on Representative Democracy.

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Lecture 40
03/02/2017

Criticism of Representative Democracy -

→ **Rousseau -**

According to Rousseau, Englishmen are free from only once in a five year. Many Indian leaders like Gandhi, M.N. Roy, Jayprakash Narayan were critics of Representative Democracy & supporters of Partiless democracy ie. Direct Democracy.

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(2) Participatory Democracy -

It means Direct Democracy.
It also means, Increasing participation of people in Governance. Participatory Democracy also means Democratic Decentralisation.

→ Why Participatory Democracy ?

(i) Good governance is not possible without participation of people. Participation insures transferency & accountability. Participation has educative value. when people participate in Democracy they understand governance, they develop responsibilities, they can also understand the problems in Governance. ~~Representative~~ Participatory Democracy should be the next logical step after representative Democracy.

Various studies show (Agenda 21) adopted at Rio summit adopted in 1992. Various studies show the relationship b/w Democracy & Sustainable Developement.

2nd ARC report recommend 'Citizen centric Governance'

- Methods of Participatory Democracy -

(i) Referendum
(ii) Initiative
(iii) Recall
(iv) Right to Information
(v) Citizens charters, Social Auditing
(vi) Watchdog bodies like Human Rights Commissions, Lokpal.
(vii) Democratic Decentralisation (Devolution of powers to local Governments)

Plebiscite
↓
opinion of people
↓
Not binding to make law

Referendum
↓
opinion of people
↓
Binding to make law

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Exponents of Participatory Democracy -

(i) Rousseau only with the participation of people that General will can be filtered.

(ii) Founding fathers of US constitution like George washington was critic of party politics.

(iii) Gandhi, M.N. Roy, Jay Prakash Narayan.

(iv) J.S. Mill For him Direct Democracy is an Ideal type & representative govt. is second best.

(v) Benjamin Barber participatory democracy is necessary for addressing the problems of corruption.

Among the supporters of Participatory Democracy, there are large no. of scholars with leftiest orientation This model of participatory democracy is known as Radical Democracy.

Radical Democracy emphasise on the role of social movements & civil society protests. Among the prominent scholars we can refer to Habermas belonging to critical school

→ **Habermas -**

Habermas has given the concept of public sphere. He has also given the concept of 'Ideal speech situation and communicative action.

What is Public sphere?

It means people coming together entering into the discussions & debates, identifying their problems thinking about solutions. According to Habermas, the real strength of Democracy in western countries comes from Public Sphere. It is not parliament or Congress rather in coffee houses that Democratic culture comes into existence.

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→ **Nancy Fraser**

Nancy Fraser suggest that marginalised sections of society should form their own public sphere for which she has coined the term counter public.

→ **Jacques Ranciere**

He reconceptualises the concept of Political to include those who have been at the Margins. Participation is the only way to end domination & exploitation.

Other Radical scholars include Judith Butler, Chantal Mouffle, Ernst Laclau.

→ According to Amarty sen, Participatory Democracy, requires capacity building & conducive environment.

→ In case of India, we can say that 73rd C.A. Act failed to achieve its objective because govt. has not taken enough steps for capacity building of People.

73rd Amendment Act provides for Reservation for weaker section. Reservation alone does not ensure participation.

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③ Discussion, Debate

Plebiscite → opinion of people → not binding to make law

Deliberative Democracy

Idea - Deliberation means Dialogue, Debate, Discussion There is no need to add the term deliberative to democracy. The real meaning of Democracy is Deliberative only. We have forgotten the essense of Democracy In present time Democracy is considered as Game of Numbers or In the words of J.S. Mill Tyranny of majority Democracy is not about the number but about the arguement. According to J.S.Mill, If all but one has a difference of opinion, it could not be right on the part of Majority to silence that single voice. In recent times scholars like Habermas, David Held, Joshua Cohen Amy Gutman, Seyla Benhabib are the exponents of Deliberative Democracy. One of the ~~earliest~~ exponent of Deliberative Democracy is Pericles the Athenian Stateman. According to him, Deliberation is never a stumbling rock, it is indispensible, preliminary or any wise action.

Aristotle

Ordinary people deliberating can arrive at better decision rather than experts (Philosopher king) acting alone.

Rousseau

only by deliberation General will be can be known.

J.S.Mill

The greatest advocate of Freedom of speech & expression.

John Rawls

In his book political liberalism Rawls suggest that rational people having different comprehensive doctrine can arrive at 'overlapping Consensus'.

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Amartya Sen

Amartya sen supports the idea of 'public reasoning'. without public reasoning sound policies cannot emerge. Public reasoning suggests public debate. In his book 'uncertain glory' he suggest that without Public debate, we can not push governments to take actions. According to him the reason for the neglect of public Health is that Heath has been missing from public debate.

Public Reasoning is a mode of deliberation. It is a way of justifying particular position by use of reasoning. Public reasoning provides set of arguements which others can accept. Public reasoning is a condition for well ordered society. According to Amartya Sen, following conditions are required.

(i) The Idea of Public Reasoning must exist.
(ii) Public sphere should exist.
(iii) People should have capacity.

Habermas

Habermas has given the theory of Public sphere, communicative action & 'ideal' speech situation.

What is Ideal speech situation?

(i) A situation where no other force exists except the force of arguement.
(ii) All have equal right to speech.
(iii) All have equal chances to present their thoughts.
(iv) Whatever ideas are being presented should be honest & natural.

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Communicative action show people in Ideal speech situation communicating, understanding each other, Accountable to each other.

Hannah Arendt

Hannah Arendt is also supporter of Deliberative Democracy as she emphasise on 'Action'.

Joshua Cohen

Joshua Cohen has given 5 elements of Deliberative Democracy:

(i) It is an independent & ongoing association of people with expected continuity.
(ii) People accept that Delliberation is the deciding factor in formulation of laws & policies.
(iii) Non-coersive environment when each person recognise the capacity of the other to speak.
(iv) There is a respect for pluralism of values.
(v) Deliberation is a source of legitimacy.

→ Cohen has also given following advantages:

(i) Best way to deal with disagreements.
(ii) Best way to secure the legitimacy of collective action.
(iii) Encourage Public perspective on public issues.
(iv) Better policies
(v) Public education.
(vi) Developement of Trust
(vii) A way to know our genuine preferences.
(viii) Strengthening democracy.
(ix) It enlarge our understanding of issue.
(x) It makes democracy consociational.
(xi) Deliberative demo. is centered on Human dignity. It gives priority to debate over choices, discussion over voting.

Consociational - acting with consensus.

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RIGHTS

Syllabus

1. Meaning & Theories
2. Different Kinds of Rights
3. Concept of Human Rights

Introduction

Rights of Man is a concept of Modern times. In medieval times the theory of devine rights of the King was prevalent. Rights belong to the Liberal discourse. Rights are considered as claims of persons. According to Dworkin, Rights are trumps. means Rights are claims which will have priority over all other claims. Person enjoy right when other perform duties.

Theories of Rights

1. Theory of Natural Rights

It is a oldest theory of rights.

According to the Theory of Natural Rights, rights are given to man by nature. Man is born with the rights they are integral part of the personality of the man. Theory of Natural Right limit the scope of states action. one of the earliest exponent of Theory of Natural Justice is John Locke. We can also mention the name of Thomas Paine.

According to the theory of natural rights, intuition or reason rather than institution is a source of right.

It is also the strongest theory of rights. It is also the basis of human rights.

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Criticism of Natural Rights -

(i) Theory of Legal Rights -

Stilts ↓ support

Utilitarian Theory.

Scholar - Bentham.

According to Bentham, Rights are properly the creations of law. According to him, Natural Rights are non sense, & nonsense upon stilts.

According to him, Natural rights is a terrorist language & Natural rights results into Anarchy.

Bentham supports Hobbesian Tradition. According to Hobbes man cannot enjoy rights in the state of Nature. In the state of Nature might is Right. only when state comes into existence, man can enjoy rights. Hence, the real source of rights is state. Man has no liberty only where law is silent. similarly, Bentham in his book 'Anarchical fallacies' criticised the theory of natural rights. Asserting rights against the state will result into chaos in the society. For Bentham the real source of rights is state. Rights against a state, right against the wishes of state carry no meaning.

(ii) Conservative Theory

Scholar - Edmond Burke

According to Edmond Burke, Natural rights are meta-physical abstractions. It means there is no existence of Natural Rights. According to conservatives the real source of rights is society's customs & traditions. No one can enjoy rights until & unless they are not according to the customs & traditions.

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(iii) Moral Theory of Rights / Teleological Theory -

Scholars - Imanuel Kant, T. H. Green.

According to T. H. Green, the origin of rights is in the sense of right & corong. According to him, Human consciousness postulates liberty, Uberty involves rights.

(iv) Functional Theory of Rights -

Scholar - Laski

According to him, Rights & duties are interdependent.

● Types of Rights

(i) Civil Political Rights -

(ii) Social & Economic Rights -

- Right to Edu^n, food,
- Part IV

(iii) Human Rights -

Q. Discuss various debates with respect to Human Rights.

Q. Multi-cultural perspective of Rights.

Q. Value-Pluralism.

Q. Generations of Human Rights (Karal Vasek)

→ 3 Generations

(i) Civil Political Rights.

(ii) Social & Economic Rights

(iii) Group Rights

- Cultural Rights
- Developemental Rights

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What are Human Rights?

Human Rights are considered as those rights which all humans should possess irrespective of their caste, colour, race, creed, nationality. Human Rights should be possessed equally by all humans. If we take out the dimension of equality we destroy the idea of human rights. It means we are treating someone as less than humans

Human Rights have 5 fundamental features:

(i) Equality
(ii) Universality
(iii) Inalienability
(iv) Permanance
(v) Individuality

Lecture 41
04/02/2017

History of Human Rights

The idea of Human Rights emerged after the experience of Hitlers Atrocities on Jews. It was realised that we need to dilute the concept of sovereignty of state, in case state takes away the rights it becomes responsibility of international community to protect human rights. It has led to the universal declaration of Human Rights on 10th Dec. 1948

Human Rights regime faced opposition from communist countries. Communist countries believe that Human Rights is western propaganda for intervention of Domestic affairs of the country. The set of rights included in universal declaration of Human Rights are based on experiences of Hitlers Action. Set of rights given in UDHR are also based on philosophy of liberalism. Liberalism gets associated with westernisation. Hence, some leaders of the developing world called it as cultural Imperialism. They called for asean values.

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They held that western values are not suitable for non-western societies.

At present

(i) UDHR and two covenants
   (a) Covenants on Civil Political Rights 1966
   (b) covenants on Social & Educational Rights 1966.

This three documents together are known as International bill of rights. Besides above documents there are many conventions ressolutions on the rights of minorities, refugees, women, children etc also comes under the growing international regime of Human Rights.

National Govts. have the major responsibility for ensuring Human Rights in their domestic sphere. There are many UN bodies, the prominent being UN Human Rights council acts as a watch dog body. As a result of UN efforts states have established National Human Rights commissions.

International criminal court established under Rome Statute is also the essential component of Global Human Rights Regime. According to Amartya Sen, the concept of human rights is ambiguous concept, Human Rights are just moral guarantees. Human Rights regime suffer from many challenges, conceptual as well as institutional challenges.

Conceptual challenges

International community has agreement only on necessity of the protection of Human Rights but beyond that they lack consensus. There is no consensus even on the definition of Humans. For some all should be considered as Humans whereas for others terrorists, persons committing crimes against humanity, genocide do not deserve to be treated as humans.

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There is also no agreement over definition of terrorists. There is no consensus as to when human life starts. Where it starts in the womb of the mother or after birth. There is a disagreement between those who demand Right to Abortion & those who are against. There is no agreement on Basic rights which can be considered as Human Rights. For western countries Right to Life, Liberty & Property is the most fundamental right but for countries like china these rights are Bourgeoise Rights & social & Economic rights have a priority. At present countries like china, Iran, Russia, Malaysia look at Human Rights as attempts for regime change.

There are problems in the concept of Human Rights as they have to be available to Humans as Individuals. In many societies Individualism is not a value similarly in many societies women do not enjoy equality of status. It cannot happen to extend these rights to men & deny to women. Human rights have to be available to all otherwise it will imply that we are not treating that person human to whom we are not giving these rights. Human Rights are based on universalism. whether person is in Berlin or Baghdad he should have equal rights.

So far Human Rights activism has been shown by the NGOs & the Govts. of the western world. Approach of west has not been neutral. they have been selective. Eg. USA talking about Human Rights violation by the govt. of Syria & overlooking violations by Govt. of Saudi Arabia & Israel.

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In domestic sphere human Rights create the problems for state. By definition Human Rights create powers of State. But states are expected to enforce Human Rights. In most of the Third world countries there is a law & order problem. Many Third World Countries face successionist challenges. The use of power by the state against insurgents becomes the basis for being accused of Human Rights violation.

Above discussion show the conceptual & institutional problems towards the enforcement of Human Rights regime.

Alternative Perspectives

Scholars from Third World Countries suggest that west should not try to impose western way of life on other societies. The leaders in the non-western world expect that west should adopt cultural relativism & multi-cultural approach towards rights. The conception of Rights cannot be detached from the culture of the society. In recent times there is an appeal that west should adopt multi-cultural approach. According to Bhikhu Parekh, There is a need of dialogue between civilisation to evolve the consensus around some basic values governing human rights. According to him Human dignity can be such value.

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Q. Comment on issues of debate on contemporary Democratic Theory.

→ Democracy is an ancient idea in both East & West. In east we see the concept of village republics & in west scholars like Aristotle talking about the direct participation of citizens in the affairs of the city state. However, Democracy as the most acceptable form of Govt. is a feature of Modern society. Samuel P. Huntington has explained the expansion of Democracy in the forms of waves & reverse waves. Present age is known as Age of democracy but there multiple models & theories that present age is also known as Age of democratic confusion. Some of the prominent theories: Models of Democracy debated in contemporary times can be understood with reference to Mac Pherson's exhaustive work on Democracy. Mac Pherson in his book 'Democratic Theory' & in his other book 'real world of democracy' has analysed following models-

(1) Classical Model

Classical Model has two variants i.e. Developemental & Protective. Regarding 'classical theory the criticism is it lacks imperical perspective.

Mac Pherson Analyses the two models of Modern Theory

- Elitist view represented by scholars like Pareto, Michels C wright Mills, Schumpeter these scholars suggests that democracy as a rule by masses is a myth & oligarchy is the iron law.
- Pluralists scholars question the elitist view about western democracies & suggest & gives the concept of polarchies & deform polyarchies.

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Marxist scholars suggest that Democracies in western countries is a Democracy only for the small section of the rich class. According to Ralph Miliband even welfare state remains the instrument of the rich class.
MacPherson who himself is a critical liberal suggests that western democracies are Inegalitarian.

There is also a debate between scholars like Lee Kuan Yew & Amartya Sen over the relationship between democracy & developement & whether democracy is suitable for Asian societies. Lee Kuan Yew suggest that Democracy is a western obsession & does not match to Asian values. Amartya Sen suggests that Democracy is 'Universal value'. He gives 3 values of democracy.

(i) Intrinsic Value - means democracy gives sense of empowerment.
(ii) Institutional Value - related to good governance.
(iii) Educative Value - it makes citizens conscious & responsible.

At present there is a debate over the weaknesses of representative model. We are witnessing the rise of Majoritarianism & decline of deliberative democracy. For scholars like Habermas there is a need for strengthening public sphere. Similarly Amartya Sen supports public reasoning. It is believed that we have to make democracy participative & deliberative, without which we cannot achieve the goals of sustainable developement. There are scholars who also mention about the paradoxes of democracy. eg. Larry Diamond.

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Democracy may lead into populism & inefficient. competition may become conflict.

Thus like all concepts democracy remains contested concepts. To quote churchill "Democracy is the worst form of govt. but it is best till we do not invent the better.

Q. Discuss the Evolution of Theories of Human Rights from Natural Rights to collective & Environmental Rights.

→ Human Rights-

Human Right is the most powerful idea of ourtimes. However Human Rights remains a contested concept It is not only contested but also conflictual.

Human Rights has become the feature of International law after the second world war. Based on the experiences of Germany. International community has adopted Universal Declaration of H R The H can be traced to two scholars ie: John lock who gave the theory of Natural Rights & Immanuel kant who has given the concept of Human Dignity. Human Rights is defined as the set of rights which all Humans should possess just because they are humans. Denial of Human rights is denial of Human existence. The idea of Human rights is also link to the concept of Human dignity. Karal vasek has given the concept of 3 generations of rights.
(i) civil political (ii) social economic (iii) Cultural, collective & Environmental Rights.
one of the earliest theory of Human Rights is Natural Rights According to John locke the basis of Human Rights is reason in man. It is the intuition rather institution which matters.

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Scholars like Thomas Paine, Imanuel Kant, T.H.Green support the arguement of Human Dignity. In contemporary times Jack Donelly support Lockean idea and Allen Gewirth support the arguement of Human Dignity. Human Rights are essentially based on the ideas of Liberalism. Hence the 1st challenge came from the communist block is led to the recognition of social & economic rights.

As a result of decolonisation process many Third world countries became the members of UN General Assembly Third world countries demanded collective rights like Right to developement, Protection of Environment. From Third world countries some leaders demanded to recognise cultural diversities & to adopt/recognise culture specific rights.

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JUSTICE

Syllabus

Conceptions of Justice with special reference to Rawls Theory of Justice & its communitarian critiques.

Introduction -

Justice is the most important concern of political philosophy since the time of plato. In political philosophy justice is not limited to the legal system. Political philosophers have talked about justice as principle of Ethics. The most important idea in Justice is the Idea of Distributive justice.

John Rawls is considered as the greatest philosopher of 20th century. Rawls position in contemporary political philosophy is at par with plato in classical political philosophy. The credit for revival of Political philosophy is attributed to John Rawls. His book 'A Theory of Justice' published in 1971 marks the beginning of the revival of political theory (philosophy).

Works of John Rawls -

1. In 1958 his Article - 'Justice as Fairness' was published.
2. In 1971 came his 'Theory of Justice.'
3. In 1993 Rawls book - 'Political Liberalism' was published.
4. 'The Laws of the people' published in 1999 where Rawls has responded to the arguements & questions raised by Cosmopolitan scholars like Thomas Pogee & Charles Beitz.

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Rawls School of Thought -

- Rawls belong to the school of positive liberalism or social liberalism.
- Rawls is a criticof utilitarianism.
- In his theory of Justice' he has criticised Utilitarian idea of justice
- Rawls was influenced by John Locke like John Locke Rawls has given his theory using social contract tradition.
- Rawls was also influenced by Imanuel Kant. He believes that Human Dignity has to be one of the foundational principle of Theory of Justice.

According to John Rawls, Justice is the 1st virtue of social institutions like Truth as the virtue of system of thought. Like plato, Rawls also think that Justice should be the foundational principle of the society. society may possess other virtues also eg. Merit, efficiency but Justice is the 1st virtue. Justice is the 1st virtue in the similar way Truth is the virtue of the system of thought.

According to Rawls, Natural Distribution is neither just nor unjust. There is no scheme of injustice in Natural facts it is the society which makes justice & injustice. Possession of some qualities or resources become advantageous & some are disadvantageous.
What does it imply?
Since it is a human creation, Human agency can change the system & we can create a system which is just.

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What is Justice?

According to Rawls, Justice is fairness. Justice means Fair to all those who have been advantage~~ous~~ & those are in disadvantage. The Theories of Justice are based on the following principle.

(i) Desert - means what one deserves on the basis of his quality

(ii) merit - from the perspective of society i.e what society values.

(iii) Need -

Rawls combine all the 3 principles in his Theory of Justice

Context of Theory.

Criticism of Utilitarian theory of Justice.

"Each Person Possess inviolability founded on the Principles of Justice that even the welfare of whole society cannot overright the loss of Freedom of some for the greater good of many." —Rawls.

Rawls believe that the Dignity of every person has to be respected. Like Immanuel Kant who held that no one ought to be the means for the other person. Rawls also suggest that the dignity of a person cannot be compromised for the sake of greatest happiness of greatest number.

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lecture 42
06/02/2016

∴ Q. Implementation of Human Rights is regarded as matter of changing the conduct of states. Comment.

Question on Human Rights →

Human Rights is a most poweerful Idea of ourr times. Because Human Rights can bring lot of change in the quality of life. It provides us scope for freedom from expoita", & wants & hunger. If we adhere to HR a better woorld is possible. Though there is a realisation of the potentials & promises yet Human Rights has reduced to another discourse. There are many practical & conceptual issues w.r.t. the implementation of Human Rights. Any attempt to implement Human Rights, any demand for Human Rights becomes political & conflictual. Problem exists because there is a lack of consensus of meaning of Human & what basic rights should constitute the universal regime. There is a need that all those who are the stake holders ie. govts. of developed countries, civil society (HR-NGOs) of developed countries, states is Third World countries & civil society should take honest efforts to depolitise Human Rights. Only when International community will start giving prioority to right over their geopolitical interest coe can build the legitimacy of Global Human Rights regime. Similarly Human Rights Associations (Advocacy goeups of the western countries working in non-coestern countries have to adopt more neutral approach. most of the states from non-western countries suffer from insurgencies, Successionist threat. Human Right groups only emphasfee on the rights of law breakers, criminals, non-state actors. Same level of activism is not shoen for the state authorities. It does not meon that states in developing countries need not to adopt zero tolerence approach tocoards the violation of Human Rights,

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They actually need to bring Human Rights perspective in public policy. They need to enforce discipline amongst law enforcement agency. These states also require support of International community in handling such task in complex situations.

Thus until & unless states of western as well as non-western could bring change in their approaches we cannot institutionalise Human Rights.

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Continued with Justice ...

Utilitarian theory of justice is the dominant theory in most of the western countries. Rawls aims to build alternative theory of justice in the tradition of Liberalism.

What Historical circumstances were prevailing at the time of Rawl ?

During his time there were many social movements & protest going on in US society Hence he felt that the existing theory of Justice is not sufficient & ~~was~~ need to build new theory of Justice.

What type of new theory of justice ?

The Theory which is acceptable to all the theory which all sections of the society find reasonable. Thus Rawls ambition is to build such theory of justice which is rational & which can be considered as an ultimate theory of justice & which can be conducive for social stability.

How Rawls describe his theory ?

Rawls describe his theory as 'Deontological Theory'.

What is Deontological Theory ?

Utilitarianism is an example of ontological or Teleological Theory. Hence, utilitarianism is called as end state theory. According to Utilitarianism, action is justified so long it results into the maximisation of Happiness. Rawls Theory of Justice is Deontological because everyone accept Justice as fairness as a principle. They adhere to it whatever may be the consequence.

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Rawls Methodology-

Rawls revives the tradition of social contract. social contra will ensure that the Principles of Justice are the outcomes of rational dialogue or deliberation rather than imposed from outside. social contract will also result into the emerge- nce of consensus on the foundational principles govern- ing society.

concept of Original Position-

Original Position is like the concept of state of Nature in classical social contract theories. It is a situation before contract.

→ Features of the original Position-

(1) Persons have come together to enter into the contract. What type of persons ?
Rawls does not look at persons as Hobbesian Individuals He rather suggests moral individuals. in Kantian sense. Persons have inherent sense of right & wrong. They are the persons who understand that cooperation is benefi- cial.
Why? They are rational, they have certain goals in their lifes. which they cannot pursue if there is no peace in the society. In the words of J. Rawls every person has a rational plan in his life.

(2) Persons are assembled for the distribution of primary goods.
What are primary goods?
He mentions five primary goods.
(i) Liberty
(ii) Rights
(iii) Income
(iv) Wealth
(v) Dignity.

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There is a difference in primary & secondary goods.
Primary goods are necessary to achieve secondary goods.
What are secondary goods / Rational Plans?
Eg. If somebody wants to become a doctor it will be treated as secondary goods. In order to pursue the rational plan persons require the primary goods.

- Veil of Ignorance

It is a thought experiement.
Purpose of thought Experiement.
To bring people in a situation from where they can look at the things from the completely rational perspective.
How to become Rational?
If those factors which make man non-rational are eliminated.
In original position persons are behind veil of Ignorance which means they do not know particular facts about themselves. Nor do they know the type of society which is going to emerge. Eg. they do not know which quality will be valued or which skill will be valued.
It means they do not know what qualities are going to be advantageous & what qualities are going to be disadvantageous. However this persons have general ideas, some basic understandings of Economics & Psychology.
Outcomes of the contract.
Theory of Justice as Fairness.

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- What are the 3 principles of Theory of Justice as Fairness?

(i) Liberty Principle
(ii) Equality of opportunity.
(iii) Difference Principle. – working in the interest of the least advantaged section of the society.

→ Lexical Order

- a definite order or sequence.

Principles of Justice are in a particular sequence of Priority. Liberty has priority over Equality of opportunity & difference principle.

Equality of opportunity will have priority over difference principle.

What is the basis of Lexical Order?

Rawls give Maximin Principle. since persons are rational they could prefer a system which will give Maximum opportunity or freedom to develope their talents or advantages. They will also ensure that the system is such which ensure their well being in case they happen to be the least advantaged. System should be such which minimise the disadvantages. Rational person will choose the alternative whose worst outcome is better than the worst outcome of any other alternative eg. If person chooses Liberty as the only principle & he happens to be the least advantaged the worst outcome will be worse than the outcome if he had choose dignity as the 1st principle.

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similarly is person chooses equality as the 1st option & :. he happens to be the most advantageous it will be the worst option. Because he will not be in a position to take advantage of his talents.

→ Reflexive Equilibrium -

The Principles of Justice which we have arrived at are not coming from vaccum but they are coming from innate sense of justice inherent in our mind. Reflexive Equilibrium is a process by which we streamline verify our judgements. This happens when we question our believes. Moral judgements have their origin in the society. Justice as fairness reflect Reflexive Equilibrium.

- Justice as Fairness

How rawls 3 principles of Justice are fair?
Rawls has taken into consideration all the 3 principles of Justice ie. Desert/Talent, Merit, Need. His principle of Justice is fair to those who happen to be the most advantaged as well as least advantaged. Rawls does not take Liberty & Equality anti-thetical (opposite) to each other. He rather ~~th~~ look Liberty & Equality as complementary.
How principle of Justice ensures Human Dignity?
According to Rawls, people differ in their talents. Hence, inequality is inevitable. However, @ inequalities related to different offices opportunities can be justified only when they result into the gr resources which can be utilised for the least advantaged section of the society. Eg. Those who are most talented should have more income, will get more wealth. But their possession

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of greater income & wealth is justified only when it is used for weaker section of society. In a way he supports progressive taxation.

Why people should contribute for the least advantaged?

(i) They found it rational when they were behind the veil of ignorance.

(ii) What we possess is not just because of our talent, it is also a matter of chance. Hence, we should compensate those who have not been as advantageous as we are

(iii) If I will not agree there will not be peace & stability in the society which I require to pursue the rational goals of my life.

Lecture 43
07/02/2017

- How Rawls look at Justice?

(i) Justice as the 1st virtue of social institution.

which social institutions?

Political Institutions, Economic & other social Institutions

which principle of Justice?

Justice as Fairness

Note- Communitarians like Michael Walzer in his book 'sphere of Justice' suggest that for different spheres there should be different principles of Justice.

Rawls want to give an absolutely rational idea of Justice which can be accepted by all if they look at these principles from being purely rational point of view.

Communitarians suggest that it is not possible for the people belonging to different culture to agree the one idea of Justice.

Rawls think that just institutions can create just societies.

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Amartya Sen has criticised Rawls, Because Rawls thinks that Justice is the outcome of just institution based on some abstract idea of rationality.

Rawls is criticised by feminists, Marxists, Libertarians, Communitarians as well as social Liberals.

Statements of Rawls:

(1) "Justice is the 1st virtue of social Institutions, as truth is of system of thought. A Theory however elegant and economical must be rejected or revised if it is untrue, like wise laws & institutions no matter how efficient & well arranged must be abolished if they are unjust. Each person possess inviolability Founded on the principles of justice that even the welfare of a society as whole cannot override. For this reason justice denies that the loss of freedom for some is made right by greater good shared by others. It does not allow that the sacrifices imposed on few are out-weighed by the larger sum of advantages enjoy by many. Therefore in a just society the liberties of equal citizenship are taken as settled, the rise secured by justice are not subject to political bargaining. or to calculus of social interest..... Being 1st virtues of Human activities, truth & justice are uncompromising."

(2) "Right is prior to good."

(3) "The Natural distribution is neither just nor unjust, it is not unjust that a person born into society at some particular position. These are simply natural fact. What is just & unjust is the way institutions deal with these facts."

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"Right is prior to Good."

Above statement is given by Rawls as a criticism of utilitarian theory of Justice. Utilitarianism has been the dominant theory of Justice in most of the western societies including USA. Rawls has witnessed social protest. During his time he has witnessed feminist, Black right movements. Hence he is convinced that there is a need for alternative conception of justice. conception of justice should be such which appears fair to all. only when principle of justice is considered as fair there will be peace & stability in the society which is necessary for the pursuit of rational plans.

Within liberalism there are two traditions of ethics. First is Utilitarian represented by Bentham. Second is Kantian Principle which is based on the ideal of Human Dignity & Moral Individualism Rawls supports Kantian Tradition. According to Emanuel Kant, Each person is end in itself. No person, ought to be treated as means to an end. In similar way Rawls also suggest that each person possess an inviolability founded on the principle of justice that even the welfare of entire society cannot override. Rawls call his theory as Deontological. Justice as a fairness has its intrinsic value. It cannot be compromised for the sake of larger sum of advantages enjoyed by many. It cannot be compromised to poli. tical bargaining or calculus of social interest. It is a settled principle. Being the 1st virtue it cannot be compromised.

Rawlsian idea is superior to utilitarian idea of justice.

"Each person has an inviolability founded on principles of Justice."

① Introduction of Rawls-

Rawls is considered as the greatest Political philosopher of 20th century. He has revived the principle of Normative philosophy. His masterpiece A Theory of Justice is considered as a reference point for all contemporary Political philosophers from Nosik to Amartya sen.

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(ii) Purpose:

He was dissatisfied with the Utilitarian Principles of justice which have been the dominant principles of justice in western liberal societies. He believe that liberalism has a better idea of Justice based on the ideas of scholars like Immanuel Kant.

(iii) Influences

Rawls is influenced by the concept of Human Dignity given by Immanuel Kant. Thus Rawls suggest that within Liberalism there is superior tradition that is tradition of Moral Individualism.

(iv) Describe Rawls Ideas:

According to Rawls justice is the 1st virtue of social institutions as the truth is the 1st virtue of systems of thought. If society is not based on the principles of justice it will neither have peace nor stability. The theory of justice has to be based on the idea of Justice as fairness. The idea of justice as fairness is a deontological perspective. It is based on the belief that human dignity has to be the fundamental ideal behind any theory of justice. According to Rawls, each person has inviolability founded on Principles of justice. Human Dignity is the ultimate principle which cannot be violated. Any idea of justice has to incorporate the idea of Human Dignity. Human Dignity is a settled principle it cannot be subjected to any bargain or social calculus. Hence he suggests that the loss of freedom for some cannot be justified for the greater good of others.

Note - His theory is deontological. In his theory of justice Human Dignity as a principle can not be compromised or overlooked. The idea is to explain Human Dignity is essential component of any idea of justice.

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(v) Conclusion:

We can appreciate Rawls idea of justice which is grounded in the concept of Human Dignity only in such societies where Human Dignity is a value system there can be a peace & Harmony. According to Bhikhu Parekh, Human Dignity is on of the strongest value & he believes that Human Dignity can be foundational value of cosmopolitan world order.

● Short Note - original Position

This theory practically not possible

(i) Concept used by Rawls in his Theory of Justice.

(ii) Rawls has adopted the social contract tradition to give his Theory of justice.

(iii) Features of original Position.

- Moral Individuals rather than Hobbesian Individuals:
- They are disinterested persons (mutually).
- They are assembled for determining the principles of primary goods. i.e. Liberty. Equality, Income, wealth, Dignity.
- He proposes a thought experiement known as Veil of Ignorance

(iv) Features of Veil of Ignorance

- They do not know particulars facts about themselves as well as society.
- They have some general idea of economics, psychology.
- They arrive at the 3 principles of Justice.

- Libery - Equality of opportunity - Difference principles

(v) Conclusion.

- To conclude we can say that the real purpose of the concept of original position is to suggest that we can make rational polides only when we can eliminate our own personal preferences. Similarly we should evaluate laws & policies from the original position otherwise our understanding will be biased.
- communitarians have criticised rawls because man cannot abstract himself from his background. In Rawls we see the concept of Atomistic man whereas the real man is situated self.

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Short Note - Veil of Ignorance.

(i) Introduction

Veil of Ignorance is a thought experiement applied by Rawls while giving the principles of Justice.

(ii) Why Experiement?

Because he wants to derive the Theory of justice which appears Rational & Fair by all.

(iii) Conditions

~~Veil of~~ Veil of Ignorance is a concept used in original position.
In original position persons have come together to determine the principles related to the distribution of Primary goods.
They dont know particular facts they know only general facts.
Behind the veil of Ignorance persons arrive at the 8 principles of Justice which forms the basic principles of Rawls Theory of Justice as fairness.

(iv) Significance

Veil of Ignorance ensure that the decisions are purely rational.

(v) Criticism

Dworkin suggests that there is no point putting people behind the veil of Ignorance because we cannot impose those principles of justice which they have agreed behind the veil of Ignorance.
Dworkin in his book 'Sovereign Virtue' suggests the concept of thin veil of ignorance. rather than thick Veil of ignorance proposed by Rawls.
According to communitarians, it is difficult to consider that man can ever be in a orginal position.

Note - Criticism of original Position by Feminists.
~~Feminist~~ scholar Carole Pateman in her book 'Sexual Contract' suggests that the participants in Rawls's theory of social contract are head of the families. In majority of situations Head of the families are men. Rawls does not explicitely mention whether women were part of the deliberation. She believes that if women had been the participant better principles of justice would have emerged.

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Rawls Principles of Justice -

(i) Each person is to have an equal right to the most extensive liberty compatible with similar liberty for others. (Maximum equal liberty).

(ii) Social & economic inequalities are to be arranged so that they are both -

(a) Reasonably expected to be to everyone's advantage.

(b) Attached to positions & offices open to all.

- Lexical order - of principles of justice ↓

1. Liberty
2. 2b - Equality of opportunity.
3. 2a - Difference Principle

Explanation of Principles of Justice -

(i) 1st principle suggest that persons will have freedom to pursue their rational plans. Liberty will result into inequalities. Inequalities are natural bec will emerge because people will differ in terms of talent. However, natural facts are not just or unjust. It is how the institutions deal with these natural facts. We can create such institutions which minimise the disadvantages & maximise the advantages. Inequalities are justified only when -

(a) Inequalities are the outcomes of equality of opportunity. Every person should have opportunity to pursue his talent. (Merit Principle)

(b) Inequalities are justified only when inequalities are made useful for the least advantaged section of the society.

Above principles are fair because they are providing opportunity to pursue one's talent (desert). The person who happens to be the most advantaged understand that his achievements are not just because of his talents. He has certain advantages over the others. Those who are in the least advantageous position will also find it fair because -

- every one had liberty.
- everyone had equality of opportunity.
- their interest is taken care of.

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Criticisms of Rawls Principles of Justice

1. Maximum Liberty (Equal) to all.

(i) Communitarian Critics-

(a) According to Communitarian's, Rawls has not given enough importance to the community. They also do not support the arguement that Liberty ie. Freedom to make choice should be above all other values. It is not necessary that the life of a person exercising his freedom of choice is superior to the life of person not exercising his freedom of choice. Suppose a person exercise a freedom of choice to marry multiple time, it does not mean that a life of a person who marry only for once is not as satisfying.

(b) communitarians also suggest that we are not free to choose our ends. on the other hand, end is already given. We discover our ends rather than choosing them.
Rawls priority to liberty is based on the conception of Atomistic man, whereas man is situated self.
Rawls himself could not be free from the preferences of his own society. His preference for liberty is because of his society ie. US culture.

(ii) Social Liberals Critics

(a) Amartya Sen

In his essay, 'Inequality Re-examined' Amartya Sen appreciate Rawls but he suggest that freedom without capacity carry no meaning. Even Martha Nussbaum also criticised Rawls for overlooking the capacity approach.

(iii) Feminist scholars

(a) Carole Gilligan

she suggest that instead of liberty, 'Ethics of care' should top the priority.

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(b) Susan Molar Okin

In her book 'Gender, Justice & Family' criticised Rawls because Rawls has neglected the issue of justice within the family. He only talks about justice in Public sphere or social institutions.

(2) 2b - Fair Equality of opportunity. → No criticism

According to Rawls, social & Economic inequalities are justified if they are the outcomes of fair equality of opportunity. It means that there should be some leveling process in the society.

(3) 2a - Social & Economic Inequalities are justified only if it results into the benefits of the least advantaged section of the society.

Above principle is known as difference principle. It takes into consideration the importance of Human Dignity. Difference Principle will give a fair deal to those who happen to be in a position of disadvantaged in free market competition. Disadvantage is not because of their choice but because of random unchoosen luck.

Criticism of Difference Principle.

(i) Libertarian Arguement.

(a) Nozick -

Nozick has given 'Entitlement Theory of Justice'. Nozick does not support welfare state. According to Nozick, Progressive Taxation is a bonded labour. It is an aggression or coercion. It goes against the principle of Dignity. Nozicks theory cannot be considered superior to Rawls theory. It is at the best just the Criticism of Rawls Theory from the perspective of Libertarianism.

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(ii) Socialist / Marxists Arguement:

Rawls theory of Justice is a vulgar defence of inequalities found in western societies.

According to Marxists, Rawls Theory of Justice, is not the theory of justice rather a theory justifying inequalities. Rawls has tried to show that inequality rather than equality is a preference. He tries to show it as a rational choice.

- Difference Principle- short Note-

(i) Rawls is a greatest thinker of 20th century.

(ii) His theory of justice is not only an important theory of justice but also given credit for revival of normative political philosophy

(iii) Rawls is a liberal who does not support the utilitarian Theory of justice.

(iv) Rawls has witnessed social movements, protests & believed that there cannot be any stability until & unless people consider existing social system is just.

(v) Justice is a the 1st virtue of social system.

(vi) By using the methodology of contract he has given 3 principles of justice whom he called as Justice as fairness.

(vii) In his theory of justice he tries to achieve equilibrium b/w desert, merit & need.

(viii) He has given his principles of justice in the lexical order. 1st principle is liberty, 2nd is fair equality of opportunity & 3rd is Difference Principles.

(ix) According to Difference Principle social & economic inequalities can be justified only if it results into the benefit of the least advantaged. It is natural that in a system of ~~fair~~ free market capitalism few will emerge as the least advantaged. Their position is not just out of choice but random and brute luck. Hence those who are advantaged should contribute for the well being of worst off.

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Society is a chain. Even the weakest link is important.

Thus, Rawls suggest that Justice as fairness is based on inviolability of Human Dignity.

⊗ However Rawls theory is subjected to criticism from libertarians like Nozick & Socialists.

According to socialists, Difference Principle is vulgar defence of inequality.

Rawls 2nd Theory of Justice -

Book - 'Political Liberalism' published in 1996.

In Political Liberalism Rawls has given 'Political concep tion of Justice'. In political liberalism Rawls has responded to his communitarian critics.

Que. ① What is communitarianism?

② What are the major points of debate between communitarians & libertarians?

③ Give communitarian conception of Justice.

④ Short Note – Michael sandel's Idea of Justice.

⑤ Short Note – Walzer's concept of Spheres of Justice.

① What is communitarianism?

Communitarianism emerged in the west both as a movement as well as a philosophy.

What is the idea behind communitarianism

In western world because of the prevalence of liberalism as dominant culture there has been a growth of excessive individualism. Excessive isolation in the name of freedom results into many negative consequences not only for the person but also for society & state. In western world there is a 'decline of social capital' as suggested by Robert Putnam.

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Hence, communitarianism aims to revive man's relationship with his community. Communitarianism calls for social networking.

As a philosophy communitarianism emerged as a critique of libertarianism (liberalism). Some of the prominent communitarians are Alas Dair MacIntyre; Michael Sandal, Charles Taylor, Michael Walzur.

- Debate between Communitarians & Libertarianism

(i) Concept of self (Human Nature)-

According to communitarians, the liberal discription of man as a Atomistic man is not a reality. Man is never an unencumbered self. Man is embedded self or situated self.

According to liberals, self is prior to end. But according to communitarians self is not prior to end rather constituted by end.

Self is prior to end → It is a liberal argument. They suggest that man should have freedom to decide his end or goal. or conception of good/right also. On the other hand communitarians suggest that man is situated self. We cannot dittach ourself from our community. Good is common. Good is shared. We cannot know good alone. We discover rather than choose. We live in time, space & culture. It is difficult for man to come out of his community. Communitarians talk about practicle reasoning or self discovery rather than abstract reasoning.

(ii) Concept of community -

Liberalism/Liberals do not give importance to community. For liberals community is nothing except the aggregate of Individuals. Liberals believe that person can leave his community. Liberals also believe that there is nothing called common good. Common good is sum of individual goods.

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According to communitarians, it is not possible to overlook community. Community is natural organic. It is bigger than Individual. Individuals good is not independent of the common good.

(iii) Concept of Justice.

According to Liberals there can be a universal Principle of justice. Justice is a product of reason in man. Liberal concept of Justice is based on the concept of Atomistic man. If Liberals take universalistic view of justice, communitarians take particularistic view of justice. The sense of justice will vary from society to society. The idea of justice cannot be independent of time space & culture.

(iv) Concept of State

According to Liberals state should adopt value neutrality. State should be indifferent towards different ways of life. There should be seperation between personal & political. Liberals propose universal citizenship. Liberals relive on the idea of Nationalism to achieve solidarity.

According to communitarians, state need not be neutral or indifferent. State should promote such values which strengthens social solidarity. State should not expect that person will become so rational to forget his communities, customs & traditions. State should adopt cultural relativist perspective state should not attempt to achieve homogenisation for social solidarity. Justice is not universalising. Justice is an art of differentiation. According to them, there is no need to keep religion out of public sphere because that is not possible. It is better if we recognise it & give space in public policies. communitarians supports consociational democracy rather than Majoritarian Democracy.

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Sandal's Theory Of Justice :-

Book - 'Liberalism & Limits of Justice'

Sandal has criticised rawls theory of justice on two major grounds. (i) Rawls conception of self.
(ii) Rawls conception of society.

(i) **Rawls conception of self.**

According to Sandal, Man is embedded self. Man is never in original position. Original position is an abstract idea. People are not abstract individuals making choices, they are moral agents (members of society) located in time & space, embedded in network of relations. For Rawls self is prior to end. But according to sandal self is constituted by end. People take decisions in real life on the basis of what they consider as right. However, it is never a free choice. Hence, the concept of justice can be understood only within the framework of community & not independent of it.

(ii) **Rawls conception of society.**

Rawls should have taken much fuller view of community. Concept of Rights cannot be detached from communities culture & tradition. It is not possible to adopt value neutrality. It is not understandable as to why one should not affirm our identities in public sphere.

Michael Walzer

Book - The spheres of Justice.

In the words of Walzer, 'Different goods ought to be distributed differently. according to the different meaning attached to them by different groups, inacordance to the different procedures by different agents & all the differences are derived from the different understanding which are inevitable products of differences in history & culture.

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We are one another's equals. We are producers of social meaning. We should respect each others concept we should not impose our meanings or values on those who cannot identify themselves with these value.

Justice is not an Abstract concept. Justice is what people subscribe to. He has given example of caste system in India. It continues because people subscribe to the concep of caste. He also gives the example of Ancient greece where people prefer to donate money for building Gymnaseum rather than helping poors.

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2nd Book of Rawls - 'Political Liberalism'

Why Rawls wrote Political Liberalism?
In response to communitarian critic
What was communitarians view?
Justice is particularistic.
All subscribe to that idea of justice which is as per their traditions or community values.
What was the main question Rawls has tackled in his book Political Liberalism?
In Liberal societies, ~~state~~ people have basic liberties like Freedom of speech & expression, Freedom of Religion.
Hence, it is natural that people will be holding different values or philosophies or comprehensive doctrines.
What is the challenge?
How to ensure that persons having different comprehensive doctrine stay together & there is a stability in the society.
How stability is ensured in liberal democratic societies & how they resolve the conflicting issues which will emerge because of Reasonable Pluralism?

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What is Reasonable Pluralism?
In liberal countries persons follows various comprehensive doctrines.
Example of comprehensive doctrine.
Liberalism - as philosophy of life, christianity, Islam, Judaism*
Reason of stability in these societies?
According to Rawls, the reason is democratic political culture
What are the features of democratic Political culture?
(i) Value of equal citizenship.
(ii) People are willing to offer fair terms to each other.
(iii) People stay together for right reason rather than compulsion or bargaining.
— Rawls uses the term overlapping consensus.

According to Rawls, overlapping consensus is not Modus vivendi.
What is Modus vivendi?
Modus vivendi show bargain guided by self interest.
overlapping consensus is based on moral conviction of fairness.
What is overlapping consensus?
Reasonable & Moral people living in democratic political culture are able to develop overlapping consensus on 'Political conception of Justice' for particular reasons.
What is Political conception of Justice
Political conception of Justice is based on the principle of Justice as fairness with some literal modification.
According to Rawls, Political conception of Justice is 'free standing idea'.

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What is free standing?
It means not based on any particular comprehensive doctrine if it resembles any it is just a coincidence.

Political conception of Justice suggest that people believe that the best way to resolve the conflectual issues is through the right procedures which include Deliberation in legislatures as wellas access to the judicial system. Thus. Rawls limit Liberalism to the political sphere. He is not using Liberalism as a comprehensive doctrine but as political liberalism. Thus Rawls admit that one principle of justice cannot be applied to all spheres of life, one princip of justice will not appear reasonable to all. Political Libe. ralism is a characteristic of societies with democratic poli. tical culture.

Communitarian critics-

Book - Communitarian Liberalism.
According to sandal there is no reason as to why people should accept Liberalism as political conception of justice.

3rd Book of Rawls - The Laws of the People.

In this book rawls has responded to the questions raised by cosmopolitan scholars like thomas Pogee, Charles. Beitz.
What are their questions?
(1) Since people in south are suffering because of unjust institutions imposed on them by the rich people of North. Since we are living in a global world should difference principle be applied between societies ie. to tax rich in the north for the wellbeing of poor in south.

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Rawls declines, Difference Principles cannot applied between societies. However he suggest certain norms which should be followed by liberal countries towards non-liberal decent people. like non-interference in domestic affairs, observing treaties, Respect Sovereignty, Observing code of conduct with prisoners of wars, helping in times of calamities.

Amartya Sen on Rawls Theory

(i) He appreciates Rawls for giving the criticism of Utilitarianism. He appreciates because Rawls make fairness as the basis of Justice. He also appreciates because everyone should get equal freedom. However he disagree with Rawls on following:

(i) He does not support the necessity of any universal idea of Justice. we can never arrive at an idea of Justice which can satisfy all. He explains it through the story of 3 children.

(ii) He also does not believe that Justice is a product of procedures. According to Amartya Sen, ~~Naya~~ Nyaya is superior to Niti.

(iii) He was inspired by Buddha. Buddha was trying to eliminate human sufferings. The porpose of policy should be to eliminate human suffering which he calls as realisation focused approach.

(iv) He calls his Methodology as social choice which is superior than rational choice. Rational choice is based on abstract persons making decisions in idealised conditions. social choice is real persons making choices in practicle situations.

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(v) Amartya Sen calls his theory of Justice as comparative comparative Theory does not focus on achieving perfectly just society but making society as just as possible.

Nozick's Theory of Justice-

Nozick calls it as Entitlement Theory of Justice. Nozick gives libertarian view of justice. He does not support progressive taxation. He support Night watch man/minimal state. State should not attempt to remove injustice. Historical injustice cannot be stretched too far in the present times. State has only following powers w.r.t. Right to Property:

(i) State should see that property is right fully owned, transferred or inherited.

(ii) There is one situation in which state can intervene in Right to Property when Right to Property can put the life of many in danger. He gives a example of village where there is a single well. Well is the only source of the water. Life of villagers are depend on the water from the well. If the owner of the well depreives others from taking water state can use force & make water available for others.

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Q. What is concept of Justice in modern Political

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① Importance of Theory of Justice.

Since the time of plato. plato called his theory as

Modest times - western world - many theories of justice exist.

ⓐ Utilitarianism based on ideas of Bentham-
Utilitarianism - based on greatest good of greatest men. Right of few will be sacrificed for greater good of society.

ⓑ Marxist theory of Justice - questions & inequality & Inhuman conditions found in western world where the dominant tradition is utilitarianism
Communism is a perfect idea of Justice In communism system of justice will be based on 'Need'.

ⓒ Social Welfare approach - one of the most impressive work from social liberal perspective is from Rawls who defines justice as fairness there are 3 principles in lexical order -
Rawls theory has led to revival of normative pol. philosophy & has given rise to many other theories.
- Eg. Feminist Perspective. (Susan Molar Okin - In her book Gender, Justice & Family suggest the need to understand the injustice within the family.
- Nozick gave Libertarian critic in his entitlement theory challenges the idea of welfare state. Justify the idea of Nightwatchman state.
- Amartya Sen appreciates Rawls theory but suggests to have realisation focused approach, calls his theory as Comparative theory which is based not on rational but social choice. He establishes the supremacy of Nyaya over Niti.

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Though Pratap Bhanu Mehta suggest that Amartya Sen's theory may create practical issues w.r.t. the implementation as some level of agreement or procedure is required yet A. Sen's idea of capacity building trump over other theories.

(d) Communitarians also given the theory which focus on better understanding of self, community & adoption of principle of differentiation. They suggest spheres of Justice.

Q. To what extend does Rawlsian goal of achieving ~~success~~ deep social justice depends on overarching consensus among cultural religious & ideological groups.

(1) Rawls & significance of his work.
(2) Rawls want to derive such theory of justice which appears rational to all so that there can be peace & stability.
(3) In his book 'A Theory of Justice' published in 1971 he gave the 3 principles.
(4) His theory has been subjected to criticisms from various schools of thought. One of the prominent critic of Rawls work is from communitarians.
(5) Communitarian view - They suggest idea of justice has to be particularistic.
(6) Michael sandals -
(7) Rawls in his 2nd book on justice published in 1993 ie. Political Liberalism gave Political conception of justice.
(8) Rawls question arises to how stability can be ensured in a society where people adhering to different comprehensive doctrines live. Such problem will arrives in a Liberal society because only Liberal Society provides freedoms like freedom of speech, religion.
(9) Rawls believe that people living in societies with democratic culture can develop overlapping or overarching consensus over the political conception of Justice.

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Political conception of Justice is free standing idea. Not based on any comprehensive doctrine.

People living in such societies have the sense of justice they are willing to offer each other fair terms, they believe that the best way to resolve disagreements on the issues of moral conflicts is through Liberal democratic procedure. They consider each other equal. They go for public reasoning.

Thus people following different comprehensive doctrine can develop overarching consensus. Overarching consensus is different from Modus Vivendi.

Thus Rawlsian goal of achieving social justice ie. that will lead to peace & stability will depend on overarching consensus. However, communitarians continue to question Rawls as to why people should agree to the political conception of justice & they are skeptical about the possibility of overarching consensus.

Q. Examine Rawls Arguement for democratic equality.

① Introduction- Rawls & his greatness.
② Rawls theory of Justice
③ Why? Because there was protest
④ According to Rawls, Justice is the 1st Virtue.
⑤ Lexical order & 3 principles.
⑥ Communitarians criticism.
⑦ Political Liberalism
⑧ Political conception of Justice.
⑨ Stability is possible as people in a democratic political culture treat each other as equal citizens., ready to offer fair terms will develop overlapping consensus on Political conception of Justice. They agree that democratic way is a way to to
⑩ Thus in his book we will get the idea of democratic equality which is necessary for stability in the society where people adhere to diff. comprehensive doctrines.

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EQUALITY

Syllabus

1. Social, Political & Economic Equality.
2. Relationship between equality & Freedom
3. Affirmative Action.

According to Dworkin, Equality is 'Sovereign Virtue'. It means equality will trump over all other virtues. Equality is the idea of Modern times as our consciousness is growing our understanding of equality is expanding becoming deeper. Equality is closely associated to Human Progress. Human Progress can be defined as Expansion of Freedom & Equalities. Equality is linked to the concept of Dignity. Equality gives the sense of well being.

Types of Equalities -

1. Liberal Idea -
   - Equality before law.
   - Equality of opportunity.
2. Marxist View -

For Marxists the above to ideas represent formal procedural view of equality. It is not substantive idea. Real equality is possible only in communist society. where private ownership does not exist, classes do not exists. Every person works according to his ability & gets according to his needs. Hence Marxists are not satisfied with Equality of opportunity, they want equality of outcome.

3. Social Liberal Idea -

Social Liberals establish equilibrium between Liberty & Equality. Rawls suggest that inequalities are bound to emerge but inequalities can be justified only under 2 conditions:

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(i) Out of fair equality of opportunity.
(ii) When it is beneficial for the least advantaged.

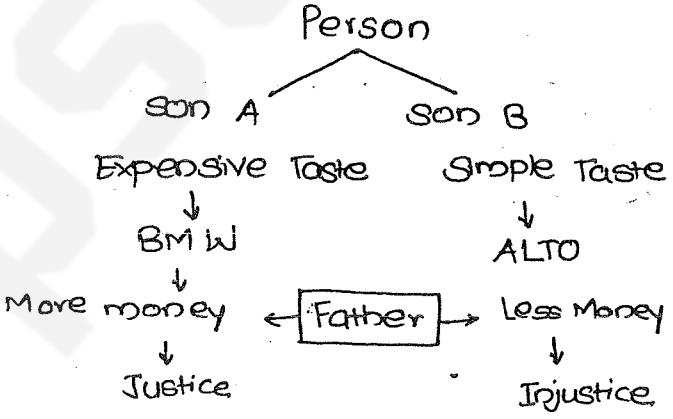
thus Rawls gives veto power to the least advantaged. Inequalities are justified only when the interest of weaker section is being taken care of. According to him, rich should agree because they understand that their possession is because they have certain advantages. If rich will give a particular percentage of their income for the poors it will not make a big difference. Because the marginal utility of the money which is given is not so big. Similarly poors will accept that inequalities are the outcomes of fair procedure. At the same time they are also getting resources to adress their sufferings. The amount of money poors will be getting will have huge marginal utility for poor.

• Theories of Equality.

Amartya sen in his article 'Equality of What' analyses different theories of equality & gives his own theory of Equality. There is a consensus that equality is essential but there is a lack of clarity as to — We have to make people equal in what sense.

(1) Equality of Welfare

It is a Utilitarian approach.
According to Utilitarians we should try to achieve equality of welfare ie. equality of pleasure or happiness.



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Dworkin is social liberal

According to Dworkin, "Equality of Welfare would require all of us to keep compensating someone who messes up with his life over & over, to keep his level of welfare as every-one elses, but no sensible egalitarianism would agree."

② Equality of Resources -

Scholar- Dworkin

Dworkin suggests to give equal resources. According to Dworkin just society is where initial distribution of resources is just.

Book - Sovereign Virtue.

Terms ① Ambition sensitive Auction.
② Endowment sensitive Auction.
③ Envy test
④ Insurance
⑤ Option luck Vs Brute luck

People are travelling on the ship but that ship has got damaged. People cannot go back to their homes. They reach to an Island which is uninhabited island has resources people decide to start their society on the island. People decide Auction as a method to determine who should get what.

Why Auction?

Auction is the best method to understand the real value of any resource/ commodity.

People decide to distribute clamshells equally. Clamp-shells are used for 'Ambition sensitive Auction'.

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In Rawls theory people are behind Thick veil of Ignorance but in Dworkin they are behind Thin veil of Ignorance. They know their talents, advantages, disadvantages, but do not know the actual value of their talents. It can be decided only by Auction. Value cannot be decided by the person. Value depends on how much market is willing to pay. In the end of the Auction it may happen that persons talent has the least demand in the market. Hence, people will go for keeping some clamshell as a Insurance. Hence a common pool can be created. Dworkin Proposes Envy Test. that distribution is fair which does not result into the feeling of Envy. when a person is satisfied with his own bundle then feeling jealous for the bundle of the others. Dworkin gives the concept of option luck as well as Brute luck. Insurance can compensate both Auction and Brute luck. Dworkin suggest that common pool can be used for the benefit of those who suffer from Brute luck. Suppose a person suffers from some physical disability he will have to keep some extra clamshell to compensate for the disadvantages. Hence he cannot enter into the Auction with the same level of equality. Such person should be given extra clamshell to compensate for Brute luck. According to Dworkin Libertarian arguement that people are responsible & should be held responsible for the outcomes of their choices does not apply. According to Dworkin people are not responsible, should not be held responsible for the unchoosen circumstances in which they make choices. Hence he suggest Endowment sensitive auction ie. giving extra clamshells. to compensate disadvantages.

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③ Amartya Sen's Theory of Equality-

He suggest to make people equal not just in resources but in capabilities. Amartya sen gives two concepts:

① capability- capability is the ability to do what one wants. capability is absence of deprivation.

② Functionings- Functionings is 'being & doing'. Functioning is doing what one wants to do, it is a source of well being.

Eg: If we give two children the bicycles one knows cycling and the other does not know, they cannot have equal level of Functioning.

He compares hunger & fasting. Hunger represent deprivation as hunger cannot be choice whereas fasting can be a choice & itself a source of functiong.

Hence he suggest state to adopt capability approach. Poverty is not just the absence of income it is presenx of deprivation. Resource equality is equality of means whereas equality of capability is a equality of ends. The ends being functioning.

capability approach is better because it takes into account the diversity. Different people may have different types of deprivation. Eg. In Indian society the nature of deprivation which a poor girl child may suffer are going to be the different from the deprivation which poor male child will suffer. Capability approach focus on Human developement. In Capabilities approach people are not means of economic growth rather ends of economic growth. Thus he defines developement as freedom.

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Lecture 47
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Normative Philosophy

(4) Complex Equality -
Scholar - Michael Walzer
Book - Spheres of Justice

According to Walzer, Different goods ought to be distributed differently.

According to Walzer. Complex Equality means No citizens standing in one sphere or with regard to one social good can be undercut by his standing in some other sphere with regard to some other good.

Eg. Person X may be choosen over person Y for Political office, the two become unequals in sphere of politics. However, this inequality will not be inequality in general so long person X does not take the advantage of his office over person Y in any other sphere like superior Medical care, better schools for his children & opportunities in Economic Sphere. Walzer suggest to block exchanges. Goods obtained in one sphere should not be used to obtain good in other sphere. Eg. Money. person earns in economic sphere should not be used to buy power & influence in political sphere.

Thus Complex Equality will lead to more Egalitarian distribution of social good. In each sphere distinct inequality will prevail but given the plurality of spheres, eventually every person will acquire good in one sphere or the other. The core argument is that inequalities are in accordance to the nature of sphere of life, but we cannot permit these inequalities to become cumulative, overlapping & reinforcing one another.

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Relationship between Liberty, Equality & Justice -

Liberty, Equality & Justice are the prominent values in the Normative Political Theory. They are overlapping values. The Relationship between Liberty, Equality & Justice can be understood only with reference to a particular school of thought. Different schools of thought not only disagree on their relationship, they also disagree on the meanings of these concepts.

① Classical Liberals / Neo Liberals / Libertarians -

Classical Liberals look at liberty as absence of interference by the state & society. According to Hayek, Liberty is absence of coercion. This view of Liberty is now known as Negative Liberty. Liberals support the idea of equality before law & equality of opportunity. However for liberals attempt to establish social & economic equality by the state reduces liberty. Hence, Liberty is Anti-thetical to the idea of social & economic equality. According to Nozick's Theory of Entitlement, it would be injustice if state interferes in person's right to property for the sake of justice.

② Marxists

Marxists call liberal idea of Liberty as false consciousness. The so called liberty in western capitalist society is not Liberty but Alienation. The Liberal idea of equality is formal & procedural & far from being substantive. Instead of Liberty & social & Economic Equality being Anti-thetical they are complementary. However, Marxists make a difference between Liberty & Freedom. According to Marxists freedom is freedom from necessities. only under communist mode of production man can achieve perfect freedom. Thus social & Economic equalities are the pre-conditions for freedom & Justice

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③ Social Liberals / positive Liberals.

Social Liberals like T.H. Greek, Laski view Liberty & Equality as complementary. T.H. Green takes the view of positive liberty in terms of capacity.

T.H. Green and Laski support intervention of state for the regulation of Market. Laski justifies social & economic rights & welfare state.

In contemporary times scholars like Rawls has incorporated the 2 principles of Liberty & Equality in his theory of Justice as Fairness. Amartya Sen also defines developement in terms of freedom & freedom in terms of expansion of capabilities.

Thus the nature of relationship remains a matter of debate among the prominent schools.

Indian constitution reflects the approach of positive liberals.

To conclude one can mention value pluraliers given by Issaih Berlin who held that there can be multiple values, values are incommensurable.

Q. How is liberty a Precondition for Equality.
Explicate the relationship b/w liberty & Equality.

Liberty as Pre-condition for Equality.

Liberty & Equality & their relationship is a major area of debate in normative political theory.

Liberty can be understood in terms of empowerment.

Equality can be understood in terms of developement.

classical liberals look at Liberty & Equality as Anti-thetical.

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Any attempt by the state to bring equality results into the reduction of liberty. Hence, classical liberals/ & libertarians wants to limit the state to the role of Night watchman.

Marxist scholars believe that substantive equality ie. social & Economic Equality is a pre-condition for freedom. They define freedom as Freedom from necessities. Social liberals like Rawls consider liberty has a priority over equality. He prescribes a lexical order in his principles of Justice. He makes liberty as a conditio to adress a concerns of the least advantaged section of the society. Amartya Sen suggest the inter-dependenc between empowerment & developement. According to A. Sen Empowerment of people results into the development. Thus political Liberty ie. Democracy can be the means for developement. Even the constitution of India recognises relationship b/w political & social-Economic Democracy. In Part III we have enforceable Fundamental Rights & in Part IV social & eco rights Though rights in Part IV are not automatically enforceable yet they are soppose to be fundamental in the governance of the country. The members of constituent assembly recognised the value of Liberty & hence the rights have to be given automatic enforcement. According to, Greenville Austin, Political Revolution was as Means to achieve social & economic revolution.

Note- According to A. Sen, when people are empowered they make demand for public action.

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Affirmative Action

What is Affirmative Action ?

Affirmative Action is Positive Discrimination in favour of the weaker section of society. Affirmative Action should not be treated as reverse discrimination. It should not be considered as discrimination against someone. rather it is a discrimination in favour of someone.

The idea of Affirmative Action is based on the assumption that in every society there can be certain sections who have been historically disadvantaged like Blacks in USA or Dalits in India. It is assumed that they cannot come at par with those sections of the society who are considered as the forward section on their own. Hence, external catalists are required. Countries may follow different type of Affirmative Action policies. Reservation or Quota's is one of the strongest option for affirmative action.

Policies like Reservation Remains a contested issue. Those who oppose they believe that it compromises merit, it is a reverse discrimination & compensatory justice. These policies have limited rationality because they do not achieve their ends rather they become end in themselves. Affirmative Action policies have to be enabling policies. Affirmative Action policies cannot be on a permanent basis. If policies extended on permanent basis for the same group it defeats the purpose. They are enabling policies which should enable the members of backward classes to come at par with the forward sections in a given time frame.

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However, if such policies are continued on a permanent basis it defeat the purpose.

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POLITICAL THEORY

- Syllabus

– Meaning and approaches.

- Evolution of Political Science as discipline.
- Utility of Political science as discipline.
- Nature of Political Science.
- Methodologies & Approaches-
  Traditional, Modern, Contemporary,

- Evolution of Political science as discipline.

Political science is one of the oldest disciplines But at the same time one of the most dynamic & vibrant discipline.

Political science originated in Ancient Greece. The term political science comes from the Greek word Polis which means city state. The systematic study of the city state, its institutions, processes became the area of study. Aristotle who is known as the Father of Political science, called Political science a master science.

According to Barker, Political Science is a master science. Architectonic in its character. From which all other practical sciences take cue means directions.

Stage I

It started in Ancient Greece. It started as the Branch of Ethics or Philosophy. Scholars like Plato held that Ethics & Politics cannot be seperated. The question of good life cannot be seperated from the question of good political life.

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Stage II

In Medieval times Political science became the sub discipline of Religious studies or scholastics.

Stage III

It was Machiavelli who made politics independent of religions and ethics. He was the 1st person to establish autonomy of politics as a discipline. He held that for politics we have to go for emperical observation and understanding of History rather than Ethics & Religion.

Gradually Political Science became a specialised disciplin where the study of state (Govt & Constitutions) became the core area of study. It has been held that Political science begins & ends with the state.

Stage IV - After 2nd World War

Uptill 2nd WW Europe was the place for the growth of the Political Ideas, philosophy, after 2nd WW the growth of discipline has been in USA. American Political scientiest under APSA (Americal Political Science Association) started advocating that Political Science should be made pure science. In USA a movement which is also known as Revolution developed that is Behaviourialism. Behaviourialists introduce scientific techniques in Political Science to make Political Science a pure science.

Stage V - From 1960's onwards.

Rise of post Behaviourialism.

It was realised that if attempt is made to make political science a science it will not only compromise the subject matter it will also compromise the relevance.

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Post Behaviourists held that it is neither possible nor desirable that Political science becomes a pure science. Though Political science can be a 'Applied Science'.

In contemporary times in the western world specially in Europe some new perspective like post modernism, Critical school developed. The scholars of Third World countries have developed the school of Post colonialism.

Today Political science is a vibrant discipline with expanding frontiers. It's scope & methodologies are being expanded. Today Political science not only includes the study of state it also includes the study of family (Personal is Political) it also includes Environment. Many Hybrid decisions like political sociology, Political economy, Bio politics have also come into existence.

- Nature of the Discipline-

Nature of political science remains a matter of debate. According to one school of thought the nature of Political Science is philosophical. They suggest that Political theories are normative theories. They suggest that political scholars should take up normative issues & the better method to tell is the ~~philosophy~~ is theory is by philosophical approach.

On the other hand there have been a scholars who wanted that Political Science should be distanced from philosophy. Political science should be made Pure Science. These scholars (Behaviourism) assumed that it is possible to introduce scientific techniques & to produce non-normative theories.

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However, there has always been a big question mark on the nature of Political Theories as scientific to quote Naitland - when i see a question paper with the title Political Science, i am more troubled with the title than the questions.

It is to be noted that today it is acknowledged that even scientific theories are paradigms.

Since the emergence of post modernism it has been acknowledged that all theories are discources. According to Foucault there is a knowledge power connection. Even scientific theories are not free from the phenomena of power. Post modernism has established that theories are interpretations. In contemporary times Political science is considered as 'Interpretative Discipline'

- Utility of Political Science as Discipline -

Q "Political theory is quite simply, Man's attempt to consciously understand and solve the problems of his group life and organisations. It is a disciplined investigation of political problems. It not only show what political practice is but also what it means. (interpret) In showing what a practice means, or what it ought to mean, political theory can alter what it is." (change - better life) - Savine

- consciously - disciplined / formal study.
- problems of group life & org. - Scope of Pol. science.
- what a political practice - explain Pol. science
- what it means - interpret
- what it ought to mean - Normative
- political theory can alter what it is - change, better life.

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Approaches of Political Science -

(i) Traditional Approaches -
(a) Philosophical Approach.
(b) Historical Approach
(c) Empirical Approach
(d) Legal Institutional Approach.

(a) Philosophical Approach.

Q. Explain the salient features of philosophical Approach/ Normative Approach. what are the major limitations & strength of philosophical Approach.

Q. Compare Normative theory with Imperical Theory.

→ It is the oldest approach. Political science has its origin in the discipline of philosophy.
What is philosophy?
Plato is known as father of political philosophy. Plato has defined philosophy as the study of 'Ideas'. Plato has also established the supremacy of philosophy over any other branch of knowledge including science. It is superior than study of matter.

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Exponents of philosophical Approach.

(i) Plato
(ii) Leo strauss
(iii) Plamanatz
(iv) Dante Germino
(v) Rawls.

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Features of philosophical Approach:

It deals with normative issues like Justice, Equality, Liberty

philosophical approach uses the method of logical reasoning. Philosophical Approach deals with what ought to be rather than what is. Philosophical Approach is Prescriptive, Suggestive.

However, Philosophical Approach may suffer from certain limitations (i). In the absence of verifiable data philosophical theory becomes Arm chair Theories. they are not considered as theories rather set of arguements given by the philosopher.

(ii) Since, Philosophical Approach deals with normative issues, these theories themselves become biased.

Present status -

There was a time when philosophical theory was in the state of decline. philosophical theories were rejected by behavioural political scientists as Arm Chair theories.

However, in present times there is a revival of interest in normative political philosophy. especially since the publication of Rawls theory of Justice. After Rawls theory of Justice large no. of works based on philosophical Approach have come into existence. Critical school scholars have criticised science. According to them science promotes 'Instrumental Rationality' critical school prefers normative questions. Post Modernism has also challenged the authority of science & led to the revival of interest in philosophy.

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(b) Historical Approach.

- Exponents:-

(i) Machiavelli;
(ii) Savine
(iii) Laski
(iv) Dunning.

There has always been the perception that politics is closely related to History. It is held that politics is present History & History is past politics. Similarly it is said that History is a root, politics is a fruit.

According to Laski, Every thinker is the child of his times and no political idea is ever intelligible. Save in the context of time.

According to Machiavelli, History is the best guide to understand politics. He did not want that philosophy should be the basis to understand politics. The study of History has ~~st~~dominated Political studies for long. International relations for long has been studied as 'Diplomatic History'.

According to Savine, Historical Approach serves all the three conditions of good approach. 1st condition is factual, 2nd Explainatory, 3rd Evaluative.
(What happened, what should happen, what could have happened).

Though Historical Approach has been popular because of its simplicity there are some Limitations of Historical Approach.

(i) History is Extremely vast all that has happened in history may not be useful. It becomes a challenging task to identify relevant data.

(ii) There are many important political ideas which have never existed in History yet important for the student of political science like theory of philosopher king or idea of communism.

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(iii) History writting has not been scientific. History has been written in a biased manner. Hence, at times History may be misguiding.

(iv) It is good to understand History but it should not happen that we become prisoners of History.

(v) Political scholars have not used History in a Non-biased manner E.g. Machiavelli has done the selective use of History. He has looked only for those instances in History which supported his point of view

(vi) Karl Popper has criticised Hegel and Karl Marx for committing the guilt of Historicism. (the political ideological use of History).

Present status of Historical Approach.

Historical Approach has gone into decline because of Behavioural Movement. Behavioyal Political scientists like David Easton criticised Historicists like savine and Dunning responsible for the decline of political theory. Behaviourialists suggest to take Political theory away from philosophy, History & Law. They suggest to bring discipline near to Psychology, Sociology, Economics.

In present time there is a revival of interests in Historical Approach in the form of contextual approach. W

What is contextual Approach?

Contextual Approach is a approach for studying texts. Eg. Machiavelli's 'The Prince' or Hobbes's 'Leviathan'.

It is influenced by the developements in the field of the interpretation of religious texts like Bible or Quran.

There are two approaches for the study of text:

(i) Textual Approach.

(ii) Contextual Approach.

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(i) Textual Approach.

It is a literal interpretation of text. Since it is literal interpretation meaning does not change.

(ii) Contextual Approach.

It is interpreting text according to the context. It includes taking into consideration the context of the author and the context of the leader. Since it is contextual meanings keep on changing.

According to contextualists, we cannot understand the meaning of text without understanding the text.
Eg. We cannot understand why Hobbes justify absolute authority of the state without understanding the situations of his time.
According to Textual Approach if we want to understand the text there is no need to understand the context we read text again & again we can grasp the meaning.
According to Contextualists no amount of readings will be sufficient to understand the text.
According to contextualists what is understood as the ultimate explanation is also a interpretation.

According to the supporters of Textual Approach there is no point studying texts if meanings are contextual.

Gadamar suggests that we live in effective History. and there should be fusion of Horizons.

Tully suggest that it is necessary to understand the right context. Eg. The right context of Locke can help us to understand that his advocacy of Right to property was for the protection of religious dissenters.

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Cambridge school scholars like Pocock & Skinner suggest to understand linguistic context.
What is linguistic context?
Linguistic context suggest that the meaning of words keeps on changing Eg. When John locke suggest that govt. is a trust that we have to see that whether we are able to understand exactly what Locke wanted to convey.

Derrida also supports the contextual approach. Derrida suggest the deconstruction, double reading & active reading

© Legal Institutional / Legal constitutional Approach.

Exponents-

(i) A.V. Dicey
(ii) K.C. Wheare
(iii) Ivor Jennings
(iv) C.F. strong.

Legal constitutional Approach has been applied by the political scholars in a big way when political science was understood as the study of state. The approach was employed primarily in the branch of comparative govt. and politics. These scholars have studied the provisions of the constitution. Legal constitutional Approach is very close to Legal Institutional Approach. In Legal Institutional Approach focus has been on the study of institutions like Parliament, Judiciary. Its origin, evolution, challenges etc.

Present status

legal Institutional Approach has been the dominant approach till 2nd world War. However, with the emergence of Behavioural Approach, legal approach suffered from decline. Behaviouralists suggested to ~~politi~~ study political behaviour, ~~study~~ politics as ~~study rather~~ process rather than the study of institutions

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However, in recent times there is a revival of interests in Institutional Approach with the publication of the works of March and Olson. In their book 'the new institutionalism' and 'rediscovering institution' they have suggested that it is not enough to study behaviour. Actors are not free. Institutions, norms, procedures, constrain the choices.

Institutional Approach has given rise to structural functional Approach.

(d) Emperical Approach.

Compare Imperical Approach with Normative

Emperical Approach is as old as Normative Approach. Normative Approach cannot be completely independent of Emperical Approach. Eg. Plato has given the Theory of philosophical king only after observation of situations in Athens.

Aristotle has applied Emperical Approach in his classification of constitution & theory of revolution. Machiavelli also recommends imperical observation along with Historical Approach.

Emperical Approach focus on the study of facts by the method of observation. According to John Locke, mind is tabularasa (clear slate/board). It means nothing is imprinted on our mind and soul. According to Locke, observation and experience is the source of knowledge. In order to understand characteristics of imperical approach we can compare Emperical Approach with Normative Approach.

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(i) Normative Approach means study of values (Liberty, Justice, Equality).
Imperical Approach means study of observable facts

(ii) Normative Approach ~~means~~ is prescriptive whereas Imperical Approach is Discriptive

(iii) Normative Approach deals with what ought to be whereas Imperical Approach deals with what is.

(iv) Normative Approach is future oriented (change oriented) whereas Imperical Approach is status quoist (static)

(v) The criteria of Normative Approach is right & wrong whereas the criteria of imperical approach is true or false.

Imperical Approach has led to the evolution of Scientific approach. Though Imperical Approach in its is not scientic Approach. For any theory to be qualified as scientific theory it has to pass through the rigourous methodology adopted by science.

- Modern Approach / Scientific Approach / Behavioural

What is behavioural approach?
Movement in Political science to introduce scientific methodology is known as Behavioural Movement. However, when methodology changes method as well as scope of discipline also change. Hence Behaviourism even changes basic assumptions about Human nature & politics. It is for this reason Behaviouralism is also known as revolution.

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Why Behaviouriolism?

Behaviourialism started after 1st coord coar but in a big coay after 2nd coorld coar. It coas promoted by Americal Political Science Association. There are intellectual as well as Historical reasons behind the emergence of Behaviouralism.

Historical Reasons-

The discipline of Political science coas in the state of decline. David Easton suggested decline of political theory cohereas Robert Dahal declared the death of Political theory. They have blamed Historicists & traditionalists like Sovine & Dunning for the deaine of political theory. They held that these scholars have engaged themselves studying old ideas; They are not producing any theory coich can deal coith contemporary problems.

Why this realisation?

After 2nd coord coar academic conferences coere called so that scholars can give suggestions on future reconstruction & developement. In these conferences scholars belonging to different spheres were invited but political scientists coere not invited.

Why?

other disciplines have refined their methodologies, they have adopted scientific methods. They could produce reliable & verifiable theories.

Political sdence nieither had reliable theories nor any theories coich could address contempory consense*.

Consensus

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Academic Reasons.
Chicago school scholars like Catlin and Laswell have been emphasising to study politics as a process. Scholars like James Bryce called that we require 'Facts, facts and facts'

Features of Behavioural Approach
David Easton in his lecture to American Political Science Association has given '8 intellectual foundation stones of Behaviourialism'.
What are these features?.

(i) Regularities - it means just there are observable regularities in the natural world similarly there are observable regularities in human behaviour. Hence we can make scientific theory.

(ii) Systematisation - like ~~s~~research in Natural Sciences there should be systematisation in social sciences. It means there should be connection between the hypothesis and data collection.

(iii) Verification - Our hypothesis should be capable of verification through facts.

(iv) Techniques - They suggested to incorporate scientific techniques ie. Mathematical & statistical techniques.

(v) Measurement - Results should be expressed in quantifiable manner.

(vi) Integration - Adopt interdisciplinary approach. However we should not bring our theory near to History philosophy & law rather we should bring our theory near to scientific disciplines like psychology, sociology & economics.

(vii) Value Neutrality - Political Scholar should not express his value preferences

(viii) Pure Science - when we will observe about methods Political science will become pure science.

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Achievements -
large no. of works based on behavioural approach came into existence. However, Most of the studies were on electoral behaviour. That is the only field where we can produce quantitative data.

Post Behaviourialism -

Time- 1960s

Why Post Behaviourialism?
Political science was once again in the state of decline. This was the time when there were many protests taking place in USA. However, works of Political scholars had no relevance in addressing these issues.

Why?
Political scholars neglected normative issues. They dealt with only such issues where it was possible to employ scientific technique. Hence, political works were primarily in the field of electoral behaviour. Political Scholars compromise the scope & relevance of the subject.

David Easton who has given a intellectual foundation stones has given another lecture at American Political science Association introducing post Behaviourialism. The title of lecture was 'Credo of Relevance. He criticised political scholars seating in ivory towers perfecting their techniques but compromising the subject matter & the relevance. He called for Creative theory.

What is creative Theory?
It is guided by -

(i) action
(ii) Relevance.

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He held that technique is important. But the purpose for which techniques is employed is more important. Hence, for the sake of purity of techniques we cannot compromise with the relevance. He held that political science is not pure science. It should be an applied science. He held that the responsibility of social scientists is bigger than the responsibility of Natural Scientists. Natural Scientists need not to concern about what is right & wrong but social scientists has to guide the society.

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- 7 features of Post Behaviouralism

(i) Technique is important that aim is more important for which technique is used.

(ii) The task of political Socialscientists is more challenging than that of Natural Scientists.

(iii) Post Behaviouralism does not reject values rather invite values However post Modernism suggest that theory should not be biased.

(iv) Theory should have ability to solve the crisis.

(v) We should promote such values which contribute towards the flourishing of Human Civilisation.

(vi) Political Science is applied science rather than pure science

(vii) Political Science is a useful discipline which needs to be supported & promoted by research foundations and Universities.

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Nature of Post Behaviouralism.

Is post Behaviouralism nearer to traditional Approach or Behavioural Approach.

Post Behaviouralism is not closer to traditionalism. It is not a 'counter revolution' against behaviouralism. It shares basic assumptions with Behaviouralism. It carries behaviouralism forward if traditionalism is thesis, Behaviouralism is Anti-thesis & Post-Behaviouralism is Synthesis.

Intellectual Influences on Post Behaviouralism.

(i) Karl Popper has given the concept of Falsification.

What is Falsification?

Falsification is the criteria of scientific theory in social sciences. In social sciences it is not possible to produce such theories which can be verified through experiment in laboratory. In social sciences it is enough if theory is open for critical investigation. From the perspective of Falsification, Marxism is determinism.

(ii) Thomas Koon suggested that there is no finality in knowledge even scientists works with conceptual framework or paradigm. He also suggested that the importance of theory is not in how precise it is but how useful it is in management of crisis or problem solving.

determinism - ideas cannot go wrong.

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- Criticism of Behaviouralism by Traditionalists.

(1) Traditionalists believe that there is no need to make political science a science. Political science can be made science only at the cost of compromising with its scope and relevance. Behaviouralists have introduced unnecessary jargons or complecated terminology (which is not required). Behavioural movement is nothing but a cosmetic change. Behavioural research is costly, whatever conclusions about politics have been arrived at by Behaviouralists through so called rigourous method, similar conclusion have been arrived but by traditionalists through logical reasoning. Eg. Machiavelli even without following rigourous scientific method could arrive at the conclusion that politics is study of power. Same conclusion Behaviouralists could arrive after rigourous research

- Criticism by Marxists (of Behaviouralism)

According to Marxists, Behaviouralism emerge to counter Marxists analysis.
What is the basis?

- According to Marxists, Behaviouralists advocate value neutrality in the name of scientific theory. Behaviouralists want to divert attention from Normative Questions.
- Behaviourialism is like trend of ideology & attempt by American political scientists to justify the status quo.
- It is based on assumption that all conflicts have been resolved in the western countries and there is no need of Normative theory.
- Behaviouralists have produced models like systems approach. These models are produced keeping western political system as an ideal type.

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- Behaviouralists directed their research towards socialist countries. Elitists Theory of Power and Elitists Theory of Democracy suggest that oligarchy is the Iron law & whether country is socialist or liberal power will be only in the hands of elites.
- Though Marxists think that the aim of Behaviouralism was to counter the Marxists analysis of western countries But we cannot say that it was the only aim or even the most important aim. We can see the genuine desire among political scholars to bring scientific techniques and to make political science scientific which they thought was necessary so that discipline/theories gains credibility.

Nature of Crisis in Political Theory-

Political theory has suffered from the crisis of relevance twice:

(1) After 2nd world war political scholars were not invited for academic conferences because it was felt that they have nothing to offer.

David Easton has blamed traditionalists for the decline of political theory.

(a) According to david Eaglon the most fertile times of Political Ideas have been the crisis phases/times.

He was surprised that even after crisis like 1st world war & 2nd world war political scholars could not produce any new thinking to deal with contemporary issues.

He specifically blamed historicists like Sabine & Dunning who were busy in debating century old ideas. He also criticises Institutionalists who could not look beyond institutions.

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(b) He criticise traditionalist because Traditionalists have produced Arm chair theories, lacked any verifiable knowledge.
Hence David Easton called for the introduction of scientific techniques so that political theories gain credibility.

(iv) Political theory suffered from crisis again but this time because of Behaviouralists. Behaviouralist focus more on the purification of techniques with the objective to make political science a science.
Once again Political theory was in crisis because Behaviouralists who have neglected normative issues had no theory to resolve the contemporary challenges like social movements. Hence, David Easton called for Post Behaviouralism. He held that political scientists seating in ivory towers perfecting their techniques have overlooked their responsibility towards the society. Hence he called for creative theory based on action and relevance.

- Utility of Behaviouralism.

Behaviouralism led to the growth of imperical research Behaviouralists have collected huge data. Behaviouralists could produce studies & electoral behaviour which have been useful for political parties in determining their election strategies.
Behaviouralists have developed certain conceptual frame. Work like systems approach. Structural functional approach which can be used for the study of developing areas The most important achievement of Behavioural approach is in the field of comparative govt & politics.

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Dichotomy ↓ seperate in 2 parts

Fact Value Dichotomy and to what extent post behaviouralism resolve it

Political science started as a part of Political philosophy. Political science has been closer to Political philosophy. Traditional political theories deal with Normative issues like Rights, Liberty, Equality, Justice.

Traditional Theories came under the crisis because Traditional theories were normative and Arm chair Theories. Scholars like Lord Bryce called for Emperical studies. He called for facts, facts and facts.

Behavioural Movement aimed at studying facts and at producing such theories which are value neutral to make political science pure science.

Post Behaviouralism ended fact value dichotomy. It held that there is no need to make Political science a pure science. Political science is a policy science or applied science. They also suggested to incorporate values and not to treat techniques as an end in itself.

Behavioural / Post Behavioural scholars like Robert Dahal, held that, Fact and values are not completely Dichotomous / seperate. In fact there is a continuity between them. Facts become values & values becomes facts.

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- Political theory is not escape mechanism but ardous (difficult) calling. (difficult work).

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